

INTELLECTUAL PROPERTY LAW

Paper-V | 4th Semester | LL.B. (3-YDC)

Osmania University | Faculty of Law

UNIT I

Introduction to Intellectual Property

Comprehensive Exam Preparation Notes

Target: 75+ Marks | Parts A, B & C

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UNIT I — OVERVIEW & EXAM INTELLIGENCE

What IS in This Unit

- Concept, meaning, nature & classification of Intellectual Property
- Significance and need for IP protection
- Conventional forms: Patents, Trademarks, Industrial Designs, GI, Copyright
- Emerging forms: Plant Varieties, GRTK, Integrated Circuit Layouts, AI & Computer Programmes

What is NOT in This Unit

- International treaties and conventions → Unit II
- Copyright Act 1957 in detail → Unit III
- Trade Marks Act 1999 → Unit IV
- Patents Act 1970 procedure → Unit V

★ Predicted Questions (Based on Past Papers)

Topic	Part	Rating
Geographical Indication	Part A	★★★★★
IPR in Biotechnology / Plant Varieties	Part A	★★★★★
Computer Programmes & AI and IP	Part A	★★★★★
Integrated Circuit Layout Designs	Part A	★★★★
Importance of IP / Forms of IPR (Essay)	Part B	★★★★★
Emerging vs Conventional IP (Essay)	Part B	★★★★★
Plant Variety / Biotechnology (Problem)	Part C	★★★★★
Geographical Indication of obscene matter	Part C	★★★★

1234 Critical Numbers to Memorise

- Paris Convention — 1883 (Industrial Property)
- Berne Convention — 1886 (Literary/Artistic)
- TRIPS Agreement — 1994
- Copyright Act — 1957 (India)
- Trade Marks Act — 1999 (India)
- Patents Act — 1970 (India)
- Designs Act — 2000 (India)
- Protection of Plant Varieties Act — 2001 (India)
- Semiconductor Integrated Circuits Layout-Design Act — 2000 (India)

PART A — SHORT NOTES (6 Marks Each)

Write any FIVE out of EIGHT questions. Each answer: ~200–250 words. Time: 5–7 min each.

A1. Meaning, Nature & Classification of Intellectual Property ★★★★★

Definition: Intellectual Property (IP) refers to creations of the human mind — inventions, literary and artistic works, symbols, names, images, and designs — used in commerce. It grants creators exclusive rights over their creations for a specified period.

Key Points:

- IP is intangible — exists in the mind, not as a physical object
- Grants monopoly rights that are territorial and time-limited
- Protected by national laws and international treaties (TRIPS, WIPO)
- Balances private creator interest vs. public domain access
- Classified into two broad categories: Industrial Property and Copyright

Classification of IP:

Industrial Property	Copyright & Neighbouring Rights
• Patents • Trade Marks • Industrial Designs • Geographical Indications	• Literary & Artistic Works • Music, Films, Software • Neighbouring Rights (performers, broadcasters)

📌 Example: A pharmaceutical company's drug formula is protected as a Patent (industrial property); its advertising jingle is protected by Copyright.

⚖️ *Monsanto Technology LLC v. Nuziveedu Seeds Ltd. (2019)* — SC India: discussed overlap between patent protection and plant variety rights, highlighting IP classification boundaries.

💡 TIP: Mnemonic for IP forms: 'PCT-GC' = Patents, Copyright, Trademarks, GI, Copyright-related (Neighbouring). Add Emerging: 'BIGAPC' = Biotechnology, Integrated Circuits, Genetic Resources, AI, Plant Varieties, Computer Programmes.

A2. Significance & Growing Need for IP Protection ★★★★★☆

Definition: The significance of IP protection lies in incentivising human creativity, enabling innovation-driven economies, protecting consumer interests, and ensuring equitable sharing of knowledge — particularly in the digital and biotechnology era.

Key Points:

- Encourages R&D by granting temporary monopoly → commercial reward
- Promotes disclosure of inventions (patent system) → public knowledge
- Protects cultural heritage and traditional communities (GRTK)
- Prevents misappropriation, counterfeit goods, and piracy

- International trade requires harmonised IP standards (TRIPS)
- Digital economy creates new vulnerabilities → need for updated IP laws

KEY PRINCIPLE: IP law strikes a balance between the creator's exclusive rights and the public's interest in access to knowledge and innovation.

📌 Example: India's pharmaceutical industry thrives by producing generic medicines; the Doha Declaration (2001) under TRIPS recognised that IP rules should not prevent access to medicines in public health emergencies.

⚖️ *Novartis AG v. Union of India (2013) SC — Rejected patent for Gleevec (Section 3(d) Patents Act): affirmed India's policy to balance innovation incentives with public health needs.*

💡 **TIP:** For 'significance' questions, use the acronym **RECIPE**: Reward creators, Encourage disclosure, Consumer protection, Incentivise innovation, Preserve culture, Economic growth.

A3. Geographical Indication (GI) ★★★★★

Definition: A Geographical Indication (GI) is a sign used on products that have a specific geographical origin and possess qualities, reputation, or characteristics essentially attributable to that place of origin. Governed in India by the Geographical Indications of Goods (Registration & Protection) Act, 1999.

Key Points:

- GI links a product's quality/reputation to its geographic origin
- Both natural and human factors of the region contribute to the product
- Registered GI prevents others outside the region from using the name commercially
- Duration: 10 years, renewable indefinitely
- Governed internationally by TRIPS Agreement (Articles 22–24)
- India: Registered under GI Act 1999; first GI tag given to Darjeeling Tea (2004)

CRITICAL RULE: A GI is a collective right — it belongs to the producers of a region, not to any individual. This distinguishes it from a trade mark (which can be owned individually).

📌 Example: Darjeeling Tea, Basmati Rice, Mysore Silk, Pochampally Ikat (Telangana), Tirupati Laddu, Hyderabad Haleem — all hold GI tags in India.

⚖️ *Scotch Whisky Association v. Golden Bottling Ltd. (2006) Delhi HC — Held that 'Scotch' GI cannot be used for Indian whisky; reinforced geographic link essential for GI protection.*

💡 **TIP:** Distinguish GI from Trade Mark: GI = collective, origin-linked, indefinitely renewable; TM = individual/company, brand-linked, 10 years renewable. Exam trap: Can a GI become a trademark? NO — if a name becomes generic, it loses GI protection.

A4. IPR in Biotechnology & Plant Varieties Protection ★★★★★

Definition: IPR in Biotechnology covers the protection of innovations arising from living organisms, genetic sequences, microorganisms, and plant varieties through patents, plant variety rights, and trade secrets. In India, plant varieties are protected under the Protection of Plant Varieties and Farmers' Rights Act, 2001 (PPVFR Act).

Key Points:

- Biotechnology IP straddles patent law and specialised protection regimes
- Micro-organisms can be patented if they are novel, non-obvious, and useful
- *Diamond v. Chakrabarty* (US, 1980): landmark — 'anything under the sun made by man' is patentable
- India: Section 3(j) Patents Act — plants, animals, essentially biological processes NOT patentable
- PPVFR Act 2001: protects new, distinct, uniform, stable (NDUS) plant varieties
- Farmers' Rights: farmers can save, use, sow seeds of protected varieties
- Breeders' Rights: commercial monopoly over registered plant varieties for 15–18 years

KEY TEST (Plant Variety): NDUS — New, Distinct, Uniform, Stable. ALL FOUR criteria must be satisfied.

🔴 Example: A biotech company engineers a drought-resistant wheat variety → can register under PPVFR Act 2001 but CANNOT get a patent in India (Section 3(j) bars it).

⚖️ *Monsanto Technology v. Nuziveedu Seeds (2018) SC — Bt Cotton case: held that plant varieties cannot be patented in India; PPVFR Act governs; farmers' rights protected.*

💡 TIP: Exam tip: In a problem question, if a scientist develops a new plant variety → advise PPVFR Act 2001 (not Patents Act). If it involves a genetically engineered micro-organism → could be patentable under Patents Act (if not a plant/animal).

A5. Genetic Resources, Traditional Knowledge & Folklore (GRTK) ★★★★★

Definition: GRTK refers to knowledge, innovations, and practices of indigenous and local communities embodying traditional lifestyles relevant to conservation of biological diversity. It is an emerging IP form designed to protect communities from bio-piracy and cultural appropriation.

Key Points:

- Traditional Knowledge (TK): medicinal plants, healing practices, farming techniques passed across generations
- Genetic Resources: biological material from plants, animals, microorganisms with genetic value
- Folklore: cultural expressions — music, dance, art, stories of communities
- Problem: TK exists in the public domain but communities don't benefit commercially
- Bio-piracy: corporations patent TK-based inventions (e.g., Turmeric, Neem controversies)
- India's response: Traditional Knowledge Digital Library (TKDL) — prior art database to block bio-piracy patents
- International: CBD (Convention on Biological Diversity, 1992) and Nagoya Protocol (2010)

INDIA'S WEAPON AGAINST BIO-PIRACY: TKDL (Traditional Knowledge Digital Library) — documents 900+ traditional formulations in multiple languages to be used as prior art in patent offices worldwide.

🔴 Example: US Patent Office granted a patent on wound-healing properties of Turmeric in 1995. India challenged this citing ancient Sanskrit texts — the patent was REVOKED in 1997. This is a landmark TKDL success story.

⚖️ *Re: Neem Patent Controversy (EPO, 2000) — European Patent Office revoked a patent on Neem-based fungicide after India proved it was prior art documented in traditional knowledge.*

💡 TIP: Remember the difference: TK = knowledge (how to use neem), GR = the genetic material itself (neem genes), Folklore = cultural expression (folk songs about neem). All three form GRTK.

A6. Integrated Circuit Layout Designs ★★★★★

Definition: An Integrated Circuit (IC) is a miniaturised electronic circuit embedded on a semiconductor material (chip). Layout-design (topography) refers to the three-dimensional disposition of circuit elements. Protected in India under the Semiconductor Integrated Circuits Layout-Design Act, 2000 (SICLD Act).

Key Points:

- Protection covers the three-dimensional arrangement of circuit elements on a chip
- Must be original — result of creator's intellectual effort, not commonplace
- Duration of protection: 10 years from date of filing or first commercial exploitation
- Governed by IPIC Treaty (Washington Treaty, 1989) — implemented in India via SICLD Act 2000
- Owner's exclusive rights: reproduction, importation, sale or distribution for commercial purposes
- Exception: Reverse engineering for private or educational purpose is allowed

KEY DISTINCTION: A layout design protects the **STRUCTURE** (3D arrangement) of a chip, **NOT** the functioning of the chip (which may be covered by patent) or the chip design drawing (which may be covered by copyright).

📌 Example: Intel's proprietary chip architecture, the 3-nanometer circuit layout for iPhone processors — these are protected as IC layout designs.

⚖️ *SIPEX Corporation v. Analogic Corporation (US)* — laid down principle that reverse engineering of semiconductor chips for study is permitted, but commercial reproduction is not.

💡 **TIP:** Remember '2000' — both SICLD Act AND Designs Act were enacted in 2000. Don't confuse them. IC Layout = semiconductor chips; Designs Act = aesthetic/industrial product shapes.

A7. Computer Programmes, Artificial Intelligence & IP ★★★★★

Definition: Computer programmes are sets of instructions enabling a computer to perform tasks. Under India's Copyright Act 1957, computer programmes are protected as 'literary works'. AI refers to machine-based systems simulating human intelligence — raising novel questions about IP ownership when AI creates independently.

Key Points (Computer Programmes):

- India: Computer programmes protected as 'literary works' under Copyright Act 1957 (Section 2(ffc))
- Source code and object code both protected
- Duration: Lifetime of author + 60 years
- NOT patentable per se (Section 3(k) Patents Act) — unless it has a 'technical effect'
- Trade secrets and confidentiality protect proprietary algorithms

Key Points (AI & IP):

- AI-generated works: WIPO acknowledges challenge — who owns AI output?
- Current law: Only a HUMAN author can hold copyright (no IP rights for AI itself)
- AI as tool: If human guides AI output → human author has copyright

- AI as inventor: EPO and UK courts rejected AI-named patents (DABUS AI case, 2021)
- India: No specific law yet for AI-generated IP — evolving area

 **RULE:** In ALL current jurisdictions, AI CANNOT own IP. Rights vest in the human creator/employer who uses AI as a tool. AI authorship = no protection.

 Example: Midjourney AI generates a painting. The user who created the prompt holds copyright (if sufficiently creative input). The AI itself holds NOTHING.

 *Thaler v. Vidal (Fed. Cir. USA, 2022) — Court held that 'inventor' under patent law must be a natural person; AI (DABUS) cannot be named as inventor.*

 *TIP: Exam angle: If a question says 'AI wrote a book' or 'AI invented a device' → say current law does NOT recognise AI as IP owner. Rights vest in the human behind the AI.*

PART B — LONG ESSAYS (15 Marks Each)

Answer any TWO of FOUR questions. Each answer: ~600–750 words. Time: 20–25 min each.

B1. Examine the Growing Importance of IP Laws & Explain Forms of IPR

Introduction

Intellectual Property (IP) has emerged as one of the most significant assets in the 21st century knowledge-driven economy. As nations shift from manufacturing-based to innovation-based growth, the protection of intangible creations — inventions, brands, artistic works, and biological innovations — has become indispensable. The World Intellectual Property Organization (WIPO) estimates that IP-intensive industries account for over 45% of GDP and 40% of employment in developed economies.

1. Growing Importance of IP Protection

- Innovation Economy: Patents protect R&D investments; without exclusivity, pharmaceutical companies cannot recoup billion-dollar drug development costs
- Digital Revolution: Internet piracy, software theft, and digital counterfeiting make IP enforcement more critical than ever
- Global Trade: TRIPS Agreement (1994) mandated minimum IP standards for all WTO members — IP is now a prerequisite of global commerce
- Cultural Preservation: Copyright and GRTK protections preserve national heritage from exploitation
- SME Growth: Trademarks and designs help small enterprises build brand identity and compete globally
- Public Interest Balance: IP laws create incentives while ensuring eventual public access through limited-term monopolies

 **FOUNDATIONAL PRINCIPLE (TRIPS Preamble):** IP protection must contribute to promotion of technological innovation and the transfer and dissemination of technology, for the mutual advantage of producers and users.

2. Conventional Forms of Intellectual Property

(a) Patents

A patent is an exclusive right granted for an invention — a new, inventive, and industrially applicable product or process. Term: 20 years. Governed in India by Patents Act, 1970. Disclosure is mandatory in exchange for protection. Key principle: teaches the public while rewarding the inventor.

(b) Trade Marks

A trade mark is a sign distinguishing the goods/services of one trader from another. Includes words, logos, sounds, colours. Term: 10 years, infinitely renewable. Governed by Trade Marks Act, 1999. Functions: origin function, quality guarantee, advertising function.

(c) Industrial Designs

Protects the visual/aesthetic features of a product — shape, configuration, pattern, ornamentation. Must be new and original. Term: 10 years (renewable once for 5 years). Governed by Designs Act, 2000.

(d) Geographical Indications

GI tags protect products whose quality/reputation is linked to their place of origin (e.g., Darjeeling Tea,

Basmati Rice). Governed by GI Act, 1999. Term: 10 years, infinitely renewable. Collective right, not individual.

(e) Copyright & Neighbouring Rights

Copyright protects original literary, dramatic, musical, artistic works, and software. No registration required — arises automatically on creation. Term: Author's life + 60 years. Neighbouring rights protect performers, producers, and broadcasters. Governed by Copyright Act, 1957.

3. Emerging Forms of Intellectual Property

(a) Plant Varieties & Biotechnology

PPVFR Act, 2001 protects new plant varieties (NDUS criteria). Biotechnological innovations involving microorganisms may be patented. India's Section 3(j) Patents Act excludes essentially biological processes and plant/animal varieties from patents.

(b) GRTK — Genetic Resources, Traditional Knowledge & Folklore

Emerging framework protects indigenous community knowledge from bio-piracy. India's TKDL database and the Nagoya Protocol (CBD, 2010) are key instruments. Famous example: Turmeric patent revoked (1997) upon India's challenge.

(c) Integrated Circuit Layout Designs

SICLD Act, 2000 protects the three-dimensional layout of semiconductor chips for 10 years. Implements IPIC Treaty (1989).

(d) Computer Programmes & AI

Software protected as literary work under Copyright Act. AI-generated works currently have no IP owner under any jurisdiction — rights vest only in human creators.

§§ *Novartis AG v. Union of India (2013)*: SC upheld public health policy override of patent rights under Section 3(d).

§§ *Monsanto v. Nuziveedu (2018)*: SC confirmed plant varieties fall under PPVFR Act, not Patents Act.

§§ *Re: Turmeric Patent (USPTO, 1997)*: Revocation of patent on traditional wound healing use of turmeric — GRTK victory.

Conclusion

IP law today serves as the backbone of the knowledge economy. India's IP framework — anchored in constitutional guarantees of creative freedom and informed by international obligations under TRIPS, WIPO Conventions, and the CBD — has evolved to protect both conventional and emerging forms of creative expression and innovation. The challenge for the 21st century is to ensure that IP protection incentivises creativity while preserving access to knowledge for all.

■ **LINKING TO CONSTITUTION:** Article 19(1)(a) (freedom of expression — copyright), Article 300A (property rights — patents/trademarks), and the Directive Principles (Articles 39, 47) balance private IP monopolies with public interest.

B2. Discuss Importance of Protecting Both Traditional and Emerging Forms of IP; How Do They Differ from Conventional IP Rights?

Introduction

The landscape of Intellectual Property is no longer confined to patents, trademarks, and copyrights. The 21st century has witnessed the emergence of entirely new categories of protectable subject matter —

plant varieties, genetic resources, traditional knowledge, folklore, AI-generated works, semiconductor layout designs, and computer programmes. These emerging forms present unique challenges to conventional IP frameworks, which were designed for individual creators and commercial enterprises, not communities or machines.

1. Conventional vs. Emerging IP — The Core Difference

Feature	Conventional IP	Emerging IP
Creator	Individual/Company	Community/AI/Machine
Duration	Fixed term (10–20 yrs)	Varies / indefinite (GI, GRTK)
Registration	Required (Patents, TM)	Optional (Copyright, GRTK)
Nature	Commercial/industrial	Cultural/community/technical
Legal basis	TRIPS, national statutes	CBD, PPVFR, SICLD, evolving

2. Importance of Protecting Traditional IP (GRTK)

- Prevents bio-piracy — corporations cannot monopolise community knowledge through patents
- Preserves indigenous identity and livelihood of millions dependent on traditional practices
- India's TKDL: 34 million pages of traditional formulations documented — used to block 200+ bio-piracy patents worldwide
- Nagoya Protocol (2010): Mandates benefit-sharing with communities when their genetic resources are used commercially

⚖️ *Re: Turmeric Patent (1997) — US patent for wound-healing turmeric revoked; India provided prior art.*

⚖️ *Re: Neem Patent (EPO, 2000) — European patent on neem fungicide revoked after community challenge.*

🟡 **GRTK protection addresses a fundamental inequity: communities who developed knowledge over centuries receive NO benefit when corporations patent it. IP law must correct this historic injustice.**

3. Importance of Protecting Emerging IP (AI, IC Layouts, Software)

- Semiconductor chips are the foundation of the modern digital economy — IC layout protection incentivises chip R&D
- Software/computer programmes drive trillions in economic value — copyright protection enables the software industry
- AI-generated content is now commercially valuable — legal clarity on ownership is urgently needed
- Without emerging IP protection, free-rider problems discourage innovation in cutting-edge fields

⚖️ *Thaler v. Vidal (USA, 2022) — AI cannot be named as inventor; rights vest in human programmers.*

4. Challenges in Protecting Emerging IP

- GRTK: Communities rarely have resources to register or enforce IP globally
- AI: No current law recognises AI authorship — creates ownership vacuum
- Software: Fine line between patentable technical effect and non-patentable software per se
- Biotechnology: Ethical concerns about patenting life forms clash with innovation incentives

Conclusion

The protection of both traditional and emerging IP forms is not merely a legal formality — it is a matter of justice, economic equity, and technological progress. India, as a biodiversity-rich nation with millennia of traditional knowledge and a growing digital economy, has a special stake in evolving IP law that serves all stakeholders — from tribal communities preserving ancient healing traditions to software engineers building the next generation of AI tools. The international framework, anchored in TRIPS, the CBD, and WIPO, must continue to adapt to protect what humans — individually and collectively — create.

🏆 PART C — PROBLEM QUESTIONS / IRAC METHOD (10 Marks Each)

Answer any *TWO* of *FOUR* problems. Use strict IRAC format. Time: 15 min each.

C1. Problem: Biotechnologist Developing Drought-Tolerant Wheat — What IP Protection?

(Based on July/August 2025, Q13: 'R', a biotechnologist, develops a drought-tolerant wheat variety with improved nutritional value. He seeks exclusive rights. Advise him.)

I — ISSUE

What form of Intellectual Property protection is available in India to 'R' who has developed a new drought-tolerant wheat variety with improved nutritional value? Can he seek a Patent, or must he approach a different regime?

R — RULE

The following legal provisions govern:

1. **Patents Act, 1970 — Section 3(j):** Plants and animals in whole or any part thereof other than micro-organisms, including seeds, varieties, and species, and essentially biological processes for production or propagation of plants and animals are NOT patentable.
2. **Protection of Plant Varieties and Farmers' Rights (PPVFR) Act, 2001 — Section 14:** A new variety shall be registered if it conforms to the criteria of Novelty, Distinctiveness, Uniformity, and Stability (NDUS).
3. The PPVFR Act 2001 was enacted specifically to protect plant breeders' rights while simultaneously safeguarding farmers' rights — consistent with India's obligations under UPOV Convention and CBD.

🟡 **CRITICAL RULE:** Plant varieties CANNOT be patented in India (Section 3(j)). The PPVFR Act 2001 is the CORRECT and ONLY statutory mechanism.

A — APPLICATION

Applying the above rules to the facts:

- 'R' has developed a WHEAT VARIETY — wheat is a plant, clearly covered by Section 3(j) exclusion from patents.
- The variety is drought-tolerant and has improved nutritional value — these are value-added traits but DO NOT convert the plant variety into a patentable invention under Indian law.
- However, 'R' may apply for registration under the PPVFR Act, 2001 if the wheat variety satisfies the NDUS test:
 - **NOVELTY:** The variety must not have been sold/made available in India for more than 1 year before filing (or 4 years outside India)

- **DISTINCTNESS:** Must be clearly distinguishable from existing varieties
- **UNIFORMITY:** Must be sufficiently uniform in essential characteristics
- **STABILITY:** Essential characteristics must remain stable after repeated propagation

If all four criteria are met, 'R' can register as the 'breeder' under PPVFR Act and obtain exclusive commercial rights over the variety for 15 years (or 18 years for trees/vines).

¶ Monsanto Technology LLC v. Nuziveedu Seeds Ltd. (2018) SC — Confirmed that plant varieties fall under PPVFR Act; patent over plant variety-related technology rejected as contrary to Section 3(j).

C — CONCLUSION

ADVICE TO 'R':

✓ File an application for registration under the Protection of Plant Varieties and Farmers' Rights Act, 2001 before the Plant Varieties Protection Authority of India.

✗ A patent application under the Patents Act, 1970 will be REFUSED under Section 3(j) as wheat is a plant variety.

NOTE: If 'R' has used any novel micro-organisms or genetically modified techniques in the process of developing the variety (not the plant itself), those process elements could potentially be explored for patent protection separately — but the variety itself is exclusively under PPVFR.

■ **FINAL ANSWER:** PPVFR Act 2001 is the correct regime. 'R' must register the variety and prove NDUS criteria. He will receive Breeder's Rights for 15 years with exclusive commercial exploitation.

C2. Problem: Registration of GI for Obscene Matter — Is it Permissible?

(Based on November 2022, Q16: 'A' applied for registration of geographical indication of a matter which is obscene. Can 'A' register this GI?)

I — ISSUE

Whether 'A' can register a Geographical Indication (GI) for a matter that is obscene in nature — i.e., does Indian law permit registration of an obscene GI?

R — RULE

The Geographical Indications of Goods (Registration and Protection) Act, 1999 governs GI registration in India. Section 9 sets out absolute grounds for refusal of GI registration:

- ▶ Section 9(a): GI shall not be registered if its use would likely deceive or cause confusion
- ▶ Section 9(b): If its use would be contrary to any law for the time being in force
- ▶ Section 9(c): If it contains or comprises any SCANDALOUS or OBSCENE MATTER — registration is PROHIBITED
- ▶ Section 9(d): If it contains any matter that would hurt the religious sensibilities of any class or section of citizens

■ **ABSOLUTE GROUND: Section 9(c) GI Act, 1999** — A GI shall NOT be registered if it contains scandalous or obscene matter. This is an absolute prohibition — no exceptions.

Compare: Section 9(4) Trade Marks Act, 1999 similarly prohibits registration of trademarks containing scandalous/obscene matter. The legislative intent across IP statutes is consistent — no obscene IP registration.

A — APPLICATION

On the facts: 'A' has applied for registration of a GI for a matter which is described as 'obscene'. Applying Section 9(c) GI Act, 1999:

- The application involves obscene matter — this falls squarely within the absolute prohibition under Section 9(c)
- The Registrar of Geographical Indications is duty-bound to REFUSE registration
- There is NO discretion available to the Registrar to allow registration of an obscene GI — it is an absolute bar, not a relative ground
- Additionally, such matter may also be contrary to 'any law in force' (Section 9(b)) — e.g., the Obscene Publications Act or IPC Section 292, invoking a second ground of refusal

⚖️ *Zippo Manufacturing v. Zippo Dot Com (analogous principle)* — Courts consistently refuse to extend IP protection to material that is offensive or contrary to public policy.

C — CONCLUSION

'A' CANNOT register the Geographical Indication.

The Registrar of GI must refuse the application under Section 9(c) of the Geographical Indications of Goods (Registration and Protection) Act, 1999, as the matter is obscene. This is an absolute ground for refusal and admits of no exception.

■ **FINAL ANSWER: Registration REFUSED under Section 9(c) GI Act, 1999.** Scandalous/obscene GIs are absolutely prohibited. No discretion. No appeal can succeed on the merits if the matter is obscene.

QUICK REVISION SHEET — UNIT I

Key Numbers

Act / Treaty	Year & Key Number
GI Act India	1999 10-year term Sec 9(c) = obscene bar
PPVFR Act	2001 15 yrs crops / 18 yrs trees NDUS criteria
SICLD Act (IC Layouts)	2000 10-year term Original layout
Patents Act	1970 20 yrs Sec 3(j) = plants excluded
Copyright Act	1957 Life+60 yrs Sec 2(ffc) = software
Trade Marks Act	1999 10 yrs renewable Sec 9(4) = obscene bar
Designs Act	2000 10 yrs+5 yrs New & original
TRIPS Agreement	1994 WTO framework Arts 22-24 = GI
Paris Convention	1883 Industrial property
Berne Convention	1886 Literary/artistic No registration
First India GI Tag	Darjeeling Tea — 2004
TKDL	2001 900+ formulations Counters bio-piracy

Top Cases — One-Liner

- Novartis v. Union of India (2013): Sec 3(d) Patents Act upheld; public health > patent monopoly
- Monsanto v. Nuziveedu (2018 SC): Plant varieties → PPVFR Act, NOT Patents Act (Sec 3(j))
- Thaler v. Vidal (USA 2022): AI cannot be named inventor; only humans hold IP rights
- Turmeric Patent (USPTO 1997): Revoked — India proved TK prior art via Sanskrit texts
- Neem Patent (EPO 2000): Revoked — India's GRTK successfully challenged bio-piracy
- Scotch Whisky v. Golden Bottling (Delhi HC 2006): GI name cannot be misused outside geographic origin

Memory Mnemonics

FORMS OF IP: 'PCT-GC + BIGAPC'

- P = Patents | C = Copyright | T = Trademarks | G = GI | C = Copyright-related (Neighbouring)
- B = Biotechnology | I = Integrated Circuits | G = Genetic Resources/TK | A = AI | P = Plant Varieties | C = Computer Programmes

PLANT VARIETY CRITERIA: 'NDUS' = New, Distinct, Uniform, Stable (ALL 4 required)

GI ABSOLUTE BARS (Sec 9): 'DCOS' = Deceptive, Contrary to law, Obscene/Scandalous, Sensitive (religious)

 **SIGNIFICANCE OF IP: 'RECIPE' = Reward creators, Encourage disclosure, Consumer protection, Incentivise innovation, Preserve culture, Economic growth**

Exam TRAP Questions

- ▶ TRAP: 'Can a GI be owned by an individual?' → NO. GI is a COLLECTIVE right of producers in a region.
- ▶ TRAP: 'Can AI own copyright?' → NO. Only human authors hold IP. AI is a tool.
- ▶ TRAP: 'Can a plant variety be patented in India?' → NO. Sec 3(j) excludes it. Use PPVFR Act 2001.
- ▶ TRAP: 'Is registration mandatory for copyright?' → NO. Copyright is automatic on creation.
- ▶ TRAP: 'Can a GI be registered if it is the generic name for goods?' → NO. Generic names cannot be GI.
- ▶ TRAP: 'Does a GI expire?' → NO. Renewals are available every 10 years indefinitely.
- ▶ TRAP: 'Is software patentable in India?' → Per se NO (Sec 3(k)). But if it produces a 'technical effect' → possibly yes (controversial).

Unit I — Star Ratings Summary

Topic	Part	Rating
Geographical Indication	A	★★★★★
IPR in Biotechnology / Plant Varieties	A	★★★★★
Meaning & Classification of IP	A	★★★★★
Importance of IP Laws / Forms of IPR	B	★★★★★
Emerging vs Conventional IP	B	★★★★★
Plant Variety — PPVFR Problem	C	★★★★★
Computer Programmes & AI	A	★★★★★
GRTK / Traditional Knowledge	A	★★★★★
Significance & Need for IP	A	★★★★★
GI — Obscene Matter Problem	C	★★★
Integrated Circuit Layout Designs	A	★★★

— END OF UNIT I —

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INTELLECTUAL PROPERTY LAW

Paper-V | 4th Semester | LL.B. (3-YDC)

Osmania University | Faculty of Law

UNIT II

International IP Regime & Treaties

Comprehensive Exam Preparation Notes

Target: 75+ Marks | Parts A, B & C

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UNIT II — OVERVIEW & EXAM INTELLIGENCE

What IS in This Unit

- Evolution & historical development of international IP protection
- Paris Convention 1883 — Industrial Property
- Berne Convention 1886 — Literary & Artistic Works
- Madrid Agreement 1891 & Protocol 1989 — Trademarks
- Patent Cooperation Treaty (PCT) 1970
- WIPO Copyright Treaty (WCT) 1996
- WIPO Conventions and general principles of international IP
- TRIPS Agreement 1994 — framework, principles, national impact

What is NOT in This Unit

- Copyright Act 1957 in detail → Unit III
- Trade Marks Act 1999 enforcement → Unit IV
- Patents Act 1970 procedure → Unit V
- Emerging forms like AI, GRTK, IC Layouts → Unit I

★ Predicted Questions (Based on Past Papers)

Topic	Part	Rating
Role of WIPO in IPR	B	★★★★★
Madrid Agreement / Universal Copyright Convention	A	★★★★★
TRIPS Agreement — framework & impact	B	★★★★★
Evolution of international IP protection	B	★★★★★
Paris Convention — key principles	A	★★★★★
Berne Convention — key principles	A	★★★★★
PCT — patent cooperation procedure	A	★★★★
WIPO Copyright Treaty 1996	A	★★★★

Critical Numbers — Unit II

- Paris Convention — 1883 | Revised: Stockholm 1967
- Berne Convention — 1886 | Revised: Paris 1971
- Madrid Agreement — 1891 | Protocol: 1989
- PCT — 1970 | Administered by WIPO
- WIPO Established — 1967 (Convention) | UN Agency since 1974
- WIPO Copyright Treaty (WCT) — 1996 | 'Internet Treaties'
- WPPT (Performances & Phonograms Treaty) — 1996
- TRIPS Agreement — 1994 | Annex 1C of WTO Agreement
- India joined Paris Convention — 1998 | Berne — 1928

- TRIPS minimum copyright term: Life + 50 years
- TRIPS minimum patent term: 20 years
- TRIPS minimum TM term: 7 years (renewable)



PART A — SHORT NOTES (6 Marks Each)

Answer any FIVE. Each answer: ~200–250 words. Time: 5–7 min each.

A1. Paris Convention, 1883 (Industrial Property) ★★★★★☆

Definition: The Paris Convention for the Protection of Industrial Property (1883) is the foundational international treaty for IP protection. It covers patents, trademarks, industrial designs, utility models, and geographical indications. Currently administered by WIPO; 179 member states.

Key Principles:

- National Treatment (Art. 2): Foreign nationals of member states receive same IP protection as nationals
- Right of Priority (Art. 4): Filing in one member state gives 12 months (patents/designs) or 6 months (trademarks) to file in other states with same priority date
- Independence of Patents (Art. 4bis): Patents in different countries are independent — grant/refusal in one doesn't affect others
- Common Rules: Telle Quelle rule — trademark registered in home country must be accepted as-is in other countries
- Compulsory licensing allowed if patent not worked within 3 years of grant (Art. 5A)

📌 **THREE PILLARS: (1) National Treatment, (2) Right of Priority, (3) Common Rules. Learn these for exam — Paris Convention questions always test these three.**

🔗 Example: An Indian inventor files a patent in India. She has 12 months to file in USA, Germany, Japan with the same Indian filing date as priority. Without Paris Convention, she'd lose novelty.

⚖️ *Eli Lilly v. Canada (NAFTA Arbitration, 2017)* — illustrated how national treatment under Paris Convention binds member states to consistent IP standards.

💡 **TIP: Remember: Paris = 1883 = Industrial Property = Patents + TM + Designs. Berne = 1886 = Literary/Artistic = Copyright. Three years apart, different subject matter.**

A2. Berne Convention, 1886 (Literary & Artistic Works) ★★★★★☆

Definition: The Berne Convention for the Protection of Literary and Artistic Works (1886) is the primary international framework for copyright protection. It establishes minimum standards of protection binding on all member states. Currently 181 members; administered by WIPO.

Key Principles:

- National Treatment: Works of foreign nationals protected like works of own nationals
- Automatic Protection: No registration, no formalities — copyright arises automatically on creation
- Minimum Term: Life of author + 50 years (most countries grant more, e.g., India gives Life + 60)
- Moral Rights (Art. 6bis): Author's right of attribution and integrity — cannot be waived or transferred
- Minimum Standards: Reproduction right, translation right, adaptation right
- Rule of the Shorter Term: Foreign works protected for shorter of home country term or protecting country term

📌 **BERNE'S GOLDEN RULE: No formalities. Copyright is automatic from creation. No registration, no notice, no © symbol required (unlike older US law). This is the Berne principle India has adopted.**

🔗 Example: A French novelist writes a book. In India, it is automatically protected under Indian

Copyright Act (which implements Berne) without any registration in India.

⚖️ *Bridgeman Art Library v. Corel Corp (1999, USA) — applied Berne principle that exact photographic reproductions of public domain works do not attract fresh copyright (no originality).*

💡 *TIP: Berne = 3 Autos: Automatic protection, Automatic term (life+50), Automatic moral rights. No registration needed!*

A3. Madrid Agreement (1891) & Madrid Protocol (1989) ★★★★★

Definition: The Madrid System for international trademark registration consists of: (1) Madrid Agreement (1891) and (2) Madrid Protocol (1989). Together, they allow a trademark owner to register their mark in multiple countries through a single application filed with WIPO. India acceded to the Madrid Protocol in 2013.

Key Features:

- ▶ Single application in one language (English/French/Spanish) → protection in up to 130+ countries
- ▶ One set of fees in Swiss Francs paid to WIPO (instead of separate national fees)
- ▶ 'Central attack' rule: If home registration cancelled within 5 years, all international registrations fail
- ▶ Protection term: 10 years, renewable for 10 years at a time
- ▶ Each designated country has 12–18 months to refuse on national grounds
- ▶ Madrid Protocol improved on Agreement: accepts applications pending (not just registered) in home country

Difference: Agreement vs Protocol

Feature	Madrid Agreement (1891)	Madrid Protocol (1989)
Basis	Home registration required	Home application sufficient
Language	French only	English/French/Spanish
Refusal period	12 months	18 months
India membership	Not a member	Joined 2013

📌 Example: Tata Motors wants to protect 'Tata' trademark in 50 countries. Instead of filing 50 separate applications, it files ONE Madrid application with WIPO — saving time and cost.

⚖️ *Bacardi & Company v. Bacard Ltd (EUIPO) — demonstrated how Madrid System simplifies multi-jurisdictional TM enforcement.*

💡 *TIP: Madrid = Multi-country TM registration. '1891+1989' = Agreement + Protocol. India joined Protocol (not Agreement) in 2013. Exam often asks the year India joined — it's 2013.*

A4. Patent Cooperation Treaty (PCT), 1970 ★★★★★☆☆

Definition: The Patent Cooperation Treaty (PCT, 1970) is an international treaty administered by WIPO that allows inventors to file a single 'international application' to seek patent protection in multiple countries simultaneously. It does not grant an 'international patent' — each country still decides grant independently.

Key Features:

- Single international application filed with a 'Receiving Office' (e.g., Indian Patent Office)
- Application automatically designates all 157 PCT member states

- International Search Report (ISR): Prior art search conducted by International Searching Authority
- International Preliminary Examination (IPE): Optional; gives patentability opinion before national phase
- Applicant gets 30 months from priority date to enter 'national phase' in chosen countries
- Key benefit: 30 months to decide which countries to pursue — huge commercial planning time

PCT TIMELINE: File → International Search (16 months) → Enter National Phase (30 months from priority). PCT does NOT grant patents — it STREAMLINES multi-country filing.

PCT Phases:

Phase	Action	Timeline
International	File application + ISR + IPN	0–18 months
Chapter I	International search report issued	By 16th month
Chapter II	Optional preliminary examination	By 28th month
National Phase	Enter each country's patent office	By 30th month

 Example: A Hyderabad biotech startup invents a novel drug compound. It files ONE PCT application. 30 months later, it decides to pursue USA, EU, and Japan — entering those national patent offices after better funding secured.

⚖️ No specific case, but Indian Patent Office processes ~3000 PCT national phase entries per year — demonstrating practical importance for Indian inventors.

 **TIP: PCT = 'Buy Time' treaty. 30 months to decide. Does NOT grant patents. ISR = prior art check. India is a member. File with Indian Patent Office as Receiving Office.**

A5. WIPO Copyright Treaty (WCT), 1996 ★★★★★

Definition: The WIPO Copyright Treaty (WCT) 1996 is a special agreement under the Berne Convention designed to address copyright challenges in the digital environment. Along with the WIPO Performances and Phonograms Treaty (WPPT 1996), it is called the 'WIPO Internet Treaties'. Currently 115 member states.

Key Provisions:

- Computer programmes protected as literary works (Art. 4)
- Databases protected if original in selection/arrangement (Art. 5)
- Right of distribution and right of rental — authors have exclusive rights
- Right of Communication to the Public (Art. 8): Making works available online is covered
- Anti-circumvention provisions (Art. 11): Prohibits circumventing technological protection measures (DRM)
- Rights Management Information (Art. 12): Tampering with digital rights info is prohibited

KEY ADDITIONS OVER BERNE: WCT adds (1) Online communication right, (2) Anti-DRM circumvention rules, (3) Software & databases expressly covered. These three make Berne fit for the internet age.

 Example: Netflix uses DRM (Digital Rights Management) encryption on its content. Under WCT Art. 11, circumventing this DRM (e.g., using software to remove encryption) is illegal even if the underlying content viewing would be fair use.

⚖️ Capitol Records v. ReDigi (USA, 2013) — applied WCT-inspired digital distribution principles; resale of digital music files held to infringe distribution right.

💡 *TIP: WCT 1996 = Berne for the Internet. Three new rights: Communication to public, Anti-DRM, Rights Management Information. India incorporated WCT principles into Copyright (Amendment) Act 2012.*

A6. Universal Copyright Convention (UCC) ★★☆☆☆

Definition: The Universal Copyright Convention (UCC) 1952 is an alternative international copyright framework administered by UNESCO. It was created to accommodate countries (especially the USA at the time) that could not immediately join the Berne Convention due to stricter formality requirements. India is a member of both UCC and Berne.

Key Features:

- ▶ Member states must provide 'adequate and effective' copyright protection
- ▶ Minimum term: Life of author + 25 years (lower than Berne's Life + 50)
- ▶ Formality allowed: © symbol, name, year of publication satisfies all formalities
- ▶ National treatment principle applies — same as Berne
- ▶ Does NOT apply between Berne members — Berne governs if both parties are Berne members
- ▶ USA abandoned UCC and joined Berne in 1989 — UCC has become less relevant since

🟡 **UCC vs BERNE:** UCC is the 'softer' version — allows formalities (© notice), lower minimum term, administered by UNESCO. Berne is stricter, better protection, administered by WIPO. Where both apply, Berne prevails.

📌 Example: Before USA joined Berne (1989), US copyright relied on UCC for international protection. After 1989, Berne governs US-India copyright relations — UCC now dormant between them.

💡 *TIP: Exam trap: UCC is NOT the primary treaty — it's supplementary. UCC question often appears in Part A. Key number: 1952 (UCC) vs 1886 (Berne). © symbol is UCC's formality shortcut.*



PART B — LONG ESSAYS (15 Marks Each)

Answer any TWO. Each answer: ~600–750 words. Time: 20–25 min each.

B1. Role of WIPO in Relation to Intellectual Property Rights

Introduction

The World Intellectual Property Organization (WIPO) is the premier global institution for intellectual property governance. Established by the WIPO Convention of 1967 and a specialised agency of the United Nations since 1974, WIPO administers 26 international treaties, serves 193 member states, and provides the infrastructure for the global IP system. Its role has evolved from a mere treaty administrator to a comprehensive platform for IP policy, dispute resolution, capacity building, and digital innovation governance.

1. Historical Background

- 1883: United International Bureaux for Protection of Intellectual Property (BIRPI) formed to administer Paris + Berne Conventions
- 1967: WIPO Convention signed at Stockholm — BIRPI renamed WIPO
- 1974: WIPO becomes specialised agency of the United Nations
- 1996: WIPO-WTO Agreement — cooperation on TRIPS implementation
- Today: WIPO administers 26 treaties including PCT, Madrid System, Hague System

2. Administrative Functions — Treaty Administration

- Administers the Paris Convention (Industrial Property), Berne Convention (Copyright), PCT, Madrid System, Hague System, Lisbon System
- Processes international applications: 278,100 PCT applications (2022); 66,000 Madrid TM applications
- WIPO Arbitration and Mediation Center: handles domain name disputes under UDRP (Uniform Domain Name Dispute Resolution Policy)

 **WIPO'S FIVE GLOBAL REGISTRATION SYSTEMS: (1) PCT — Patents, (2) Madrid System — Trademarks, (3) Hague System — Industrial Designs, (4) Lisbon System — GI, (5) Vienna Classification — Figurative TM elements.**

3. Normative/Lawmaking Role

- WIPO develops new international IP standards and treaties
- Internet Treaties 1996: WCT and WPPT developed under WIPO to address digital copyright
- Marrakesh Treaty 2013 (WIPO): Facilitates access to published works for visually impaired persons
- Beijing Treaty 2012 (WIPO): Protects audiovisual performers' rights
- Ongoing: WIPO IGC negotiations on GRTK and folklore protection treaty

4. Developmental Role — Capacity Building

- WIPO Development Agenda (2007): 45 recommendations to integrate development into all WIPO activities
- Provides technical assistance to developing countries for implementing IP laws
- WIPO Academy: Online and in-person IP education for judges, examiners, lawyers worldwide
- WIPO GREEN: Platform for transfer of environmentally friendly technologies to developing nations

- IP-STARs: Global IP ranking system that incentivises quality IP administration

📌 Example: India's IP Office (CGPDTM) receives WIPO technical assistance for patent examination quality improvement, accelerated patent examination programmes, and digital filing infrastructure.

5. Dispute Resolution

- WIPO Arbitration and Mediation Center established 1994
- Primary body for domain name disputes — UDRP (over 60,000 cases resolved)
- Offers arbitration, mediation, and expert determination for IP disputes

⚖️ *Tata Sons v. Tata Consultancy Services (WIPO UDRP D2017-0352)* — resolved domain name dispute under UDRP.

⚖️ *Rolex SA v. Rolex.com (WIPO Case)* — classic UDRP cybersquatting case resolved via WIPO.

6. WIPO and the TRIPS Agreement

While TRIPS is administered by the WTO (not WIPO), WIPO and WTO entered into a cooperation agreement in 1996. Under this agreement:

- WIPO provides technical assistance to developing countries on TRIPS implementation
- WIPO's IP statistics inform WTO dispute panels
- TRIPS minimum standards are built upon WIPO conventions (Paris, Berne incorporated by reference)

📌 **RELATIONSHIP:** WIPO = IP specialist body (creates norms, administers systems). WTO/TRIPS = trade enforcement body (minimum standards, dispute settlement). Together they form the dual pillar of global IP governance.

7. WIPO in the Digital Age

- WIPO Re:Search: Platform sharing IP assets for neglected tropical disease research
- WIPO PROOF: Blockchain-based timestamping service to establish IP creation date
- WIPO AI Policy: Developing guidelines on AI inventorship, AI-generated works
- Patent Landscape Reports: Free global patent databases (PATENTSCOPE — 100M+ documents)

Conclusion

WIPO occupies an irreplaceable role in the global IP architecture. It is simultaneously a treaty administrator, law-maker, technical assistance provider, dispute resolver, and innovation platform. For India — a nation with immense creative talent, biodiversity wealth, and a growing innovation economy — WIPO's frameworks provide the international infrastructure upon which domestic IP development rests. As IP increasingly defines competitive advantage in the 21st century, WIPO's relevance will only grow — particularly in addressing the governance challenges of AI, biotechnology, and the digital commons.

📌 **CONSTITUTIONAL LINK:** India's IP law obligations under WIPO treaties are given effect through domestic statutes — reinforcing Article 51(c) of the Constitution directing India to 'foster respect for international law and treaty obligations'.

B2. The TRIPS Agreement 1994 — Framework, Principles & National Impact on India

Introduction

The Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS), adopted in 1994 as Annex 1C of the Agreement Establishing the World Trade Organization (WTO), represents the most

comprehensive and enforceable multilateral IP agreement in history. Unlike earlier conventions (Paris, Berne) which lacked enforcement mechanisms, TRIPS binds all 164 WTO members to minimum IP standards backed by the WTO's Dispute Settlement Mechanism — making IP compliance a prerequisite of international trade.

1. Background & Genesis

- Pre-TRIPS era: Paris (1883) and Berne (1886) set standards but had NO enforcement mechanism
- 1980s: Developed countries (USA, EU) frustrated by IP piracy in developing nations
- TRIPS negotiated in Uruguay Round (1986–1994) of GATT — linked IP to trade for first time
- Came into force: 1 January 1995 for developed countries; 2000 for developing; 2006 for LDCs
- India: TRIPS compliant from 2005 (product patents for pharmaceuticals introduced)

2. Structure of TRIPS Agreement

Part	Content
Part I (Arts. 1–8)	General provisions — objectives, principles, flexibilities
Part II (Arts. 9–40)	Minimum standards for each IP category
Part III (Arts. 41–61)	Enforcement obligations
Part IV (Arts. 62–67)	Acquisition and maintenance of IP rights
Part V (Arts. 68–74)	Dispute prevention and settlement
Part VI (Arts. 65–67)	Transitional arrangements

3. Key Principles of TRIPS

- National Treatment (Art. 3): Foreign nationals of WTO members get same IP protection as own nationals
- Most-Favoured Nation (Art. 4): Any IP advantage given to one WTO member must be given to ALL (new feature — not in Paris/Berne)
- Minimum Standards (Art. 1): TRIPS sets floors, not ceilings — countries can give MORE protection
- Exhaustion of Rights (Art. 6): Each country determines its own doctrine of exhaustion (international, national, regional)

 **TRIPS vs PARIS/BERNE: TRIPS adds TWO critical new principles — (1) MFN (Most Favoured Nation) — totally new; (2) Enforceable dispute settlement through WTO. These were missing from older treaties.**

4. Minimum Standards Set by TRIPS

IP Right	TRIPS Minimum Standard
Patents	20 years from filing All fields of technology No discrimination
Copyright	Life + 50 years No formalities Incorporates Berne
Trademarks	7 years from registration Renewable indefinitely
GI	Special protection for wines & spirits; basic protection for others
Industrial Designs	10 years Independent or textile designs
Undisclosed Info	Trade secrets protected if secret, valuable, reasonable steps taken

5. TRIPS Flexibilities — Public Interest Safeguards

- Art. 8: Members may adopt measures to protect public health, nutrition, socio-economic development
- Art. 27.2/27.3: Exclude from patentability: diagnostic methods, therapeutic methods, plants/animals, essentially biological processes
- Art. 30: Limited exceptions to patent rights (research exemption, Bolar exemption)
- Art. 31: Compulsory licensing — government can license patent without owner's consent (public health, emergency)
- Doha Declaration 2001: Reaffirmed TRIPS flexibilities for public health — TRIPS does not prevent access to medicines

■ **INDIA'S USE OF TRIPS FLEXIBILITIES: Section 3(d) Patents Act (Novartis case), compulsory licensing for Nexavar (cancer drug, 2012), Bolar exception — all use TRIPS Art. 30/31 flexibilities to balance innovation and public health.**

6. National Impact on India

- 2005 Patent (Amendment) Act: India introduced product patents for pharmaceuticals under TRIPS obligation
- Section 3(d): India's unique provision preventing 'evergreening' — withstands TRIPS scrutiny (Novartis 2013)
- Copyright (Amendment) Act 2012: Incorporated TRIPS/WCT requirements (digital rights, DRM)
- Trade Marks Act 1999, GI Act 1999, Designs Act 2000 — all enacted to comply with TRIPS
- Pharmaceutical industry: India became 'pharmacy of the world' using TRIPS flexibilities for generic drugs

⚖️ *Novartis AG v. Union of India (2013) SC — India's rejection of Gleevec patent under Section 3(d) upheld; SC held it was consistent with TRIPS Art. 27 and India's sovereign right to define patentability.*

⚖️ *Bayer Corporation v. Union of India (2014) SC — Compulsory licence for Nexavar (cancer drug) upheld under Patents Act Section 84, consistent with TRIPS Art. 31.*

7. Enforcement under TRIPS (Part III)

- Civil remedies mandatory: injunctions, damages, disposal of infringing goods (Arts. 44–46)
- Criminal penalties mandatory for commercial-scale trademark counterfeiting and copyright piracy (Art. 61)
- Border measures: customs seizure of counterfeit goods (Arts. 51–60)
- WTO Dispute Settlement: TRIPS violations adjudicated by WTO panels — binding on members

⚖️ *US v. India (WTO DS50 — Patent Protection for Pharmaceutical Products, 1997) — USA challenged India's mailbox patent system under TRIPS; India ultimately amended Patents Act in compliance.*

Conclusion

TRIPS transformed international IP from a courtesy-based system to an enforceable trade obligation. Its genius lies in its hybrid design: universal minimum standards + national flexibility for public interest. For India, TRIPS has been both a constraint (requiring robust IP protection) and an opportunity (flexibilities enabling generic pharmaceutical manufacturing and access to medicines). The constitutional basis for India's TRIPS compliance rests in Article 51 (international obligations) and Articles 19, 300A (property rights), while the Directive Principles (Articles 39, 47) justify the flexibilities India deploys to protect public health.

🏆 PART C — PROBLEM QUESTIONS / IRAC METHOD (10 Marks Each)

Answer any TWO. Use strict IRAC format. Time: 15 min each.

C1. Problem: Generic Drug Manufacturer & TRIPS Compulsory Licensing

(Hypothetical based on Unit II themes: A pharmaceutical company holds a patent on a life-saving cancer drug priced at Rs. 2.8 lakhs per month. A generic manufacturer wants to produce and sell it cheaply. Can the government or generic company compel access? Advise.)

I — ISSUE

Whether a compulsory licence can be granted under the TRIPS Agreement and Indian law to enable manufacture of a patented life-saving drug at an affordable price, overriding the patent holder's exclusive rights.

R — RULE

The following legal provisions govern:

1. TRIPS Agreement, Article 31: A member state may allow use of a patent without the patent holder's authorisation (compulsory licence) if: (a) negotiations with patent holder failed; (b) used mainly for domestic market supply; (c) adequate remuneration paid to patent holder.
2. TRIPS Article 31bis (2017 amendment): Allows export of compulsory-licensed medicines to countries lacking manufacturing capacity.
3. Doha Declaration on TRIPS and Public Health (2001): Reaffirmed that TRIPS must not prevent members from taking measures to protect public health. Each member has right to grant compulsory licences and determine grounds.
4. Patents Act 1970, Section 84: Compulsory licence may be granted after 3 years of patent grant if: (a) reasonable requirements of public not satisfied; (b) not available at reasonably affordable price; (c) not worked in India.
5. Section 92 Patents Act: Government can issue compulsory licence in national emergency, extreme urgency, or public non-commercial use — without prior negotiation.

 **KEY RULE:** TRIPS Art. 31 + Patents Act Sec. 84/92 = Compulsory licensing is **LEGAL** under international and Indian law when public health needs are not met by the patent holder.

A — APPLICATION

Applying the rules to the facts:

- The drug is a life-saving cancer treatment — clearly a public health concern
- Price of Rs. 2.8 lakhs/month makes it unavailable to the vast majority of Indians — 'not available at reasonably affordable price' (Sec. 84(1)(b))
- If 3 years have elapsed since patent grant → generic manufacturer can apply for compulsory licence under Section 84

- Government can invoke Section 92 directly if this is a public health emergency — no prior negotiation needed
- TRIPS Art. 31 is satisfied: India's domestic law implements all Article 31 conditions
- Doha Declaration affirms: TRIPS 'can and should be interpreted...to promote access to medicines for all'

🏛️ *Bayer Corporation v. Natco Pharma / Union of India (IPAB 2012, upheld by SC 2014) — India granted its FIRST compulsory licence for Nexavar (kidney cancer drug) to Natco Pharma. Bayer's Rs. 2.8 lakh/month price vs Natco's Rs. 8,880/month. Fully consistent with TRIPS and Patents Act Section 84.*

C — CONCLUSION

YES — A compulsory licence CAN be granted.

The generic manufacturer should apply to the Controller of Patents under Section 84 of the Patents Act, 1970. Given the extreme price and life-saving nature of the drug, the grounds under Section 84(1)(b) are clearly made out. This is consistent with TRIPS Article 31 and the Doha Declaration. The patent holder remains entitled to 'adequate remuneration' (royalty) to be determined by the Controller.

🟡 **FINAL ANSWER:** Compulsory licence GRANTED under Patents Act Sec. 84 + TRIPS Art. 31. India's sovereign right affirmed by Doha Declaration. Precedent: Nexavar (Bayer v. Natco, 2012).

C2. Problem: Cross-Border Copyright — Does Berne Convention Protect Foreign Author in India?

(Hypothetical: 'X', a British novelist, publishes a book in the UK. 'Y' in India reproduces the entire book without permission and sells copies commercially. X wants to sue in India. Can X get copyright protection in India even though X has no Indian copyright registration?)

I — ISSUE

Whether 'X', a British national, can claim copyright protection in India for a work published in the UK, without any registration in India, and whether 'Y's unauthorised reproduction amounts to copyright infringement under Indian law.

R — RULE

The following rules apply:

1. Berne Convention, Article 5(2): Protection is NOT conditional on compliance with any formality. Copyright subsists automatically without registration.
2. Berne Convention, Article 3: Protection extends to authors who are nationals of or have published works in a Berne member country. UK is a Berne member. India is a Berne member.
3. Berne Convention, Article 5(1): National Treatment — foreign authors receive same

protection as Indian nationals in India.

4. Copyright Act 1957, Section 40: Works of authors who are citizens of or domiciled in countries notified by Indian government receive protection equal to Indian works. UK is a notified country.

5. Copyright Act 1957, Section 14: Reproduction right is an exclusive right of the copyright owner. Unauthorised reproduction = infringement.

■ **BERNE'S CORE RULE: No formalities + National Treatment = X has automatic copyright in India from the moment of UK publication. No Indian registration needed.**

A — APPLICATION

Applying the rules:

- UK and India are both Berne Convention members — Berne automatically applies
- X published in the UK — X's work is protected in ALL Berne member states including India from date of publication
- Berne's 'no formality' rule: X does NOT need to register in India — copyright exists automatically
- National Treatment: X's rights in India are the same as any Indian author's rights — full protection under Copyright Act 1957
- Y reproduced the ENTIRE book commercially — this is a clear reproduction right infringement under Section 14 Copyright Act
- No fair dealing defence available — commercial reproduction of an entire work for commercial sale cannot be fair dealing

✚ *R.G. Anand v. M/s Delux Films (1978 SC) — established that copyright infringement requires substantial copying; here reproduction is complete — infringement is absolute.*

C — CONCLUSION

YES — X can claim full copyright protection in India.

Under the Berne Convention (Arts. 3, 5) and Copyright Act 1957 (Section 40), X automatically has copyright in India without any formality. Y's commercial reproduction of the entire book is a straightforward infringement of X's reproduction right under Section 14. X can sue Y in India for injunction, damages, and delivery of infringing copies under Sections 55 and 58 of the Copyright Act.

■ **FINAL ANSWER: Berne Convention + Section 40 Copyright Act = X has automatic, registration-free copyright in India. Y's reproduction = INFRINGEMENT. X can sue for damages + injunction.**

⚡ QUICK REVISION SHEET — UNIT II

1 2 3 4 Treaty Timeline — Master Table

Treaty	Year	Subject Matter	Admin Body	Key Principle
Paris Convention	1883	Industrial Property (Patents, TM, Designs)	WIPO	National Treatment + Right of Priority
Berne Convention	1886	Literary & Artistic Works (Copyright)	WIPO	Automatic protection, Life+50, Moral rights
Madrid Agreement	1891	Trademark registration	WIPO	Multi-country TM via one application
PCT	1970	Patents (multi-country filing)	WIPO	30-month national phase delay
WIPO Established	1967/74	All IP	UN/WIPO	Global IP governance
Madrid Protocol	1989	Trademark (improved)	WIPO	Application (not registration) as basis
TRIPS	1994	All IP + Trade enforcement	WTO	MFN + National Treatment + Enforcement
WCT / WPPT	1996	Digital Copyright	WIPO	Anti-DRM, online communication right
Doha Declaration	2001	TRIPS & Public Health	WTO	Compulsory licensing flexibility
Marrakesh Treaty	2013	Copyright for visually impaired	WIPO	Access exceptions for disability
India joins Madrid Protocol	2013	Trademarks	WIPO	Single filing for India TM in 130+ countries

⚖️ Top Cases — One-Liner

- Novartis v. UOI (2013 SC): TRIPS-compliant Section 3(d) rejects Gleevec patent — public health wins
- Bayer v. Natco/UOI (2012/2014): India's first compulsory licence — TRIPS Art.31 flexibilities used
- US v. India (WTO DS50, 1997): TRIPS dispute — India amended Patents Act to add product patents by 2005
- R.G. Anand v. Delux Films (1978 SC): Copyright infringement standard — applied in cross-border cases

🧠 Memory Mnemonics

■ TREATIES IN ORDER: 'Paris Before Berne Meets PCT With TRIPS' = Paris(1883), Berne(1886), Madrid(1891), PCT(1970), WIPO(1974), TRIPS(1994), WCT(1996)

■ PARIS CONVENTION PILLARS: 'NRC' = National Treatment, Right of Priority, Common Rules (Telle Quelle)

■ BERNE 3 AUTOS: Automatic protection, Automatic term (Life+50), Automatic moral rights — No formalities

■ TRIPS PRINCIPLES: 'MNM+E' = MFN, National Treatment, Minimum Standards, Enforcement

■ WIPO SYSTEMS (5): PCT(Patents), Madrid(TM), Hague(Designs), Lisbon(GI), Vienna(TM Classification)

■ COMPULSORY LICENCE CONDITIONS (TRIPS Art.31): 'PNRD' = Prior negotiation, National emergency exception, Remuneration paid, Domestic supply primarily

△ Exam TRAP Questions

- ▶ TRAP: 'Does WIPO administer TRIPS?' → NO. TRIPS is administered by WTO. WIPO administers Paris, Berne, PCT, Madrid, etc.
- ▶ TRAP: 'Does Berne require © symbol for protection?' → NO. Berne prohibits formalities. © is a UCC (1952) formality.
- ▶ TRAP: 'PCT grants an international patent' → NO. PCT streamlines filing. Each country grants its own patent.
- ▶ TRAP: 'TRIPS is the strongest IP treaty because it covers the most countries' → Partially wrong. TRIPS is strongest because it has ENFORCEMENT via WTO DSM.
- ▶ TRAP: 'India joined Madrid Agreement' → NO. India joined Madrid PROTOCOL (1989) in 2013, not the Agreement (1891).
- ▶ TRAP: 'TRIPS minimum copyright term is Life + 60' → NO. TRIPS minimum is Life + 50. India gives MORE (Life+60) using its right to grant higher protection.
- ▶ TRAP: 'Compulsory licence = free use of patent' → NO. Adequate remuneration must be paid to patent holder (TRIPS Art. 31(h)).

Star Ratings Summary — Unit II

Topic	Part	Rating
Role of WIPO in IPR	B	★★★★★
Madrid Agreement/Protocol	A	★★★★★
TRIPS Agreement — framework & impact	B	★★★★★
Paris Convention	A	★★★★★
Berne Convention	A	★★★★★
Compulsory Licensing (TRIPS) Problem	C	★★★★★
Cross-Border Copyright (Berne) Problem	C	★★★★★
WCT 1996 / Internet Treaties	A	★★★★

PCT 1970	A	★ ★ ★
Universal Copyright Convention	A	★ ★ ★

— END OF UNIT II —

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INTELLECTUAL PROPERTY LAW

Paper-V | 4th Semester | LL.B. (3-YDC)

Osmania University | Faculty of Law

UNIT III

Law of Copyright

Comprehensive Exam Preparation Notes

Target: 75+ Marks | Parts A, B & C

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UNIT III — OVERVIEW & EXAM INTELLIGENCE

What IS in This Unit

- Meaning, nature, history & socio-economic significance of copyright
- Copyright Act, 1957 — salient features, subject matter, neighbouring rights
- Idea-Expression Dichotomy
- Rights of authors and owners
- Assignment and licensing of copyright
- Collective management of copyright
- Infringement — criteria, exceptions, Fair Use/Fair Dealing doctrine
- Regulatory authorities under the Act
- Civil and criminal remedies for infringement

What is NOT in This Unit

- International copyright treaties (Paris, Berne, TRIPS) → Unit II
- Trade Marks Act, Designs Act → Unit IV
- Patents Act → Unit V
- GI Act, PPVFR Act → Unit I / IV / V

★ Predicted Questions (Based on Past Papers)

Topic	Part	Rating
Copyright Infringement — Criteria, Exceptions, Remedies	B	★★★★★
Idea-Expression Dichotomy	B	★★★★★
How Copyright Protects Economic & Moral Rights	B	★★★★★
Copyright Infringement (short note)	A	★★★★★
Treaties on Copyright / Anton Piller Order	A	★★★★★
Fair Use / Fair Dealing doctrine	A	★★★★★
Rights of Authors and Owners	A	★★★★★
Teacher using copyrighted notes (Problem)	C	★★★★★
Blog compiled into book without permission (Problem)	C	★★★★★
Internet webcasting cricket score (Problem)	C	★★★★★

1 2 3 4 Critical Numbers — Unit III

- Copyright Act — 1957 (India) | Amended significantly in 2012
- General copyright term — Life of author + 60 years (India)
- Anonymous/pseudonymous works — 60 years from publication
- Government works — 60 years from publication
- Cinematograph films / sound recordings — 60 years from publication

- Photographs — 60 years from publication
- Berne minimum term — Life + 50 years (India gives more)
- Copyright Board replaced by — Intellectual Property Appellate Board (IPAB) — now Commercial Courts
- Section 13 — Subject matter of copyright (works protected)
- Section 14 — Meaning of copyright (exclusive rights)
- Section 17 — First owner of copyright
- Section 19 — Assignment of copyright (must be in writing)
- Section 30 — Licence (voluntary)
- Section 31 — Compulsory licence
- Section 51 — Infringement of copyright
- Section 52 — Acts NOT constituting infringement (exceptions/fair dealing)
- Section 55 — Civil remedies (injunction, damages, accounts)
- Section 63 — Criminal offence (imprisonment up to 3 years + fine)
- Anton Piller Order — search and seizure without notice (civil)

PART A — SHORT NOTES (6 Marks Each)

Answer any FIVE. ~200–250 words each. Time: 5–7 min each.

A1. Copyright Infringement ★★★★★

Definition: Copyright infringement occurs when any person, without licence from the owner or without statutory authorisation, does anything that is the exclusive right of the copyright owner. Governed by Section 51, Copyright Act 1957.

Criteria for Infringement (Section 51):

- Does any act that only the copyright owner has the exclusive right to do (Section 14)
- Permits any place for profit to be used for communication of infringing work
- Imports infringing copies into India (except for private/domestic use)
- Sells, hires, offers for sale or hire any infringing copy

 **THREE-PART TEST FOR INFRINGEMENT:** (1) Plaintiff owns valid copyright; (2) Defendant copied the work; (3) Copying was of protected expression (not mere idea). ALL THREE must be proved.

Types of Infringement:

- Primary infringement — direct copying/reproduction
- Secondary infringement — selling, hiring, distributing infringing copies
- Online infringement — uploading/streaming without licence

 **Example:** B copies A's novel and sells printed copies commercially — primary infringement. C buys those copies knowing they are infringing and resells them — secondary infringement.

§ R.G. Anand v. M/s Delux Films (1978 SC) — Landmark: 'If the viewer, after reading/seeing both works, gets a feeling that one is a copy of the other, there is infringement.' Idea alone not protected — but expression is.

§ MRF Ltd v. Metro Tyres Ltd (Delhi HC) — substantial similarity in advertisement constituted infringement.

 **TIP:** Exam formula: Infringement = Copying of **EXPRESSION** (not idea) + Without licence + Of protected work. Mere similarity of theme/plot = NOT infringement. Substantial copying of expression = infringement.

A2. Fair Use / Fair Dealing Doctrine ★★★★★☆

Definition: Fair dealing is a statutory exception under Section 52, Copyright Act 1957, that permits use of copyrighted material without the owner's permission for specified purposes, provided the use is fair and does not harm the legitimate interests of the copyright owner.

Section 52 — Permitted Acts (Key Exceptions):

- Fair dealing for private use including research (Section 52(1)(a))
- Fair dealing for criticism or review (Section 52(1)(a)(ii))
- Fair dealing for reporting current events (Section 52(1)(b))
- Reproduction by teacher in the course of instruction (Section 52(1)(i))
- Performance in educational institution before audience of staff/students (Section 52(1)(j))
- Recording by broadcaster for transient/incidental use (Section 52(1)(b)(ii))
- Reproduction for judicial proceedings (Section 52(1)(c))

🟡 **FOUR FACTORS FOR FAIRNESS** (US-inspired, adopted by Indian courts): (1) Purpose & character of use (commercial vs. non-profit), (2) Nature of copyrighted work, (3) Amount/substantiality of portion used, (4) Effect on potential market for the work.

📌 Example: A professor photocopies one chapter of a textbook for distribution to 30 students as course material — likely fair dealing under Section 52(1)(i). But photocopying the entire book = NOT fair dealing.

⚖️ *Academy of General Education v. B. Malini Mallya (2009 Karnataka HC)* — Performance of copyrighted work in an educational institution for non-commercial purpose held to be fair dealing.

⚖️ *Super Cassettes v. Hamar Television (Delhi HC 2011)* — News channel using film clips in reporting held fair dealing for current events.

💡 **TIP:** India uses 'fair dealing' (closed list in Section 52) NOT the open-ended US 'fair use' doctrine. Important distinction — Indian fair dealing is **NARROWER**. Only specified purposes qualify.

A3. Rights of Authors and Owners (Economic & Moral Rights) ★★★★★

Definition: Copyright confers two categories of rights on authors/owners: (1) Economic Rights — the exclusive rights to exploit the work commercially; and (2) Moral Rights — the personal, non-transferable rights protecting the author's personality and integrity in the work.

Economic Rights (Section 14):

- ▶ Right of reproduction — copying in any material form
- ▶ Right of communication to the public — broadcasting, streaming, public performance
- ▶ Right of adaptation — translation, dramatisation, arrangement
- ▶ Right of distribution — sale, hire, offer for sale
- ▶ Right of rental — lending of films, software
- ▶ Right of translation

Moral Rights (Section 57):

- ▶ Right of paternity — right to claim authorship; right to prevent others from claiming authorship
- ▶ Right of integrity — right to object to distortion, mutilation or modification of the work that would prejudice the author's honour/reputation

🟡 **KEY RULE — MORAL RIGHTS (Section 57):** Moral rights **CANNOT** be assigned or waived — they remain with the **AUTHOR** even after economic rights are transferred to publisher/producer. Moral rights survive the author's death and vest in legal heirs.

📌 Example: A film director assigns all economic rights to a production house. Years later, the producer digitally alters the film. The director can still exercise moral rights (right of integrity) under Section 57 to object to the distortion — even though he has no economic rights left.

⚖️ *Amar Nath Sehgal v. Union of India (2005 Delhi HC)* — Landmark moral rights case. UOI demolished a mural by sculptor Sehgal without his consent. Court upheld author's right of integrity under Section 57 and awarded Rs. 5 lakh damages + ordered return of fragments.

💡 **TIP:** Moral rights = **INALIENABLE** (cannot be sold/transferred). Economic rights = **ASSIGNABLE**. Section 57 = Moral rights. Section 14 = Economic rights. *Amar Nath Sehgal* = the moral rights case to cite.

A4. Assignment and Licensing of Copyright ★★★★★

Definition: Assignment is the transfer of ownership of copyright (or any of its exclusive rights) from the owner to another person. Licensing is the grant of permission to use copyright without transferring

ownership. Both are governed by Sections 18–31, Copyright Act 1957.

Assignment (Sections 18–19):

- Copyright owner may assign all or any of the rights (Section 18)
- MUST be in writing and signed by the assignor or authorised agent (Section 19(1))
- Must specify: period, territorial extent, amount of royalty (Section 19)
- If period not specified — deemed 5 years; if territory not specified — deemed India (Section 19(5),(6))
- If assignee fails to exploit within 1 year — assignment deemed lapsed (Section 19A)

Licensing (Sections 30–31):

- Voluntary licence — owner grants licence in writing (Section 30)
- Compulsory licence — Copyright Board/IPAB can grant if owner refuses or terms unreasonable (Section 31)
- Statutory licence for cover versions — after 5 years of original sound recording (Section 31C)
- Licence for broadcasting — Section 31D (introduced in 2012 amendment)

ASSIGNMENT vs LICENCE: Assignment = transfer of ownership (assignee becomes owner). Licence = permission only (licensor remains owner). Assignment must be written. Licence can be oral (but writing preferred).

 Example: A music composer assigns copyright in her songs to a record label — the label becomes the copyright owner. She then grants a licence to a radio station to broadcast the songs — she remains the owner, the radio station just has permission.

 *Video Master v. Nishi Productions (Bombay HC 1998)* — Oral assignment held invalid under Section 19; assignment of copyright must be in writing.

 **TIP: Exam numbers: Assignment period default = 5 years; territory default = India only; Assignee must exploit within 1 year (Section 19A). These specific numbers are commonly tested.**

A5. Collective Management of Copyright ★★★★★

Definition: Collective management organisations (CMOs) are bodies that manage copyright on behalf of large numbers of authors/rights holders — collecting royalties, granting licences, and distributing proceeds. They are essential for rights that would be impractical to enforce individually (e.g., music played in restaurants, radio broadcasts).

Key Points:

- CMOs act as agents or trustees for rights holders
- Grant blanket licences to users (broadcasters, hotels, restaurants) covering entire repertoire
- Collect and distribute royalties to member creators
- India's major CMO: IPRS (Indian Performing Right Society) — for musical works
- PPL (Phonographic Performance Limited) — for sound recordings
- Authors Guild of India, SCRIPT (for screenwriters)
- Regulated under Copyright Act and Registration of Copyright Societies (Section 33)
- Copyright society must be registered with Central Government (Section 33(3))

WHY CMOs MATTER: No individual musician can monitor and collect royalties from every restaurant, hotel, and radio station playing their song. CMOs solve this by acting collectively — they are the practical enforcement arm of copyright for performing rights.

 Example: When a hotel plays background music in its lobby, it cannot negotiate with every composer individually. Instead, it gets a blanket licence from IPRS and PPL, paying one annual fee

covering all their member works.

⚖️ *IPRS v. Eastern Indian Motion Picture Association (1977 SC)* — Established that IPRS has right to collect royalties on behalf of music composers from film producers for public performance rights.

💡 *TIP: Section 33 = Registration of copyright societies. IPRS = musical works. PPL = sound recordings. Remember: CMOs solve the 'transaction cost problem' of individual enforcement.*

A6. Anton Piller Order ★★★★★

Definition: An Anton Piller Order (now called a 'Search Order' in UK) is an ex parte civil court order that allows the plaintiff to enter the defendant's premises, search for, inspect, and seize infringing material — WITHOUT prior notice to the defendant. It is a powerful civil remedy against copyright infringement named after the case *Anton Piller KG v. Manufacturing Processes Ltd (1976)*.

Key Features:

- Granted EX PARTE — defendant has NO notice; element of surprise is essential
- Designed to prevent destruction of evidence by the infringer
- Plaintiff must be accompanied by a solicitor/advocate when executing the order
- Defendant cannot be forced to allow entry — but refusal = contempt of court
- Must be accompanied by an injunction restraining defendant from destroying evidence

Conditions for Grant (from Anton Piller case):

- Extremely strong prima facie case of infringement
- Actual or potential damage must be very serious
- Clear evidence that defendant possesses infringing documents/articles
- Real possibility that defendant would destroy evidence if notice given

📌 **REMEMBER: Anton Piller = Search and Seizure WITHOUT notice. Mareva Injunction = Freezing of assets WITHOUT notice. Both are ex parte emergency civil remedies in IP cases.**

🔴 Example: A film producer discovers a piracy ring is duplicating DVDs of an unreleased film from a warehouse. An Anton Piller Order allows the producer to raid the warehouse with a court officer before the pirates can destroy the masters.

⚖️ *Anton Piller KG v. Manufacturing Processes Ltd (1976) UK CA* — Origin case. Court authorised inspection and seizure of design drawings being used by defendant to manufacture competing products.

⚖️ *Taj Television v. Rajan Mandal (Delhi HC 2002)* — Anton Piller Order granted in India for cable TV piracy case; Indian courts have adopted this remedy.

💡 *TIP: Anton Piller = 4 conditions: (1) Strong prima facie case, (2) Serious damage, (3) Evidence possessed by defendant, (4) Risk of destruction. The ORDER = search. The result = seizure. Different from criminal search — it's a CIVIL remedy.*

A7. Neighbouring Rights ★★★★★

Definition: Neighbouring rights (also called related rights) are rights related to copyright that protect those who contribute to the creation and dissemination of works — specifically performers, producers of phonograms (sound recordings), and broadcasting organisations — who are not the original authors but play important roles in bringing works to the public.

Three Categories of Neighbouring Rights:

- Performers' Rights: Actors, singers, musicians, dancers — right to authorise fixation, broadcasting,

and communication of their performances (Section 38, 38A Copyright Act)

- Producers' Rights: Producers of sound recordings (phonograms) — right to reproduce, sell, hire, communicate sound recordings (Section 14(e))
- Broadcasters' Rights: Broadcasting organisations — right to re-broadcast, record, communicate broadcasts (Section 37)

■ **DURATION OF NEIGHBOURING RIGHTS: Performers' Rights = 50 years from performance. Sound Recording = 60 years from publication. Broadcasting Rights = 25 years from broadcast. (India Copyright Act)**

📌 Example: A singer performs at a concert. The concert promoter records the performance. The singer has performers' rights over the performance; the record company has producers' rights over the recording; the TV channel broadcasting it has broadcaster's rights. THREE separate rights from ONE event.

🎵 *Fortune Films v. Dev Anand (Bombay HC 1979) — Performer's right to control exploitation of performance recognised even before 1994 amendment explicitly codified performers' rights.*

💡 *TIP: Neighbouring rights ≠ Copyright. Copyright = original creator (author, composer). Neighbouring rights = performers, producers, broadcasters. Berne Convention covers copyright; Rome Convention (1961) and WPPT (1996) cover neighbouring rights.*

PART B — LONG ESSAYS (15 Marks Each)

Answer any TWO. ~600–750 words. Time: 20–25 min each.

B1. Idea-Expression Dichotomy in Copyright Law & Its Impact on Scope of Protection

Introduction

The idea-expression dichotomy is the foundational principle of copyright law that distinguishes between unprotectable ideas (which belong to the public domain) and protectable expression (which belongs to the author). This doctrine resolves the fundamental tension between encouraging individual creativity (through exclusive rights) and enabling the free flow of information and knowledge (by keeping ideas available to all). Without this distinction, copyright would become a monopoly over thought itself — a result incompatible with freedom of expression, scientific progress, and democratic discourse.

 **THE GOLDEN RULE:** Copyright protects **EXPRESSION**, not **IDEAS**. The idea belongs to everyone. The specific, original expression of that idea belongs to the author.

1. Statutory Basis

In India, the idea-expression dichotomy is not explicitly codified but is firmly embedded in the definition of 'work' and 'copyright' in the Copyright Act, 1957:

- Section 13: Copyright subsists in 'original literary, dramatic, musical and artistic works' — the word 'original' implies the expression must originate from the author
- Section 2(y): 'Work' means any work in which copyright subsists — implying only the concrete expression constitutes the protectable 'work'
- Internationally, TRIPS Article 9(2) explicitly states: 'Copyright protection shall extend to expressions and not to ideas, procedures, methods of operation or mathematical concepts as such.'
- WCT Article 2 similarly confirms: ideas, procedures, methods of operation, mathematical concepts not protected by copyright

2. The Doctrine Explained

The dichotomy operates on a spectrum. At one end are pure ideas (completely unprotectable); at the other end are specific, detailed expressions (fully protectable). In between lies a merger zone where idea and expression blend — this is where courts apply the 'merger doctrine.'

Level	Status	Example
Pure idea	Not protected	'Write a story about star-crossed lovers'
Theme / plot outline	Not protected	'Romeo & Juliet — two feuding families, tragic end'
Detailed plot structure	Partially protected	Specific sequence of scenes, chapters
Specific expression	Fully protected	The actual sentences, dialogue, descriptions

3. The Merger Doctrine

When an idea can only be expressed in one or very few ways, the idea and expression are said to 'merge' — and copyright does not protect the expression (to avoid monopolising the idea itself).

 Example: The idea of a calendar showing dates cannot be expressed in many different ways — the

basic grid layout of a calendar cannot be copyrighted because the idea and expression have merged.

⚖️ *Baker v. Selden (1879 US SC)* — *Seminal case. Book explaining a bookkeeping system published; a competitor used the same accounting forms. Held: The idea of the accounting system cannot be copyrighted; only the specific literary expression in the book is protected. Anyone can use the system.*

4. The Scenes à Faire Doctrine (Related Principle)

Standard, stock elements that naturally flow from a given genre or setting are not protectable — because they are necessary elements of any similar work (related to idea-expression dichotomy).

🔴 Example: In a war novel, scenes of training, battle chaos, comradeship, and death are standard genre elements (scenes à faire) — they cannot be copyrighted. Only specific, unique expression of these scenes can be protected.

5. Application in India — Key Cases

⚖️ *R.G. Anand v. M/s Delux Films (1978 SC)* — *THE LEADING INDIAN CASE. Plaintiff wrote a play about communal harmony between Hindus and Sikhs. Defendant made a film on the same theme. SC held: An idea, subject matter, theme, or historical fact cannot be copyrighted. If a viewer, after seeing both works, feels that one is a copy of the other — infringement. But similarity of theme/idea alone is not infringement. The test is substantial similarity of expression.*

⚖️ *Zee Telefilms v. Sundial Communications (2003 Bombay HC)* — *Concept note for a TV show held protectable as expression, not mere unprotectable idea — distinction between a bare concept (idea) and a developed, detailed treatment (expression).*

⚖️ *Anil Gupta v. Kunal Dasgupta (2002 Delhi HC)* — *Reality show concept: 'Swayamvar' — bare idea not protected; but if the detailed format, structure, characters, and episodes are developed in writing, the expression is protected.*

6. Impact on Scope of Copyright Protection

- Narrows protection: Prevents copyright from becoming a monopoly on knowledge or culture
- Widens public domain: Ideas, facts, data, historical events remain available for all to use
- Prevents over-protection: Functional works (legal forms, accounting systems) — expression protected but functional method is not
- Enables creativity: Second authors can write on same theme/subject as long as they use their own expression
- Digital context: Computer programs — algorithms (ideas) not protected; specific code (expression) is

🟡 **PRACTICAL IMPACT:** Two authors can write about the French Revolution (same idea). Neither can copy the other's specific sentences, descriptions, or analysis (protected expression). History belongs to all; specific prose belongs to the author.

Conclusion

The idea-expression dichotomy is copyright law's great balancing act. It incentivises authors by protecting their unique expression while ensuring that the building blocks of knowledge — ideas, facts, concepts, and methods — remain freely available for all to build upon. In India, this principle is deeply embedded in the Copyright Act, 1957 and has been robustly applied by courts from R.G. Anand to Zee Telefilms. As copyright confronts new challenges — AI-generated content, data compilations, software — the idea-expression dichotomy remains the lodestar for determining what can and cannot be owned.

🟡 **CONSTITUTIONAL LINK:** The idea-expression dichotomy aligns with Article 19(1)(a) (freedom of speech and expression) — copyright should not restrict free discourse. The SC in R.G. Anand recognised this balance.

B2. Copyright Infringement — Criteria, Exceptions & Remedies

Introduction

Copyright infringement is the unauthorised exercise of any right exclusively belonging to the copyright owner. As creative content migrates to digital platforms and global distribution becomes instantaneous, copyright infringement has become both more pervasive and more economically damaging. The Copyright Act, 1957 provides a comprehensive regime — defining infringement under Section 51, exempting certain uses under Section 52 (fair dealing), and providing civil remedies under Section 55 and criminal penalties under Section 63.

1. Criteria for Copyright Infringement (Section 51)

Infringement occurs when any person, without a licence from the owner or without statutory authority:

- Does anything that is the copyright owner's exclusive right under Section 14 (reproduction, communication, adaptation, etc.)
- Permits any place of profit to be used for communication of infringing work to the public
- Sells or lets for hire, or offers for sale/hire, any infringing copy
- Distributes infringing copies for trade or to such an extent as to prejudice the owner
- Imports infringing copies into India (other than private/domestic use)

■ **THREE-PART TEST:** (1) Valid copyright owned by plaintiff; (2) Defendant copied/reproduced the work; (3) Copied material is protected **EXPRESSION** (not mere idea). Substantial similarity of expression = key test.

2. Key Case Law on Infringement Criteria

§§ *R.G. Anand v. M/s Delux Films (1978 SC)* — If, after seeing both works, a viewer feels one is a copy of the other, infringement is established. Theme/idea alone NOT protected.

§§ *Eastern Book Co. v. D.B. Modak (2008 SC)* — Copy-edited judicial opinions: Court held that minimal creativity (selection and arrangement) in headnotes was protectable; but bare factual reproduction of judgments (government works under Section 52) is not infringement.

§§ *MRF Ltd v. Metro Tyres (Delhi HC)* — Substantial similarity in advertisement film constituted infringement of cinematograph film copyright.

3. Exceptions — Acts NOT Constituting Infringement (Section 52)

Section 52 provides a closed list of permitted acts that do NOT amount to infringement (India's fair dealing provisions):

Exception	Section	Condition
Private use / research	52(1)(a)	For personal study, not commercial
Criticism or review	52(1)(a)(ii)	Sufficient acknowledgment required
Reporting current events	52(1)(b)	News reporting — press, broadcast
Judicial proceedings	52(1)(c)	Use in courts, tribunals
Teaching / instruction	52(1)(i)	By teacher in educational institution
Performance in school/college	52(1)(j)	Before audience of staff & students
Reproduction by libraries	52(1)(n)	For preservation — not for sale
Cover versions (sound recording)	31C	After 5 years; royalty payable

■ **INDIA vs USA:** India uses **CLOSED LIST** fair dealing (Section 52) — only listed purposes qualify. USA uses **OPEN** fair use (4-factor test). Indian fair dealing is **NARROWER** and more certain but

less flexible.

4. Civil Remedies for Infringement (Section 55)

- Injunction — restraining order to stop infringement (most important remedy — can be interim)
- Damages — compensation for loss suffered by plaintiff
- Account of profits — defendant must account for and pay profits made from infringement
- Delivery up — delivery of all infringing copies to plaintiff for destruction
- Anton Piller Order — ex parte search and seizure order to preserve evidence (civil)
- Mareva Injunction — freezing of defendant's assets to prevent dissipation

INNOCENT INFRINGEMENT RULE (Section 55(2)): If defendant was not aware that copyright subsisted in the work, plaintiff is only entitled to injunction — NOT damages. This protects good-faith defendants.

5. Criminal Remedies (Section 63)

- Offence: Knowingly infringing or abetting infringement of copyright
- Punishment: Imprisonment minimum 6 months — maximum 3 years + Fine min Rs. 50,000 — max Rs. 2,00,000
- Enhanced penalty for second offence (Section 63A): Minimum 1 year imprisonment
- Search and seizure: Police can seize infringing copies (Section 64) without warrant
- Criminal offence does NOT require proof of financial loss — mere act of infringement suffices

CIVIL vs CRIMINAL: Civil (Section 55) — needs proof of damage; remedies = injunction + damages. Criminal (Section 63) — no need to prove damage; remedy = imprisonment + fine. Both can be pursued simultaneously.

6. Regulatory Authorities

- Registrar of Copyrights — maintains Register of Copyrights; Section 44
- Copyright Board — adjudicated licensing disputes; replaced by IPAB (Intellectual Property Appellate Board) in 2017; IPAB abolished 2021, jurisdiction transferred to High Courts/Commercial Courts

⚖️ *Super Cassettes Industries v. Hamar Television Network (Delhi HC 2011)* — Broadcaster's use of copyrighted music without licence; statutory licence under Section 31D required; injunction granted.

⚖️ *Tips Industries v. Wynn Music (Bombay HC 2019)* — Streaming service cannot rely on Section 31D (broadcasting licence) for on-demand streaming — Section 31D applies only to radio/TV broadcast, not internet streaming.

Conclusion

Copyright infringement law under the Copyright Act, 1957 reflects a carefully calibrated balance: robust protection of authors' rights through civil and criminal remedies, while ensuring that education, research, criticism, and journalism can engage freely with copyrighted material through the fair dealing exceptions. The digital era has strained these boundaries — particularly around online streaming, AI-generated content, and user-generated uploads — but the foundational principles of the Act, reinforced by judicial creativity and the 2012 amendments, remain fit for purpose. The constitutional basis for this regime lies in Articles 19(1)(a), 300A, and India's international obligations under Berne Convention and TRIPS.

B3. How Copyright Protects Economic Interest and Moral Rights of the Author

Introduction

Copyright serves a dual purpose: (1) Economic protection — ensuring authors can financially benefit

from their creative labour; and (2) Moral protection — safeguarding the author's personality, integrity, and relationship with their work even after it is sold or assigned. Together, these two dimensions recognise the author as both an economic participant in the marketplace and as a human being whose creative identity is embedded in the work.

1. Economic Rights of the Author (Section 14, Copyright Act 1957)

Economic rights give the copyright owner the exclusive right to commercially exploit the work. These rights can be assigned, licensed, or transferred:

Economic Right	Meaning	Example
Reproduction right	Copy/reproduce in any form	Printing copies of a novel
Distribution right	Sell/hire/offer for sale	Selling books at a bookstore
Communication right	Broadcast/stream/perform publicly	Streaming a film on OTT
Adaptation right	Translate/dramatise/arrange	Hindi adaptation of English novel
Rental right	Hire out films/software	DVD rental shops
Translation right	Convert to another language	Translating Telugu poetry to English

ECONOMIC RIGHTS = PROPERTY: These rights are assignable, licensable, inheritable. They can be sold to publishers, producers, record labels. They last for author's life + 60 years in India (Life + 50 under Berne minimum).

2. Moral Rights of the Author (Section 57, Copyright Act 1957)

Moral rights are personal rights that protect the author's honour and reputation regardless of whether they still own the economic rights:

- Right of Paternity (Section 57(1)(a)): Author has the right to CLAIM AUTHORSHIP of the work and prevent others from falsely claiming authorship
- Right of Integrity (Section 57(1)(b)): Author has the right to OBJECT to any distortion, mutilation, modification, or other act in relation to the work that would be prejudicial to the author's honour or reputation

MORAL RIGHTS SURVIVAL RULE: Section 57(3) — Moral rights survive EVEN AFTER ASSIGNMENT of copyright. They vest in the legal heirs of the author after death. They CANNOT be waived or transferred by contract.

3. Key Distinctions — Economic vs Moral Rights

Feature	Economic Rights	Moral Rights
Transferable?	Yes — assigned/licensed	No — inalienable
Waivable?	Yes — by contract	No — cannot be waived
Governed by	Section 14	Section 57
Duration	Life + 60 years	Survive life + vest in heirs
Purpose	Commercial exploitation	Personal honour/reputation
After assignment?	Belong to assignee	Remain with author

4. Landmark Cases

§§ *Amar Nath Sehgal v. Union of India* (2005 Delhi HC) — Plaintiff sculpted a bronze mural for Vigyan Bhawan (Government building). Government later demolished it and stored the fragments carelessly. Court held: (1) Right of integrity under Section 57 violated; (2) The author's moral rights survived even though the copyright in a government commission may vest in the government; (3) Court ordered return of mural fragments and awarded Rs. 5 lakhs as damages for moral rights violation. This is the foundational Indian moral rights case.

§§ *Mannu Bhandari v. Kala Vikas Pictures* (Delhi HC 1987) — Film adaptation of plaintiff's novel made substantial changes that distorted her work. Court upheld right of integrity under Section 57 — author could object even though she had contractually assigned the adaptation rights.

§§ *Phoolan Devi v. Shekhar Kapur* (Delhi HC 1994) — Film 'Bandit Queen' based on plaintiff's life. Court considered right of integrity when the portrayal was claimed to be distorted and harmful to the subject's dignity.

5. Socio-Economic Significance

- Economic rights enable authors to earn a livelihood from their creative work — incentivising investment in time and talent
- Moral rights recognise that a creative work is an extension of the author's personality — not merely a commodity
- Together they attract more creativity into the economy: authors know both their income and their reputation are protected
- Moral rights are particularly important for visual artists, sculptors, and architects whose works are physically altered or destroyed

Conclusion

Copyright's dual protection — economic and moral — reflects the philosophy that a creative work has both commercial value and personal meaning. The Copyright Act, 1957, particularly through Sections 14 and 57, ensures that authors participate in the economic benefits their works generate while retaining a permanent, inalienable bond with their creative expression. Amar Nath Sehgal stands as a testament to the judiciary's recognition that art is not merely property — it is identity. This dual protection is rooted in Articles 19(1)(a) and 21 (dignity) of the Constitution, recognising creativity as both speech and personhood.

🔑 PART C — PROBLEM QUESTIONS / IRAC METHOD (10 Marks Each)

Answer any TWO. Strict IRAC format. Time: 15 min each.

C1. Problem: Teacher Photocopies Copyrighted Notes for Students — Infringement?

(Based on Nov 2022 Q16 & Aug/Sep 2024 Q16: A teacher uses copies of notes from a copyrighted source to be used in class for the benefit of students. Does it amount to infringement of copyright?)

I — ISSUE

Whether a teacher's reproduction and distribution of copyrighted material to students for classroom instruction constitutes copyright infringement under the Copyright Act, 1957, or whether it falls within the fair dealing exception under Section 52.

R — RULE

The following provisions govern:

1. Section 51, Copyright Act 1957: Infringement occurs when a person does any act which is the exclusive right of the copyright owner without licence or statutory authority.
2. Section 14(a)(i): Reproduction of a literary work in any material form is the exclusive right of the copyright owner.
3. Section 52(1)(i) — KEY EXCEPTION: 'The reproduction of any work by a teacher or a pupil in the course of instruction' does NOT constitute an infringement of copyright.
4. Section 52(1)(j): Performance of a literary, dramatic, or musical work in the course of educational institution's activities before an audience of teachers, pupils, and parents — not infringement.
5. Section 52(1)(a): Fair dealing with any work for private use including research — not infringement.

■ **CRITICAL EXCEPTION: Section 52(1)(i) — Reproduction by teacher/pupil IN THE COURSE OF INSTRUCTION = NOT infringement. This is a specific, statutory safe harbour for educational use.**

A — APPLICATION

Applying the rules to the facts:

- The person is a TEACHER — satisfies the identity requirement of Section 52(1)(i)
- The use is for classroom instruction — satisfies the 'in the course of instruction' requirement
- The notes are used FOR THE BENEFIT OF STUDENTS in the class — educational/instructional purpose
- Section 52(1)(i) expressly covers reproduction by teacher in the course of instruction

— the teacher's act falls squarely within this exception

HOWEVER — important limitations apply:

- If the teacher reproduces the ENTIRE book and distributes commercially → goes beyond Section 52(1)(i) — likely infringement
- If reproduction is for a specific chapter/portion relevant to the lesson → within the exception
- If copies are sold by the teacher → commercial purpose negates the educational exception
- If used in a private coaching centre (not a recognised educational institution) → may not qualify

Academy of General Education v. B. Malini Mallya (2009 Karnataka HC) — Performance of copyrighted dance in educational institution held to be within Section 52 exception; courts construe educational exceptions generously for bona fide instruction.

C — CONCLUSION

NO — It does NOT amount to copyright infringement IF:

- The teacher reproduces relevant portions (not the entire work) of the copyrighted notes
- The reproduction is genuinely in the course of instruction in an educational institution
- The copies are not sold or used for any commercial purpose

The act is expressly protected under Section 52(1)(i), Copyright Act 1957. However, wholesale reproduction of entire books or commercial distribution by the teacher would cross the line into infringement.

FINAL ANSWER: Section 52(1)(i) — Teacher's reproduction in course of instruction = NOT infringement. Educational purpose is a statutory exception. But reproduction must be proportionate and non-commercial.

C2. Problem: Blog Compiled into Book Without Permission — Infringement?

(Based on July/August 2025 Q14: 'A' writes a blog series and publishes it online. Without permission, 'B' compiles and publishes the content in a book under his own name. 'A' wants to file a suit for copyright infringement. Advise 'A'.)

I — ISSUE

(1) Whether 'A' has copyright in the blog series published online; (2) Whether 'B's compilation and publication of the blog content in a book under his own name, without 'A's permission, amounts to copyright infringement; and (3) What remedies are available to 'A'.

R — RULE

The following legal provisions govern:

1. Section 13(1)(a), Copyright Act 1957: Copyright subsists in original LITERARY WORKS — a

blog constitutes a literary work as it is a written composition expressed in language.

2. Section 2(o): 'Literary work' includes tables and compilations including computer databases — blogs are literary works.

3. Berne Convention, Article 5(2): No formality (registration) required — copyright is automatic on creation.

4. Section 17: First owner of copyright is the AUTHOR — 'A' is the first owner of the blog series.

5. Section 14(a): Reproduction, adaptation, and distribution are exclusive rights of the copyright owner.

6. Section 51: Infringement occurs when a person does without licence what is the exclusive right of the copyright owner.

7. Section 57(1)(a): False claim of authorship violates the author's moral right of paternity.

8. Section 55: Civil remedies — injunction, damages, account of profits, delivery up.

9. Section 63: Criminal offence — imprisonment 6 months to 3 years + fine.

 **KEY RULES:** (1) Online blogs = literary works with automatic copyright (no registration needed). (2) Compiling someone else's work without permission = reproduction + adaptation = infringement. (3) Publishing under own name = additional violation of moral rights (false authorship claim).

A — APPLICATION

Applying the rules to the facts:

- 'A' is the AUTHOR of an original blog series — copyright subsists automatically under Section 13 from the moment of creation/publication
- No registration is needed — Berne principle (adopted in India) confirms automatic protection
- 'B' compiled 'A's' blog content and published it as a book — this is reproduction of a literary work under Section 14(a)(i) = exclusive right of 'A'
- 'B' did this WITHOUT PERMISSION — no licence, no assignment, no statutory exception applies
- 'B' published it UNDER HIS OWN NAME — this is a false claim of authorship violating 'A's' moral right of paternity under Section 57(1)(a)
- No fair dealing exception (Section 52) applies — 'B' is selling commercially, not using for research/criticism/education

☞ Civic Chandran v. Ammini Amma (1996 Kerala HC) — Copyright in creative expressions is automatically protected; commercial exploitation without licence = infringement.

☞ Mannu Bhandari v. Kala Vikas Pictures (Delhi HC 1987) — Adaptation of original literary work without permission and with distortion = infringement + moral rights violation.

C — CONCLUSION

'B' has committed copyright infringement. 'A' should:

- File a CIVIL SUIT under Section 55 seeking: (a) Injunction to stop further publication/sale of the book; (b) Damages for loss suffered; (c) Account of profits earned by 'B'; (d) Delivery up of all copies of the infringing book for destruction

- Assert MORAL RIGHTS violation under Section 57 — 'B's false claim of authorship violates 'A's right of paternity; court can order correction of authorship
- File CRIMINAL COMPLAINT under Section 63 — imprisonment up to 3 years + fine up to Rs. 2 lakhs for knowingly infringing copyright
- Apply for ANTON PILLER ORDER to seize existing stock of infringing books before 'B' destroys them

FINAL ANSWER: Yes — clear copyright infringement under Section 51 + moral rights violation under Section 57. 'A' has strong case for injunction, damages, account of profits (civil) AND criminal prosecution (Section 63). Online blog has automatic copyright — no registration needed.

C3. Problem: ISP Webcasting Live Cricket Scores — Copyright Infringement?

(Based on Nov 2022 Q13: An internet service provider webcasts ball-by-ball live score of a one-day cricket match officially telecast on a TV channel. Does it amount to infringement of copyright?)

I — ISSUE

Whether an internet service provider (ISP) that webcasts ball-by-ball live cricket scores — taken from a TV channel's official broadcast — commits copyright infringement of the broadcasting organisation's rights or of any other copyright under the Copyright Act, 1957.

R — RULE

The following provisions govern:

1. Section 37, Copyright Act 1957: A broadcasting organisation has a 'broadcast reproduction right' — the exclusive right to re-broadcast the broadcast, cause the broadcast to be heard/seen by the public on payment, and make any sound/visual recording of the broadcast. Duration: 25 years from broadcast.
2. Section 14(e): The owner of a sound recording or broadcast has exclusive rights including the right to 'communicate' it to the public.
3. Section 2(ff): 'Communication to the public' means making any work available for being seen/heard or otherwise enjoyed by the public directly or by any means of display or diffusion — this includes webcasting.
4. Section 51: Doing any act that is the exclusive right of the copyright owner without licence = infringement.
5. Facts vs Expression: Pure facts (cricket scores — numbers like 245/6) are NOT copyrightable. But the BROADCAST (commentary, camera angles, graphics, presentation) IS protected under Section 37.

CRUCIAL DISTINCTION: RAW SCORES (facts) = not protected. BROADCAST FEED (the audio-visual presentation of those scores, commentary, live camera) = protected by broadcaster's right under Section 37.

A — APPLICATION

Applying the rules to the facts — TWO scenarios must be distinguished:

Scenario A: ISP uses the actual broadcast feed / video stream

- If ISP is taking the actual TV channel's broadcast signal and re-streaming it on the internet → this is RE-BROADCASTING the broadcast
- This directly violates Section 37 (broadcast reproduction right) of the TV channel
- Also violates right of 'communication to the public' under Section 14
- RESULT: CLEAR INFRINGEMENT of the broadcaster's right

Scenario B: ISP only provides text-based ball-by-ball score updates (numbers)

- Pure factual data — '3rd ball of 5th over, 4 runs scored by Kohli, total 245/6' — these are FACTS
- Facts are not copyrightable (idea-expression dichotomy; Eastern Book Co. principle)
- The arrangement/selection of facts may attract copyright only if sufficiently original
- RESULT: Mere text score updates likely NOT infringement — but if copied from TV graphic overlay verbatim, could be infringement

🏏 *Star India Pvt Ltd v. Piyush Agarwal (Delhi HC 2013)* — Court held that ball-by-ball data can be protected if sufficiently organised; broadcaster's exclusive rights in live broadcast signal are protected under Section 37.

🏏 *Board of Control for Cricket in India v. Arvee Enterprises (Delhi HC 2014)* — BCCI's rights in live cricket events; exclusive telecast rights create protectable broadcast rights.

C — CONCLUSION

It DEPENDS on the nature of the ISP's webcast:

- If ISP re-streams the actual broadcast (audio-visual feed) → YES, infringement of Section 37 broadcast reproduction right
- If ISP provides only raw text score data → likely NOT infringement (facts not protected)
- If ISP systematically scrapes and reproduces the organised data presentation from the broadcast → possibly infringement of compilation copyright or broadcast right

🟡 **FINAL ANSWER:** Re-broadcasting the TV channel's live feed on internet = YES, infringement under Section 37. Mere text-based score updates = likely NO infringement (unprotectable facts). The broadcast (commentary, graphics, camera) is protected; the raw score data is not.

⚡ QUICK REVISION SHEET — UNIT III

Key Section Numbers — Copyright Act 1957

Section	Content
Section 13	Subject matter — works in which copyright subsists
Section 14	Meaning of copyright (exclusive economic rights)
Section 17	First owner of copyright = author (employer if in employment)
Section 18	Assignment of copyright
Section 19	Assignment must be in writing Default period: 5 years Default territory: India
Section 19A	Assignment lapses if assignee fails to exploit within 1 year
Section 30	Voluntary licence by copyright owner
Section 31	Compulsory licence (Copyright Board/IPAB)
Section 31C	Cover version licence — after 5 years of original sound recording
Section 31D	Statutory licence for broadcasting (2012 amendment)
Section 33	Registration of copyright societies (CMOs — IPRS, PPL)
Section 37	Broadcast reproduction right — 25 years
Section 38/38A	Performers' rights — 50 years from performance
Section 51	Infringement of copyright
Section 52	Acts NOT constituting infringement (fair dealing list)
Section 52(1)(i)	Reproduction by teacher in course of instruction — NOT infringement
Section 55	Civil remedies — injunction, damages, accounts, delivery up
Section 57	Moral rights — paternity + integrity (inalienable)
Section 63	Criminal offence — 6 months to 3 years + Rs.50,000 to Rs.2,00,000 fine
Section 64	Police seizure of infringing copies without warrant

Duration of Rights

Type of Work	Term
Literary/Dramatic/Musical/Artistic (published)	Life of author + 60 years
Anonymous / Pseudonymous works	60 years from publication
Government / official works	60 years from publication
Cinematograph films	60 years from publication
Sound recordings (phonograms)	60 years from publication
Photographs	60 years from publication

Broadcast reproduction right	25 years from broadcast
Performers' rights	50 years from performance
Berne Convention minimum	Life + 50 years

🔥 Top Cases — One-Liner

- R.G. Anand v. Delux Films (1978 SC): Idea not protected; expression is; viewer-feels-copy test
- Amar Nath Sehgal v. UOI (2005 Delhi HC): Moral rights violated when govt demolished sculpture; Rs.5L damages
- Eastern Book Co. v. D.B. Modak (2008 SC): Minimal creativity in headnotes = protectable; bare facts = not
- Baker v. Selden (1879 US SC): Accounting system idea not protected; only literary description protected
- Mannu Bhandari v. Kala Vikas (Delhi HC 1987): Distorted film adaptation = moral rights infringement (integrity)
- Tips Industries v. Wynk Music (Bombay HC 2019): Section 31D broadcasting licence ≠ on-demand streaming
- Anton Piller KG v. Manufacturing Processes (1976 UK): Origin of ex parte search/seizure order in IP
- IPRS v. Eastern India Motion Picture Assoc. (1977 SC): IPRS can collect royalties for public performance rights

🧠 Memory Mnemonics

■ **ECONOMIC RIGHTS (Section 14): 'RCDART'** = Reproduction, Communication to public, Distribution, Adaptation, Rental, Translation

■ **MORAL RIGHTS (Section 57): 'PI'** = Paternity (claim authorship) + Integrity (object to distortion). Both INALIENABLE.

■ **INFRINGEMENT TEST: '3Cs'** = Copyright valid, Copying proved, Copied Expression (not idea)

■ **CIVIL REMEDIES (Section 55): 'IDAD'** = Injunction, Damages, Account of profits, Delivery up

■ **FAIR DEALING PURPOSES (Section 52): 'PRICE'** = Private use/research, Reporting news, Instruction (teaching), Criticism/review, Educational performance

■ **DURATION RULE:** Author's work = Life+60. Everything else (films, recordings, photos, broadcasts) = 60/50/25 years from publication/broadcast.

⚠️ Exam TRAP Questions

- ▶ TRAP: 'Copyright requires registration in India' → NO. Automatic from creation (Berne principle, Section 13). Registration is optional (Section 44) — useful as evidence, not mandatory.

- ▶ TRAP: 'Moral rights can be waived by contract' → NO. Section 57 — moral rights are INALIENABLE. Any contract clause purporting to waive moral rights is unenforceable.
- ▶ TRAP: 'Fair dealing in India allows any non-commercial use' → NO. Section 52 is a CLOSED LIST — only specified purposes (private use, research, education, criticism, news). Not all non-commercial uses qualify.
- ▶ TRAP: 'Assignment of copyright can be oral' → NO. Section 19(1) — assignment must be in WRITING, signed by assignor.
- ▶ TRAP: 'Facts/data are protected by copyright' → NO. Facts, ideas, data, historical events are NOT copyrightable. Only original EXPRESSION of facts is protected.
- ▶ TRAP: 'Anton Piller Order is a criminal remedy' → NO. It is a CIVIL remedy — search and seizure ordered by civil court without notice to defendant.
- ▶ TRAP: 'Copyright in India lasts Life + 70 years' → NO. India gives Life + 60. USA gives Life + 70. Berne minimum is Life + 50.
- ▶ TRAP: 'Section 31D covers internet streaming' → NO. Tips v. Wynk held Section 31D covers only radio/TV broadcast, NOT on-demand internet streaming.

Star Ratings Summary — Unit III

Topic	Part	Rating
Copyright Infringement — Criteria, Exceptions, Remedies	B	★★★★★
Idea-Expression Dichotomy	B	★★★★★
How Copyright Protects Economic & Moral Rights	B	★★★★★
Teacher using copyrighted notes (Problem)	C	★★★★★
Blog compiled into book (Problem)	C	★★★★★
Copyright Infringement (short note)	A	★★★★★
Anton Piller Order	A	★★★★★
Fair Use / Fair Dealing	A	★★★★★
Rights of Authors and Owners	A	★★★★★
Cricket webcast (Problem)	C	★★★★★
Assignment and Licensing	A	★★★★
Collective Management / CMOs	A	★★★★
Neighbouring Rights	A	★★★★

— END OF UNIT III —

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UNIT IV

Law of Trademarks & Industrial Designs

Comprehensive Exam Preparation Notes

Target: 75+ Marks | Parts A, B & C

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UNIT IV — OVERVIEW & EXAM INTELLIGENCE

What IS in This Unit

- Rationale for trademark protection — Trade Marks Act, 1999
- Definitions: trademark, trade description, conventional vs non-conventional marks
- Trademarks and Internet Domain Names
- Registration of trademarks — procedure, absolute & relative grounds for refusal
- Statutory rights of trademark owners
- Passing Off (common law) vs Infringement (statutory) — distinction + remedies
- Industrial Designs — concept, definition, Designs Act 2000
- Registration of designs — procedure, rights of design holder
- Copyright in designs, design piracy, remedies

What is NOT in This Unit

- GI Act 1999 in detail → Unit I
- Patents Act 1970 → Unit V
- Copyright Act 1957 → Unit III
- International treaties in detail → Unit II

★ Predicted Questions (Based on Past Papers)

Topic	Part	Rating
Non-Conventional Trademarks	A	★★★★★★
Rights of Trademark Owners / Registration	A	★★★★★★
Domain Names and Trademarks	A	★★★★★
Design Piracy	A	★★★★★★
Characteristics of registrable trademark (Essay)	B	★★★★★★
Passing Off vs Infringement + Remedies (Essay)	B	★★★★★★
Doctrine of Deceptive Similarity (Essay)	B	★★★★★★
Bottle cap/nozzle design protection (Problem)	C	★★★★★★
Unregistered TM — passing off action (Problem)	C	★★★★★★

Critical Numbers — Unit IV

- Trade Marks Act — 1999 (India) | Replaced Trade and Merchandise Marks Act 1958
- Designs Act — 2000 (India) | Replaced Designs Act 1911
- TM registration term — 10 years, renewable indefinitely
- Design registration term — 10 years + 5 years renewal (total 15 years max)
- TRIPS minimum TM term — 7 years (renewable)
- Section 2(zb) TM Act — Definition of 'trade mark'
- Section 9 TM Act — Absolute grounds for refusal

- Section 11 TM Act — Relative grounds for refusal
- Section 29 TM Act — Infringement of trade mark
- Section 27 TM Act — No action for infringement of unregistered TM (use passing off)
- Section 134 TM Act — Suit for infringement / passing off
- Section 2(d) Designs Act — Definition of 'design'
- Section 4 Designs Act — Prohibition of registration of certain designs
- Section 22 Designs Act — Piracy of registered design
- Damages for design piracy — Rs. 25,000 per article (max Rs. 50,000 per design)

PART A — SHORT NOTES (6 Marks Each)

Answer any FIVE. ~200–250 words each. Time: 5–7 min each.

A1. Non-Conventional Trademarks ★★★★★

Definition: Non-conventional (or non-traditional) trademarks are signs that go beyond the traditional categories of words and logos to serve as distinctive identifiers of commercial origin. They include shapes, colours, sounds, smells, tastes, textures, holograms, and motion marks. The Trade Marks Act, 1999 (Section 2(zb)) defines a trademark broadly to include any 'mark capable of being represented graphically' — this opens the door to non-conventional marks.

Types of Non-Conventional Marks:

- Colour marks: Single or combination of colours used as brand identifier
- Sound marks: Musical jingles, tunes, or sounds associated with a brand
- Shape marks: Three-dimensional product shapes or packaging
- Smell/Olfactory marks: Fragrances used as identifiers (very rare; representation challenge)
- Taste marks: Flavours used to identify origin (almost never registered)
- Motion marks: Moving images / animations used consistently as brand identifiers
- Hologram marks: Changing images used as anti-counterfeit security features

 **GRAPHICAL REPRESENTATION RULE:** Non-conventional marks must be capable of GRAPHICAL REPRESENTATION — i.e., they must be describable in words/images/musical notation precisely enough to define the scope of protection. This is the main challenge for smell/taste marks.

 **Example:** Registered non-conventional marks: Cadbury's purple colour for chocolate (UK); Intel's 4-note sound chime; Coca-Cola's contour bottle shape (3D shape mark); MGM's lion roar (sound mark). India: Yahoo!'s yodel is a registered sound mark.

 *Libertel Groep v. Benelux-Merkenbureau (ECJ 2003)* — Single colour can be registered as TM only if it has acquired distinctiveness through use AND can be precisely represented graphically (Pantone number).

 *Yakult Honsha v. Yakult India (Delhi HC)* — Shape of Yakult bottle held distinctive and registrable as a 3D trademark.

 **TIP:** Exam angle: Non-conventional marks face TWO challenges: (1) Graphical representation — can it be described precisely? (2) Distinctiveness — does the public associate it with ONE source? Shapes that are functional (necessary for the product to work) CANNOT be trademarked.

A2. Domain Names and Trademarks ★★★★★☆

Definition: A domain name is the unique internet address of a website (e.g., tata.com). When domain names conflict with registered trademarks, they create IP disputes. Cybersquatting — registering another's trademark as a domain name to sell it back — is the most common problem. Such disputes are resolved through WIPO's Uniform Domain Name Dispute Resolution Policy (UDRP) or national courts.

Key Issues at the Intersection of Domain Names and Trademarks:

- Cybersquatting: Registering famous brand names as domain names in bad faith to profit
- Domain names function like trademarks — they identify commercial source online
- Trademark owner can oppose domain name registration if it is identical/confusingly similar

- Domain name ≠ automatic trademark — registration of domain does not confer TM rights
- India: Domain name disputes resolved under INDRP (India's UDRP equivalent) via NIXI

UDRP THREE-PART TEST (to cancel/transfer a domain): (1) Domain is identical/confusingly similar to complainant's trademark; (2) Registrant has no legitimate interest in the domain; (3) Domain registered and used in BAD FAITH.

📌 Example: 'yahooindia.com' registered by a cybersquatter before Yahoo! operated in India — Yahoo! filed UDRP complaint. Domain transferred to Yahoo! because all three UDRP conditions were met.

⚖️ *Yahoo Inc. v. Akash Arora (Delhi HC 1999)* — FIRST Indian domain name case. 'Yahooindia.com' held to infringe Yahoo!'s trademark. Court held domain names are trade names and can infringe trademarks.

⚖️ *Satyam Infoway v. Sifynet Solutions (SC 2004)* — SC held domain names are not merely addresses; they carry goodwill and can be protected as trademarks. Passing off action available for unregistered domain names.

💡 **TIP:** Two key cases: *Yahoo v. Akash Arora (1999)* = first Indian case, TM infringement via domain. *Satyam v. Sifynet (SC 2004)* = SC recognised domain names carry goodwill, passing off applies. UDRP = international mechanism; INDRP = Indian mechanism.

A3. Design Piracy ★★★★★

Definition: Design piracy is the fraudulent or obvious imitation of a registered design — i.e., applying a registered design or a design fraudulently/obviously imitated from it to any article for sale, import, or export without the design owner's licence. It is governed by Section 22, Designs Act, 2000.

What Constitutes Design Piracy (Section 22):

- Applying a registered design to any article for sale — without licence
- Applying a design FRAUDULENTLY IMITATED from a registered design to any article
- Applying a design OBVIOUSLY IMITATED from a registered design
- Importing for sale any article to which a pirated design is applied
- Publishing/exposing for sale such articles

PIRACY TEST: 'Fraudulently or obviously imitated' — The design need not be exactly copied. If the imitation is so close that it is obvious to the eye of a customer, it is piracy. The test is visual appearance to the consumer (informed user standard).

Remedies for Design Piracy (Section 22):

- Compensation: Rs. 25,000 per article of piracy (recoverable as contract debt)
- Maximum limit: Rs. 50,000 per registered design (statutory cap)
- Injunction: Court can grant injunction to restrain further piracy
- Damages: Instead of statutory compensation, owner may elect to sue for actual damages

📌 Example: Apple's iPhone rounded rectangle design registered → Samsung's Galaxy phone with similar rounded corners = alleged design piracy. Apple v. Samsung litigation (global) was the most high-profile design piracy dispute of the 21st century.

⚖️ *Whirlpool of India v. Videocon Industries (Bombay HC)* — Washing machine design registered; defendant's machine held to be obvious imitation; injunction granted and compensation awarded under Section 22.

⚖️ *Amp Inc. v. Utilux Pty Ltd (UK HL 1972)* — Functional parts of an article cannot be design-registered; design must be aesthetic not purely functional.

💡 **TIP:** Exam numbers: Rs. 25,000 per article + Rs. 50,000 cap per design. These specific numbers appear in MCQs and short answers. Piracy test = visual similarity to ordinary consumer. Design must NOT be functional — purely aesthetic.

A4. Rights of Trademark Owners & Registration ★★★★★

Definition: Upon registration of a trademark under the Trade Marks Act, 1999, the registered proprietor acquires exclusive statutory rights to use the mark in relation to the goods/services for which it is registered, and to prevent others from using identical or deceptively similar marks.

Rights of Registered Trademark Owner (Section 28):

- Exclusive right to use the trademark in relation to the registered goods/services
- Right to obtain relief for infringement (Section 29)
- Right to assign and licence the mark (Section 37)
- Right to sue for damages, injunction, account of profits on infringement
- Right to prevent importation of infringing goods (border measures)

Registration Procedure (Sections 18–26):

- Application filed before Trade Marks Registry (Section 18)
- Examination by Registrar — absolute and relative grounds checked
- Advertisement in Trade Marks Journal — 4 months for opposition
- If no opposition (or opposition fails) → Certificate of Registration issued
- Term: 10 years from date of application, renewable indefinitely (Section 25)
- Use requirement: Mark must be used within 5 years of registration or faces removal

■ **ABSOLUTE GROUNDS FOR REFUSAL (Section 9):** Mark is devoid of distinctiveness; descriptive of goods/quality/quantity; common to trade; contrary to law; obscene/scandalous; likely to deceive; shapes that are functional.

■ **RELATIVE GROUNDS FOR REFUSAL (Section 11):** Mark is identical/similar to earlier mark for same/similar goods; causes likelihood of confusion; identical to well-known mark even for dissimilar goods.

📌 Example: 'APPLE' for computers is registrable (distinctive, invented word). 'SWEET' for sugar is NOT registrable (descriptive of the goods' quality — absolute ground under Section 9).

⚖️ *Amritdhara Pharmacy v. Satya Deo Gupta (SC 1963)* — Established test of deceptive similarity: overall impression on buyer of average intelligence; phonetic, visual, and structural similarity considered.

💡 **TIP: Remember the TM FUNCTIONS:** (1) Origin function — tells who made it; (2) Quality guarantee; (3) Advertising function. Section 9 = Absolute grounds (no one can register). Section 11 = Relative grounds (blocks because of earlier similar mark).

A5. Passing Off vs Infringement of Trademark ★★★★★☆

Definition: Passing off is a common law tort that protects the goodwill of an UNREGISTERED trademark by preventing misrepresentation. Infringement is a statutory remedy under Section 29, Trade Marks Act 1999, available only for REGISTERED trademarks. Both protect against unfair competition but operate differently.

Feature	Passing Off (Common Law)	Infringement (Statutory)
Basis	Common law tort (no statute needed)	Section 29, Trade Marks Act 1999
Mark status	Unregistered mark sufficient	MUST be registered

Proof required	Goodwill + misrepresentation + damage (3 elements)	Identical/similar mark + similar goods — damage presumed
Strict liability?	No — must prove damage/likelihood	Yes — registration = prima facie proof
Territorial scope	Goodwill must exist in the territory	Registration in India sufficient
Strength	Weaker — harder to prove	Stronger — registration is conclusive

🟡 **TRINITY TEST FOR PASSING OFF** (Lord Diplock in *Warnink v. Townend*, adopted in India): (1) **GOODWILL** — plaintiff has established goodwill/reputation in the mark; (2) **MISREPRESENTATION** — defendant misrepresents that goods come from plaintiff; (3) **DAMAGE** — actual or likely damage to plaintiff's goodwill.

📌 Example: 'Villain' TM (unregistered) has market goodwill. Competitor starts using 'Villa' for same goods — this is passing off (not infringement, as 'Villain' is unregistered). Plaintiff must prove goodwill + misrepresentation + damage.

⚖️ *Reckitt & Colman v. Borden Inc. (1990 UK HL — Jif Lemon case)* — Classic trinity test for passing off. Lemon-shaped container for lemon juice — goodwill + misrepresentation + damage proved.

⚖️ *Cadbury India v. Neeraj Food Products (Delhi HC 2007)* — 'ECLAIRS' vs 'ECLAIRS TOFFEE' — passing off + infringement both considered; visual and phonetic similarity caused confusion.

💡 **TIP: Exam trap:** If TM is **UNREGISTERED** → only **PASSING OFF**. If TM is **REGISTERED** → can sue for both **infringement AND passing off**. Passing off protects goodwill; infringement protects registration. Both can run simultaneously for a registered mark.

A6. Industrial Designs — Concept & Characteristics ★★★★★☆

Definition: An industrial design refers to the ornamental or aesthetic aspects of an article — its shape, configuration, pattern, ornamentation or composition of lines/colours that, when applied to an article by an industrial process, give it a special appearance for the eye. Protected under Designs Act, 2000. Governed internationally by the Hague System (WIPO).

Definition under Designs Act (Section 2(d)):

'Design' means only the features of shape, configuration, pattern, ornament or composition of lines or colours applied to any article whether in two dimensional or three dimensional or in both forms, by any industrial process or means, whether manual, mechanical or chemical, separate or combined, which in the finished article appeal to and are judged solely by the EYE — BUT does NOT include any mode or principle of construction or anything which is in substance a mere mechanical device.

Essential Characteristics of a Registrable Design:

- NEW or ORIGINAL — not previously published or used in India (Section 4)
- Applied to an article — must be applied to a manufactured article (not abstract)
- Judged by the EYE — purely aesthetic; must appeal to the eye, not functional
- Applied by INDUSTRIAL PROCESS — not purely handmade art
- NOT a mode of construction — no functional/mechanical elements
- NOT scandalous or contrary to public order/morality (Section 4)

🟡 **KEY EXCLUSIONS FROM DESIGN PROTECTION:** (1) Purely functional features, (2) Mode/principle of construction, (3) Artistic works already protected by copyright, (4) Mere mechanical devices, (5) Flags/emblems of India.

📌 Example: A uniquely shaped perfume bottle — protectable as design (aesthetic shape applied to article). The perfume formula — NOT a design (it is a product/process, protectable by patent if novel). The brand name on the bottle — trademark.

⚖️ *Amp Inc. v. Utilux (1972 UK HL) — Electrical terminal design: purely functional shapes cannot be design-registered; aesthetic purpose must dominate. Functional designs go to patent law.*

💡 *TIP: Design vs Patent vs Copyright: Design = aesthetic appearance of article (eye-appeal). Patent = functional invention (how it works). Copyright = artistic work (literary/artistic expression). All three can co-exist in one product — the bottle's shape (design), formula (patent), brand name (TM), and label art (copyright).*

PART B — LONG ESSAYS (15 Marks Each)

Answer any TWO. ~600–750 words. Time: 20–25 min each.

B1. Essential Characteristics of a Registrable Trademark & Remedies for Infringement

Introduction

A trademark is the cornerstone of commercial identity in the marketplace. It communicates origin, quality, and reputation to consumers in a single sign. The Trade Marks Act, 1999 — enacted to comply with India's TRIPS obligations and replace the Trade and Merchandise Marks Act, 1958 — provides a comprehensive framework for the registration, protection, and enforcement of trademarks. Not every sign qualifies for registration; the Act prescribes precise criteria of registrability and equally precise remedies for those whose marks are infringed.

1. Definition of Trademark (Section 2(zb))

A 'trade mark' means a mark capable of being represented graphically and capable of distinguishing the goods or services of one person from those of others, and may include shape of goods, their packaging and combination of colours.

 **THREE REQUIREMENTS FOR A MARK TO BE A TRADEMARK:** (1) Capable of graphical representation; (2) Capable of DISTINGUISHING goods/services of one from another; (3) Used or proposed to be used in commerce.

2. Types of Marks Eligible (Section 2(m)):

- Words — invented words, personal names, geographic names (if distinctive)
- Letters and numerals — single letters, numbers, combinations
- Devices — logos, figurative elements, designs
- Shapes — 3D shapes of goods or packaging
- Colours — single colour or combination (if distinctive)
- Sounds — musical jingles, sound signatures
- Combinations of any of the above

3. Absolute Grounds for Refusal (Section 9) — Marks that CANNOT be Registered

Ground	Explanation	Example
Devoid of distinctiveness	Mark cannot distinguish one trader's goods from another's	Generic word 'Computer' for computers
Descriptive marks	Directly describes quality, quantity, nature, value of goods	'SWEET' for sugar, 'COLD' for ice cream
Common to trade	Mark used by the entire trade; no one can monopolise	'PREMIUM' for luxury goods
Deceptive	Likely to deceive public as to nature/quality of goods	'PURE SILK' for synthetic fabric
Contrary to law	Prohibited under any law in force	Marks using national emblem (Section 9(2)(b))
Obscene/Scandalous	Hurts public sentiments or is obscene	Section 9(2)(c) — absolute bar

Functional shapes	Shape necessary for technical result or gives substantial value	Lego brick shape rejected (ECJ)
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■ **SECONDARY MEANING DOCTRINE (PROVISO to Section 9(2)):** A mark that is ordinarily descriptive CAN be registered if it has **ACQUIRED DISTINCTIVENESS** through long and extensive use — it has gained 'secondary meaning' in the market. Example: 'APPLE' for computers was originally descriptive of the company's informal culture — but through use, it has become distinctive.

4. Relative Grounds for Refusal (Section 11)

- Mark identical/similar to an earlier registered mark for identical/similar goods — likelihood of confusion
- Mark identical/similar to an earlier well-known mark — even for dissimilar goods
- Mark whose use would take unfair advantage of / be detrimental to the distinctive character of a well-known mark (anti-dilution)

5. The Distinctiveness Spectrum

Type	Distinctiveness	Registrability
Invented/Coined words ('KODAK', 'XEROX')	Highest — no prior meaning	Immediately registrable
Arbitrary words ('APPLE' for computers)	High — no connection to goods	Immediately registrable
Suggestive words ('JAGUAR' for cars)	Medium — suggests quality indirectly	Registrable
Descriptive words ('COLD' for ice cream)	Low — directly describes	Not registrable unless secondary meaning
Generic words ('COMPUTER' for computers)	Zero — name of the product itself	Never registrable

6. Infringement of Trademark (Section 29)

Infringement occurs when a person, not being the registered proprietor or permitted user, in the course of trade:

- Uses a mark identical to the registered TM for identical goods — infringement presumed (double identity rule)
- Uses a mark identical/similar to registered TM for identical/similar goods — if likelihood of confusion exists
- Uses a mark identical/similar to a well-known TM for dissimilar goods — takes unfair advantage (dilution)
- Uses the registered TM as part of a company name or domain name — Section 29(5)

7. Doctrine of Deceptive Similarity

Marks need not be identical to infringe — 'deceptive similarity' (likelihood of confusion in the mind of an average consumer of average intelligence) is sufficient.

⚖️ *Amritdhara Pharmacy v. Satya Deo Gupta (SC 1963)* — Test: overall impression on buyer of average intelligence with imperfect recollection; phonetic, visual, and structural similarity all considered. 'AMRITDHARA' vs 'LAKSHMANDHARA' — held deceptively similar.

⚖️ *Cadila Healthcare v. Cadila Pharmaceuticals (SC 2001)* — Stricter test for pharmaceutical marks —

even small similarity dangerous; public health risk if patients confuse medicines.

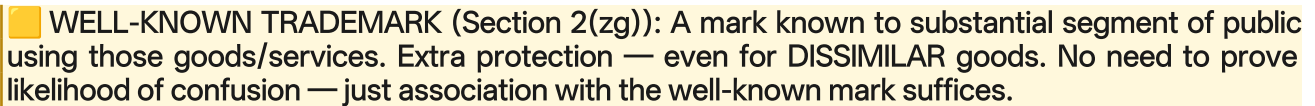
8. Remedies for Trademark Infringement

Civil Remedies (Section 134–135):

- Injunction — most important; restrain continued use of infringing mark
- Damages — compensation for actual loss
- Account of profits — infringer must account for profits made using plaintiff's mark
- Delivery up — surrendering infringing labels, goods for destruction
- Anton Piller Order — ex parte search and seizure (civil)
- Mareva Injunction — freezing of assets

Criminal Remedies (Section 103):

- Imprisonment: 6 months minimum — 3 years maximum
- Fine: Rs. 50,000 minimum — Rs. 2,00,000 maximum
- Second offence: Enhanced penalties; minimum 1 year imprisonment

 **WELL-KNOWN TRADEMARK (Section 2(zg)):** A mark known to substantial segment of public using those goods/services. Extra protection — even for DISSIMILAR goods. No need to prove likelihood of confusion — just association with the well-known mark suffices.

Conclusion

The Trade Marks Act, 1999 strikes a careful balance between protecting trademark owners (through robust infringement remedies) and keeping the marketplace competitive (through absolute grounds preventing monopolisation of descriptive/generic terms). India's trademark law, rooted in TRIPS Article 15-21, has been progressively modernised — from the introduction of non-conventional marks to the protection of well-known marks and domain names. Courts have built a sophisticated jurisprudence of deceptive similarity that protects consumers while rewarding genuine brand investment.

B2. Passing Off vs Trademark Infringement — Doctrine of Deceptive Similarity & Remedies

Introduction

In the law of trademarks, protection is available through two distinct but complementary routes: (1) Statutory infringement action under the Trade Marks Act, 1999, available to owners of REGISTERED marks; and (2) Passing off, a common law action available to owners of UNREGISTERED marks with established goodwill. The doctrine of deceptive similarity is central to both — it is the legal test determining whether the defendant's mark is so similar to the plaintiff's as to cause consumer confusion.

1. Passing Off — Common Law Protection

Passing off is a tort that protects the business goodwill associated with an unregistered trademark, trade name, get-up, or domain name. It prevents a trader from misrepresenting their goods as those of another trader.

Essential Elements — The Classical Trinity:

- **GOODWILL:** The plaintiff must have established goodwill/reputation in their mark in the relevant market. Goodwill = the attractive force that brings customers to a business (Lord Macnaghten, *IRC v. Muller & Co's Margarine*, 1901).
- **MISREPRESENTATION:** The defendant must make a false representation — directly or by conduct — that their goods come from or are associated with the plaintiff. Need not be intentional.

- **DAMAGE:** The plaintiff must suffer actual damage or the likelihood of damage to their goodwill — loss of sales, damage to reputation, dilution of distinctiveness.

TRINITY TEST: Goodwill + Misrepresentation + Damage. ALL THREE must be proved for passing off. Unlike infringement, there is NO strict liability — plaintiff must prove each element.

☞ *Reckitt & Colman v. Borden (1990 UK HL — Jif Lemon)* — Trinity test for passing off confirmed. Lemon-shaped squeeze bottle for lemon juice — 30 years of use = established goodwill; defendant's similar bottle = misrepresentation; confusion = damage.

☞ *Warnink v. Townend (1979 UK HL — Advocaat case)* — Extended passing off to protect product reputation (Advocaat spirit) even without specific TM — geographic/product identity protected.

2. Trademark Infringement — Statutory Protection (Section 29)

Infringement of a registered trademark is a statutory wrong under Section 29, Trade Marks Act 1999.

Key differences from passing off:

- Registration gives PRIMA FACIE evidence of ownership and exclusive rights (Section 31)
- Damage is PRESUMED — plaintiff need not prove actual damage
- Strict liability — intention to infringe is irrelevant
- Territorial protection linked to registration in India
- Well-known marks protected even for dissimilar goods (anti-dilution, Section 29(4))

3. The Doctrine of Deceptive Similarity

Both passing off and infringement require establishing that the defendant's mark is 'deceptively similar' to the plaintiff's. The doctrine determines what constitutes impermissible similarity.

The Test for Deceptive Similarity:

- **OVERALL IMPRESSION:** The marks must be compared as a whole, not element by element
- **AVERAGE CONSUMER:** The standard is an ordinary consumer of average intelligence with imperfect recollection
- **VISUAL similarity:** How the marks look side by side
- **PHONETIC similarity:** How the marks sound when spoken
- **STRUCTURAL similarity:** The composition and arrangement of elements
- **Nature of goods:** Greater care required for pharmaceutical products (health risk)

RULE: Marks need not be identical. If the net impression on a consumer of average intelligence and imperfect recollection is that the defendant's mark could be the plaintiff's — it is deceptively similar.

☞ *Amritdhara Pharmacy v. Satya Deo Gupta (SC 1963)* — THE LEADING CASE. 'AMRITDHARA' vs 'LAKSHMANDHARA' for medicinal preparations. SC held: overall impression on buyer of average intelligence with imperfect memory; phonetic similarity ('DHARA' suffix) created deceptive similarity.

☞ *Cadila Healthcare v. Cadila Pharmaceuticals (SC 2001)* — 'FALCIGO' vs 'FALCITAB' — both anti-malarial drugs. SC applied stricter standard for pharmaceutical marks: any likelihood of confusion in drugs is dangerous; even educated consumers may confuse if names sound similar. Deceptive similarity found.

☞ *Parle Products v. JP & Co. (SC 1972)* — 'GLUCO' biscuits vs 'GLUCOSE' biscuits — overall impression: similar packaging, same goods = deceptive similarity. 'A consumer of average intelligence with imperfect recollection' test applied.

4. Comparative Table: Passing Off vs Infringement

Aspect	Passing Off	Infringement
Legal basis	Common law tort	Section 29, TM Act 1999

Mark	Unregistered sufficient	Must be registered
Proof of damage	Essential — must be proved	Presumed — not essential
Intention	Irrelevant	Irrelevant (strict liability)
Key elements	Goodwill + misrepresentation + damage	Identical/similar mark + similar goods
Limitation period	3 years (Limitation Act)	3 years (Section 134)
Both simultaneously?	Yes — registered mark owner can sue for both	Yes — passing off supplements infringement

5. Remedies — Common to Both Actions

- Injunction (permanent and/or interim) — most effective remedy
- Damages or account of profits (plaintiff's choice)
- Delivery up and destruction of infringing goods
- Anton Piller Order — ex parte civil search and seizure
- Criminal prosecution under Section 103/104 TM Act

Conclusion

Passing off and trademark infringement together form a complete protective shield for commercial identity in India. While infringement rewards investment in trademark registration with strict liability and presumed damage, passing off ensures that unregistered marks with established goodwill are not left without remedy. The doctrine of deceptive similarity — applied through the lens of the average consumer — is the common thread that runs through both actions, ensuring that commercial reputation, once built, cannot be misappropriated through similar-sounding or similar-looking imitations.

🔑 PART C — PROBLEM QUESTIONS / IRAC METHOD (10 Marks Each)

Answer any TWO. Strict IRAC format. Time: 15 min each.

C1. Problem: Perfume Bottle Cap Nozzle Shape — Design Protection?

(Based on July/August 2025 Q15: 'A' creates an attractive new bottle cap nozzle shape for his perfume brand and wants to stop others from copying it. He is not sure whether it can be protected under design law. Advise 'A' on essential requirements under Designs Act, 2000.)

I — ISSUE

Whether 'A's new bottle cap nozzle shape for his perfume brand qualifies for protection as a 'design' under the Designs Act, 2000, and what are the essential requirements 'A' must fulfil to obtain such protection.

R — RULE

The following provisions of the Designs Act, 2000 govern:

1. Section 2(d) — Definition of 'Design': Features of shape, configuration, pattern, ornament or composition of lines/colours applied to an article by industrial process, which in the finished article APPEAL TO AND ARE JUDGED SOLELY BY THE EYE. Excludes: mode of construction, mechanical device, trademark, property mark, artistic work.
2. Section 4 — Prohibition of registration: A design shall NOT be registered if: (a) not new or original; (b) previously published in India; (c) not significantly distinguishable from known designs; (d) contrary to public order or morality; (e) contains scandalous matter.
3. Section 5 — Registration: Application filed before Controller of Designs; design must be classified under appropriate Locarno Classification; granted for 10 years + 5 years renewal.
4. Section 22 — Piracy of registered design: Once registered, 'A' can sue for Rs. 25,000 per article of piracy (max Rs. 50,000 per design) + injunction.

 **TWO-PART TEST FOR DESIGN REGISTRABILITY:** (1) Is it a 'design' (aesthetic, eye-judged, applied to article by industrial process)? (2) Is it NEW and ORIGINAL (not previously published/used)?

CRITICAL LIMITATION: If the nozzle shape is PURELY FUNCTIONAL (its shape is dictated solely by its technical function of spraying perfume), it CANNOT be registered as a design. Only aesthetic features qualify.

A — APPLICATION

Applying the rules to 'A's nozzle shape:

- The bottle cap nozzle shape is described as 'attractive' — suggesting it has aesthetic appeal to the eye, satisfying the 'judged solely by the eye' requirement
- It is applied to an article (the perfume bottle cap) by an industrial process (manufacturing) — satisfies the 'applied to article by industrial process' requirement

- 'A' 'creates' it — implying it is new; must verify: has this shape been previously published or used in India? If not → satisfies novelty requirement of Section 4
- As a NOZZLE — there is a functional element (directing/spraying perfume). KEY QUESTION: Is the shape purely dictated by its function, or does it have ADDITIONAL aesthetic features beyond what function requires?
- If the nozzle's shape includes decorative curves, ornamental ridges, or patterns that go beyond mere functional necessity → the aesthetic elements ARE protectable as design
- The purely functional spraying mechanism itself → NOT protectable as design (may need patent protection)

⚖️ *Amp Inc. v. Utilux (1972 UK HL)* — Purely functional terminal shape cannot be design-registered. Only features that appeal to the eye as aesthetics qualify.

⚖️ *Crocs Inc. v. Bata India & Others (Delhi HC 2019)* — Croc's distinctive shoe design (perforations pattern + strap shape) held registrable as it had aesthetic appeal beyond functional shoe design.

C — CONCLUSION

ADVICE TO 'A':

- YES — 'A' CAN register the bottle cap nozzle shape as a design under the Designs Act, 2000, PROVIDED:
 - The shape has aesthetic features that appeal to the eye (not purely functional)
 - The design is NEW and ORIGINAL — not previously published or used in India
 - The aesthetic elements are distinguishable from existing known designs

PROCEDURE: Apply to the Controller of Designs; classify under Locarno Classification; pay fees; if approved → Certificate of Registration for 10 years (extendable by 5 more years).

ADDITIONAL PROTECTION: 'A' should also consider registering the nozzle shape as a 3D TRADEMARK under Trade Marks Act 1999 if it identifies his brand, and the spraying mechanism may be separately patentable under Patents Act 1970 if novel and non-obvious.

FINAL ANSWER: Nozzle shape = registrable as design if aesthetic + new. Purely functional spraying mechanism ≠ design (may need patent). Also consider 3D trademark registration for maximum protection.

C2. Problem: Unregistered Trademark 'Villain' vs 'Villa' — Can Ramu Sue?

(Based on Nov 2022 Q15: Ramu trades in banyans under 'VILLAIN' trademark (unregistered). Somu starts trading in same goods with 'VILLA'. Ramu's mark is not registered. Ramu files suit for infringement. Decide.)

I — ISSUE

(1) Whether Ramu can maintain a suit for INFRINGEMENT of trademark 'VILLAIN' which is unregistered; and (2) Whether Ramu has any alternative remedy against Somu's use of 'VILLA' for the same goods.

R — RULE

The following legal provisions govern:

1. Section 27, Trade Marks Act 1999: 'No person shall be entitled to institute any proceeding to prevent, or to recover damages for, the infringement of an UNREGISTERED trade mark.' — infringement action requires registration.
2. Section 27(2), Trade Marks Act 1999: The Act does NOT affect the law relating to PASSING OFF. Passing off is preserved as a common law remedy regardless of registration.
3. Common Law Tort of Passing Off — Classical Trinity (Reckitt v. Borden; adopted in India):
(a) Goodwill established in the mark; (b) Misrepresentation by defendant; (c) Damage to plaintiff's goodwill.
4. Section 134, TM Act: Suits for infringement filed in District Court. Passing off suits also filed in District Court.
5. Doctrine of Deceptive Similarity: 'VILLAIN' vs 'VILLA' — phonetically similar (both start with 'VILL-'), structurally similar, same goods (baniyans) — likelihood of confusion.

 **CRITICAL RULE:** Section 27 TM Act — INFRINGEMENT ACTION requires REGISTERED mark. Ramu's TM is unregistered → he CANNOT sue for infringement. BUT → Section 27(2) preserves PASSING OFF action for unregistered marks.

A — APPLICATION

Applying the rules to the facts:

- 'VILLAIN' is UNREGISTERED — Section 27(1) bars infringement action. Ramu's suit for infringement CANNOT SUCCEED on this ground
- However, the facts state 'VILLAIN' mark has 'caught the market reputation' — this establishes GOODWILL (first element of passing off)
- Somu uses 'VILLA' for the SAME goods (baniyans) as Ramu → this creates MISREPRESENTATION — consumers could believe Somu's products come from Ramu (second element)
- 'VILLAIN' vs 'VILLA' — phonetic similarity (VILL-AIN vs VILL-A); structural similarity; same class of goods → deceptive similarity → likely DAMAGE to Ramu's goodwill and sales (third element)
- All three elements of passing off are SATISFIED

Wander Ltd. v. Antox India (SC 1990) — Unregistered mark with established goodwill protected through passing off action; registration not required for passing off.

Cadbury India v. Neeraj Food Products (Delhi HC 2007) — Phonetic/visual similarity between marks for same goods = deceptive similarity; passing off established.

WHAT RAMU SHOULD DO: Immediately apply to REGISTER 'VILLAIN' under Trade Marks Act 1999 to gain statutory protection for future infringement suits while simultaneously filing passing off action.

C — CONCLUSION

Ramu's suit for INFRINGEMENT will FAIL — Section 27(1) bars infringement action for unregistered trademarks.

However, Ramu CAN and SHOULD file a suit for PASSING OFF, as all three elements are

established:

- GOODWILL — 'VILLAIN' has market reputation
- MISREPRESENTATION — 'VILLA' on same goods creates confusion as to origin
- DAMAGE — Loss of sales and dilution of goodwill

Remedies available in passing off: Injunction to stop Somu from using 'VILLA'; Damages for loss; Account of profits made by Somu.

■ **FINAL ANSWER: Infringement suit FAILS (mark unregistered — Section 27). PASSING OFF suit SUCCEEDS (goodwill + misrepresentation + damage proved). Ramu should ALSO immediately register 'VILLAIN' to prevent future infringement.**

C3. Problem: Obscene Geographical Indication — Can it be Registered?

(Based on Nov 2022 Q16: 'A' applied for registration of a geographical indication of a matter which is obscene. Can 'A' register this GI? [Also relevant to Unit IV context of absolute bars in IP registration])

I — ISSUE

Whether 'A' can obtain registration of a Geographical Indication for a matter that is obscene in nature under the Geographical Indications of Goods (Registration and Protection) Act, 1999, and whether any similar bars exist under the Trade Marks Act, 1999 for trademarks.

R — RULE

1. GI Act 1999, Section 9(c): A geographical indication SHALL NOT be registered if it contains or comprises any SCANDALOUS or OBSCENE matter — this is an ABSOLUTE ground for refusal.
2. GI Act 1999, Section 9(d): A GI shall not be registered if it contains matter likely to HURT the religious susceptibilities of any class or section of citizens.
3. Trade Marks Act 1999, Section 9(2)(c): Similarly, a trademark shall not be registered if it contains SCANDALOUS or OBSCENE matter — same absolute bar.
4. Both provisions are ABSOLUTE grounds — the Registrar has NO discretion to allow registration of obscene GI or trademark regardless of any other considerations.

■ **ABSOLUTE BAR (BOTH TM ACT & GI ACT): Obscene or scandalous matter = CANNOT be registered, period. No exceptions, no discretion, no appeal can succeed on the merits if the matter is obscene.**

A — APPLICATION

Applying the rules:

- 'A' has applied to register a GI for matter that is obscene — this squarely falls under Section 9(c) of the GI Act, 1999
- Section 9(c) is an absolute prohibition — the Registrar of Geographical Indications is duty-bound to REFUSE registration
- No discretion exists for the Registrar to overlook this ground

- The same matter would also fail registration as a trademark under Section 9(2)(c) TM Act 1999
- The obscene matter may additionally be 'contrary to any law in force' under Section 9(b) — invoking a second ground for refusal (e.g., IPC Section 292 on obscene publications)

C — CONCLUSION

NO — 'A' CANNOT register the Geographical Indication.

Registration must be REFUSED by the Registrar under Section 9(c), GI Act 1999. This is an absolute ground admitting no exception or discretion. Any appeal against refusal cannot succeed on merits if the matter is genuinely obscene.

 **FINAL ANSWER: Section 9(c) GI Act 1999 = absolute bar on obscene GI. Same bar under Section 9(2)(c) TM Act. Registrar MUST refuse. No exception. No discretion.**

QUICK REVISION SHEET — UNIT IV

Key Sections — Trade Marks Act, 1999

Section	Content
Section 2(m)	Definition of 'mark' — words, devices, numerals, colours, shapes, sounds
Section 2(zb)	Definition of 'trade mark' — graphically representable + capable of distinguishing
Section 2(zg)	Definition of 'well-known trade mark'
Section 9	Absolute grounds for refusal — devoid of distinctiveness, descriptive, deceptive, obscene
Section 11	Relative grounds for refusal — conflict with earlier mark
Section 18	Application for registration of trademark
Section 25	Duration: 10 years from application date; renewable indefinitely
Section 27	No infringement action for UNREGISTERED trademark (but passing off preserved)
Section 28	Rights of registered proprietor — exclusive use + sue for infringement
Section 29	Infringement of registered trademark
Section 31	Registration = prima facie evidence of validity
Section 37	Assignment and licensing of trademarks
Section 103	Criminal penalty: 6 months to 3 years + Rs.50,000 to Rs.2,00,000
Section 134	Jurisdiction for infringement/passing off suits — District Court

Key Sections — Designs Act, 2000

Section	Content
Section 2(d)	Definition of 'design' — aesthetic, eye-judged, applied by industrial process
Section 4	Prohibition of registration — not new/original, contrary to public order
Section 5	Application for registration of design
Section 11	Registration: 10 years from registration date
Section 12	Extension: 5 more years renewable (total 15 years max)
Section 19	Cancellation of registration
Section 22	Piracy of registered design — Rs.25,000 per article + injunction
Section 22(2)	Cap on statutory damages: Rs.50,000 per registered design

Top Cases — One-Liner

- Amritdhara v. Satya Deo (SC 1963): Deceptive similarity test — overall impression, average

consumer, imperfect recollection

- Cadila Healthcare v. Cadila Pharma (SC 2001): Stricter TM similarity test for pharmaceuticals — health risk justifies lower confusion threshold
- Reckitt v. Borden (1990 UK HL — Jif Lemon): Trinity test for passing off — goodwill + misrepresentation + damage
- Yahoo v. Akash Arora (Delhi HC 1999): First Indian domain name TM case — domain names can infringe trademarks
- Satyam v. Sifynet (SC 2004): Domain names carry goodwill; passing off applies to domain names
- Parle v. JP & Co (SC 1972): 'GLUCO' vs 'GLUCOSE' biscuits — overall impression test; packaging similarity = deceptive
- Amp Inc. v. Utilux (1972 UK HL): Purely functional design ≠ registrable; must have aesthetic (eye) appeal
- Crocs v. Bata India (Delhi HC 2019): Distinctive shoe design pattern = registrable design (aesthetic beyond function)

Memory Mnemonics

TRADEMARK FUNCTIONS: 'OQA' = Origin (tells who made it), Quality (guarantees standard), Advertising (builds goodwill)

ABSOLUTE GROUNDS (Section 9): 'DDCCDOS' = Devoid of distinctiveness, Descriptive, Common to trade, Contrary to law, Deceptive, Obscene/Scandalous, Shapes (functional)

PASSING OFF TRINITY: 'GMD' = Goodwill + Misrepresentation + Damage. ALL THREE needed.

DECEPTIVE SIMILARITY TEST: 'OVPS-N' = Overall impression, Visual similarity, Phonetic similarity, Structural similarity, Nature of goods

DESIGN ESSENTIALS: 'NAEI' = New/original, Applied to Article, Eye-appeal (aesthetic), Industrial process

DISTINCTIVENESS SPECTRUM (High to Low): 'IASGD' = Invented > Arbitrary > Suggestive > Generic > Descriptive

DESIGN PIRACY DAMAGES: Rs.25,000 per article + Rs.50,000 cap. Remember '25+50' rule.

Exam TRAP Questions

- ▶ TRAP: 'Can an unregistered TM owner sue for infringement?' → NO. Section 27 bars infringement for unregistered marks. Only PASSING OFF available.
- ▶ TRAP: 'Can a registered TM owner also sue for passing off?' → YES. Registered owner can sue for BOTH infringement AND passing off simultaneously.
- ▶ TRAP: 'Design registration lasts 10 years, non-renewable' → WRONG. 10 years + 5 more years renewal = 15 years TOTAL maximum.
- ▶ TRAP: 'Any distinctive mark can be a trademark' → Only if it can be GRAPHICALLY REPRESENTED. Smell marks rarely qualify because they cannot be precisely described graphically.

- ▶ TRAP: 'Functional shape of a product can be trademarked if it is distinctive' → NO. Section 9(3) TM Act bars registration of shapes that result from the nature of goods, are necessary for technical result, or give substantial value.
- ▶ TRAP: 'Design piracy damages = Rs.50,000 per article' → NO. Rs.25,000 PER ARTICLE; Rs.50,000 is the TOTAL CAP per registered design.
- ▶ TRAP: 'Passing off requires proof of registration' → NO. Passing off is a COMMON LAW remedy — no registration needed, only goodwill.
- ▶ TRAP: 'Domain name registration = trademark rights' → NO. Registering a domain does NOT confer trademark rights. The owner of the trademark can challenge the domain under UDRP/INDRP.

Star Ratings Summary — Unit IV

Topic	Part	Rating
Non-Conventional Trademarks	A	★★★★★
Design Piracy	A	★★★★★
Rights of TM Owners & Registration	A	★★★★★
Registrable TM + Infringement Remedies (Essay)	B	★★★★★
Passing Off vs Infringement + Deceptive Similarity (Essay)	B	★★★★★
Bottle cap/nozzle design (Problem)	C	★★★★★
Unregistered TM — Villain vs Villa (Problem)	C	★★★★★
Domain Names and Trademarks	A	★★★★
Passing Off vs Infringement (short note)	A	★★★★
Industrial Designs — Concept	A	★★★★
Obscene GI/TM (Problem)	C	★★★

— END OF UNIT IV —

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INTELLECTUAL PROPERTY LAW

Paper-V | 4th Semester | LL.B. (3-YDC)

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UNIT V

Law of Patents

Comprehensive Exam Preparation Notes

Target: 75+ Marks | Parts A, B & C

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UNIT V — OVERVIEW & EXAM INTELLIGENCE

What IS in This Unit

- Legal concept of a patent; historical overview of patent law in India
- Patents Act, 1970 — salient features, types of patents
- Statutory criteria for patentable inventions (novelty, inventive step, industrial application)
- Non-patentable subject matter (Section 3 exclusions)
- Procedure for obtaining a patent in India and under PCT
- Rights and obligations of a patentee
- Limitations on patent rights — compulsory licensing, state acquisition, secrecy directions
- Infringement of patent rights and procedural remedies

What is NOT in This Unit

- Trade Marks Act → Unit IV
- Designs Act → Unit IV
- Copyright Act → Unit III
- International treaty details (Paris, PCT in depth) → Unit II
- Plant varieties (PPVFR Act) → Unit I

★ Predicted Questions (Based on Past Papers)

Topic	Part	Rating
Kinds / Types of Patents	A	★★★★★★
Rights, Duties & Obligations of Patentee	B	★★★★★★
Essential Conditions for Patenting an Invention	B	★★★★★★
Patent Infringement	A	★★★★★★
Compulsory Licensing	A	★★★★★★
Rights & Obligations of Patentee (Essay)	B	★★★★★★
Sun Pharma new formulation — patentable? (Problem)	C	★★★★★★
Kusum's patent — compulsory licence / cancellation (Problem)	C	★★★★★★
Improved motorcycle — can brother get patent? (Problem)	C	★★★★★
Mind-reading hat — patentability (Problem)	C	★★★★★★

1234 Critical Numbers — Unit V

- Patents Act — 1970 (India) | Major amendments: 1999, 2002, 2005
- Patent term — 20 years from date of filing (Section 53)
- TRIPS minimum — 20 years from filing (Art. 33) — India complies
- Product patents in pharma/agro — introduced in India by 2005 amendment (TRIPS compliance)

- Compulsory licence (Section 84) — applied after 3 years of patent grant
- Section 84 grounds: (a) Reasonable requirements of public not satisfied; (b) Not at reasonably affordable price; (c) Not worked in India
- Section 92 — compulsory licence in national emergency/extreme urgency
- Section 3 — Non-patentable inventions (list of exclusions)
- Section 3(d) — New form of known substance not patentable unless enhanced efficacy
- Section 3(j) — Plants, animals, essentially biological processes NOT patentable
- Section 3(k) — Computer programmes per se NOT patentable
- Section 3(p) — Traditional knowledge NOT patentable
- Section 39 — Indian residents must file Indian patent first (secrecy)
- Section 47 — Government right to use patent for state purposes
- Section 64 — Revocation of patent
- Section 104 — Jurisdiction: suit for infringement in District Court / HC
- Section 108 — Remedies: injunction, damages, account of profits
- PCT national phase entry — 30 months from priority date
- First Indian patent case — Re: Indian Patent Act 1856 (first patent law)

PART A — SHORT NOTES (6 Marks Each)

Answer any FIVE. ~200–250 words each. Time: 5–7 min each.

A1. Kinds / Types of Patents ★★★★★

Definition: Under the Patents Act, 1970, patents may be classified into several types based on the nature of invention, applicant, and procedural mechanism. Understanding these types is essential for advising inventors on appropriate patent strategy.

Classification Based on Nature of Invention:

- **Product Patent:** Protects the product itself — its composition, structure, or substance. Exclusive right to make, use, sell, or import the product. Example: A new pharmaceutical compound.
- **Process Patent:** Protects a method or process of manufacturing/producing a product. Others can make the same product using a different process. Example: A new synthesis process for aspirin.
- **Patent for Improvement:** A patent granted for an improvement in or relating to a patented invention (Section 54). The improvement must itself be novel and inventive.

Classification Based on Applicant / Procedure:

- **Ordinary Application (Section 7):** Standard application by inventor or assignee filed with complete or provisional specification.
- **Convention Application (Section 135):** Filed by a person who has filed in a Paris Convention country within 12 months — claims priority from foreign filing date.
- **PCT International Application (Chapter I & II):** Filed under Patent Cooperation Treaty — one application, 157 countries, 30-month national phase entry.
- **Divisional Application (Section 16):** Filed when original application contains more than one invention — 'divided' into separate applications, each covering one invention.
- **Continuation / Addition Application:** For adding improvements to a pending parent application.

PRODUCT vs PROCESS: Product patent = you own the THING. Process patent = you own the METHOD. If someone makes the same product by a DIFFERENT method, they do NOT infringe a process patent. Product patents are STRONGER protection.

 Example: Bayer holds a product patent for Nexavar (sorafenib compound). No one can make, sell, or import sorafenib in India without Bayer's licence — regardless of the manufacturing process used.

 *Bayer Corp. v. Union of India (2014 SC) — Nexavar product patent upheld; compulsory licence granted to Natco under Section 84 on grounds of affordability — distinguishing types of patents relevant to the case.*

 **TIP:** Exam often asks 'Kinds of Patents' as Part A or tests types in problems. Remember: Product > Process in strength of protection. Divisional = when one application covers two inventions. Convention = Paris priority claim within 12 months.

A2. Patent Infringement ★★★★★

Definition: Patent infringement is the unauthorised making, using, offering for sale, selling, or importing into India of a patented invention during the term of the patent, without the patentee's licence. Governed by Sections 104–115, Patents Act, 1970.

Acts Constituting Infringement (Section 48):

- Making the patented product without licence
- Using the patented process without licence (process patent infringement)

- Offering for sale the patented product
- Selling the patented product without authorisation
- Importing the patented product into India for the above purposes

Types of Infringement:

- Direct Infringement: Directly performing the patented act without licence
- Contributory/Indirect Infringement: Supplying components used primarily for infringing a patent
- Literal Infringement: Defendant's product/process reads literally on the patent claims
- Infringement by Equivalents (Doctrine of Equivalents): Defendant uses a slightly different means to achieve substantially the same result — still infringement

CLAIM-BASED TEST: Patent infringement is determined by comparing defendant's product/process against the PATENT CLAIMS (not the specifications). If every element of at least one claim is found in the defendant's product/process → infringement.

Defences Against Infringement (Section 107):

- Patent is invalid / should be revoked (invalidity defence)
- Act is an experiment/research use (Section 107A — Bolar exemption)
- Act is for non-commercial private use
- Prior use (user before grant date)
- Compulsory licence granted (Section 84)

 Example: Generic company makes and sells patented drug compound without licence → direct patent infringement. Generic company imports patented drug from a third country → import infringement under Section 48(b).

⚖️ Roche v. Cipla (Delhi HC 2012) — Roche's patent for Erlotinib (Tarceva, cancer drug); Cipla launched generic. HC denied interim injunction on balance of convenience + public interest grounds (cancer drug access); full trial ordered.

⚖️ F. Hoffmann-La Roche v. Cipla (Delhi HC 2015) — Final decision: Roche's patent valid; Cipla infringed. But compulsory licensing considerations weighed in balance of remedies.

 **TIP:** Infringement is claim-based. Section 48 = exclusive rights of patentee. Section 107A = Bolar exemption (research/regulatory experiments NOT infringement). Section 104 = suit filed in District Court or High Court.

A3. Compulsory Licensing ★★★★★

Definition: A compulsory licence is a government-authorised licence that allows a third party to make, use, or sell a patented invention without the consent of the patent owner, upon payment of adequate remuneration. Governed by Sections 84–92, Patents Act, 1970 and TRIPS Article 31.

Grounds for Compulsory Licence (Section 84) — After 3 Years of Patent Grant:

- (a) Reasonable requirements of the public with respect to the patented invention have NOT been satisfied
- (b) The patented invention is NOT available to the public at a REASONABLY AFFORDABLE PRICE
- (c) The patented invention is NOT worked in India (not manufactured in India)

Emergency Compulsory Licence (Section 92):

- Government can grant compulsory licence suo motu in cases of national emergency, extreme urgency, or public non-commercial use
- No prior negotiation with patent owner required (unlike Section 84)
- Example: Pandemic, natural disaster, war situation

■ **PROCEDURE (Section 84):** Any person → Apply to Controller of Patents after 3 years of grant → Controller considers: (1) Nature of invention; (2) Patentee's ability to supply; (3) Whether patent worked in India; (4) Measures taken to make available at affordable price → Licence granted with **ADEQUATE REMUNERATION** to patentee.

Conditions Attached to Compulsory Licence (Section 90):

- Primarily for supply to domestic Indian market
- Licensee must pay adequate royalty to patentee
- Licence is non-exclusive and non-assignable
- Granted for balance of patent term unless Controller specifies shorter period

📌 Example: Bayer's Nexavar (cancer drug) — priced at Rs. 2.8 lakhs/month. Natco Pharma applied for compulsory licence (Section 84). Controller granted it in 2012: Natco sold Nexavar generic at Rs. 8,880/month. Royalty: 6% of net sales paid to Bayer. India's FIRST compulsory licence.

⚖️ *Bayer Corp. v. Union of India (Natco Pharma Case) (IPAB 2012, upheld SC 2014) — India's first compulsory licence. All three Section 84 grounds satisfied: (a) public need unmet; (b) not affordable; (c) not worked in India by Bayer. Consistent with TRIPS Art. 31 and Doha Declaration.*

💡 **TIP:** Section 84 = 3 years wait + 3 grounds (public need, affordability, working). Section 92 = emergency, no wait, government initiative. TRIPS Art. 31 = international legal basis. Doha Declaration = affirms right to use compulsory licence for public health.

A4. Rights and Obligations of a Patentee ★★★★★

Definition: A patentee is the person/entity in whose name a patent has been granted. The Patents Act, 1970 confers both exclusive rights (to exploit the invention commercially) and obligations (to work the patent, pay renewal fees, disclose fully) on the patentee.

Rights of a Patentee (Section 48):

- Product patent: Exclusive right to MAKE, USE, OFFER FOR SALE, SELL, and IMPORT the patented product in India
- Process patent: Exclusive right to USE the process, and to USE/OFFER FOR SALE/SELL/IMPORT the product directly obtained by the process
- Right to assign the patent (Section 68) — must be in writing, registered
- Right to licence the patent — exclusive or non-exclusive (Section 70)
- Right to sue for infringement (Section 104)
- Right to claim damages, injunction, account of profits on infringement (Section 108)

Obligations of a Patentee:

- WORK the patent in India — exploit the invention commercially in India (Section 83)
- PAY annual renewal fees — to maintain the patent in force (Section 53)
- DISCLOSE best method — full and complete disclosure in the specification (Section 10)
- DISCLOSE foreign applications — must disclose other countries where patent filed (Section 8)
- NOT abuse the patent — must not misuse patent to create monopolies against public interest

■ **BALANCE OF RIGHTS & OBLIGATIONS:** A patent is NOT an absolute monopoly. Section 83 states the patent system is not exploited in a manner contrary to public interest. The patentee's obligation to WORK the patent in India is the counterpart of the exclusive rights — use it or lose it (via compulsory licence).

📌 Example: A foreign pharma company patents a drug in India but manufactures it only abroad and imports it at high cost. It has NOT worked the patent in India — this triggers Section 84(1)(c) compulsory licence ground.

⚖️ *Novartis AG v. Union of India (2013 SC)* — Novartis's obligations under Indian patent law: disclosure of prior art (Section 3(d)); working requirement; balance of private monopoly vs public health interest. Court upheld India's restrictive patentability criteria as consistent with TRIPS flexibilities.

💡 *TIP: Rights: '5 MUSIs' = Make, Use, Sell, Import, and sue for Infringement. Obligations: 'WPDA' = Work the patent, Pay fees, Disclose best method, disclose foreign Applications.*

A5. Secrecy Directions & State Acquisition of Patents ★★★★★☆

Definition: Secrecy directions and state acquisition are two important limitations on patent rights under the Patents Act, 1970 — mechanisms through which the government can restrict or take over a patent in the national interest, particularly for defence and security.

Secrecy Directions (Sections 35–42):

- When an application for a patent relates to an invention relevant for DEFENCE purposes, the Controller may give 'secrecy directions' (Section 35)
- Secrecy direction prevents publication and communication of the application
- Patent application is kept confidential — patent may still be granted but information not published
- Government pays compensation to the applicant for loss due to secrecy direction (Section 36)
- Secrecy direction reviewed every year; revoked when no longer necessary
- Section 39: Indian residents must NOT file a patent application OUTSIDE India without first filing in India and getting approval (or 6 weeks passing without secrecy direction)

Government / State Acquisition of Patents (Section 102):

- Central Government can acquire any patent or patent application for a purpose of the government
- Government pays adequate compensation to the patentee (Section 102(2))
- Government use of patents: Section 47 — government can use any patented invention for its own purposes without licence (but must pay compensation)

🟡 **DISTINCTION:** Secrecy Direction = information hidden, patent may still be granted, compensation paid for restriction. Government Acquisition = patent TRANSFERRED to government, full compensation paid. Government Use (Section 47) = government uses the patent but does NOT acquire it — patentee retains ownership.

🔴 **Example:** A scientist invents a new stealth technology for aircraft. The Controller issues a secrecy direction — the patent application is not published; the government compensates the inventor for withholding publication. Later, the government may acquire the patent under Section 102.

⚖️ *Section 102 has not been frequently litigated in India — but is analogous to eminent domain (Article 300A Constitution — no deprivation of property without compensation).*

💡 *TIP: Secrecy = confidentiality of information + compensation. Acquisition = transfer of ownership + compensation. Both protect national security while paying the inventor. Section 39 violation (filing abroad first) = criminal offence.*

A6. Non-Patentable Inventions (Section 3 Exclusions) ★★★★★☆

Definition: Section 3 of the Patents Act, 1970 lists a comprehensive set of subject matter that is NOT patentable in India — either because it does not constitute an 'invention', or because granting a patent would be against public interest, morality, or India's specific policy objectives (particularly in pharmaceutical access).

Key Non-Patentable Subject Matter (Section 3):

Section	Exclusion	Rationale
3(a)	Frivolous / contrary to natural laws	Mind-reading hats, perpetual motion machines
3(b)	Contrary to public order, morality, health	Biological weapons, illegal drug methods
3(c)	Mere discovery of natural substance / phenomenon	Discovering a mineral; laws of nature
3(d)	New form of known substance without enhanced efficacy	India's anti-evergreening provision
3(e)	Admixture of known substances (no synergistic effect)	Simply mixing two existing compounds
3(f)	Mere arrangement / rearrangement of known devices	Combining existing machines without inventive step
3(i)	Diagnostic, therapeutic, surgical methods	Medical methods on human/animal body
3(j)	Plants, animals, essentially biological processes	Seeds, plant varieties, animal breeds
3(k)	Computer programmes per se / mathematical methods	Pure software, algorithms, business methods
3(l)	Literary, dramatic, musical, artistic works	These are copyright subject matter
3(m)	Mere scheme/rule/method for performing mental acts	Games, puzzles without technical character
3(p)	Traditional knowledge / known properties of traditional knowledge	TK protection against bio-piracy

SECTION 3(d) — INDIA'S MOST IMPORTANT PATENT PROVISION: A new form (salt, ester, polymorph, metabolite, isomer) of a known substance is NOT patentable UNLESS it differs significantly in EFFICACY from the known substance. This prevents pharmaceutical 'evergreening' (minor modifications to extend patent life).

📌 Example: Imatinib mesylate (Gleevec) is a new salt form of imatinib — Novartis applied for patent. SC rejected under Section 3(d): new salt form must show significantly enhanced therapeutic efficacy over known imatinib. Novartis could not prove this. India's MOST CITED patent case.

⚖️ *Novartis AG v. Union of India (2013 SC)* — Section 3(d) upheld as constitutional and TRIPS-compliant. SC defined 'efficacy' in pharmaceutical context as 'therapeutic efficacy'. New polymorphs/salts/esters without enhanced therapeutic efficacy = NOT patentable.

💡 TIP: Exam ALWAYS tests Section 3(d) and 3(j). Remember: 3(d) = no evergreening (enhanced efficacy needed). 3(j) = no plant/animal patents (use PPVFR Act). 3(k) = no software per se (needs technical effect). 3(p) = no TK patents (TKDL blocks these).

A7. Revocation of Patents (Section 64) ★★★★★

Definition: Revocation means the cancellation of a granted patent by the Intellectual Property Appellate Board (IPAB) / High Court, rendering the patent void ab initio (from the beginning). It is the mechanism by which an invalid or improperly granted patent is nullified.

Grounds for Revocation (Section 64):

- Invention was already claimed in an earlier patent (prior claiming)
- Patent granted on false suggestion or representation
- Invention not novel (prior art exists) — Section 64(1)(e)
- Invention obvious — lacks inventive step — Section 64(1)(f)
- Invention is not an 'invention' under the Act (Section 3 exclusions)
- Complete specification does not sufficiently describe the invention
- Scope of claims wider than what is justified by specification
- Patentee has failed to disclose information required under Section 8 (foreign applications)

Who Can Apply for Revocation:

- Any interested person — competitor, consumer group, government
- Central Government — in public interest
- Counter-claim in infringement suit — defendant can counter-claim revocation

 **REVOCATION = RETROACTIVE NULLIFICATION:** When a patent is revoked, it is treated as never having existed (void ab initio). Any licences granted under it become void. Any damages claimed for 'infringement' of a revoked patent must be refunded.

 Example: US Patent Office granted a patent for wound-healing use of turmeric. India challenged it with prior art (ancient Sanskrit texts). Patent REVOKED — treated as if it never existed. TKDL regularly provides prior art to revoke bio-piracy patents globally.

§§ Enercon v. Aloys Wobben (IPAB 2013) — Multiple wind turbine patents revoked on grounds of lack of inventive step and obviousness over prior art.

 **TIP:** Revocation ≠ Infringement suit. In a patent infringement suit, the DEFENDANT can file a counter-claim for revocation (Section 64(1)). If revocation succeeds, the infringement suit automatically fails (no valid patent).



PART B — LONG ESSAYS (15 Marks Each)

Answer any TWO. ~600–750 words. Time: 20–25 min each.

B1. Essential Conditions for Patenting an Invention under the Patents Act, 1970

Introduction

A patent is a time-limited exclusive right granted by the state to an inventor in exchange for public disclosure of the invention. The grant of a patent is not automatic — an invention must satisfy precise statutory criteria under the Patents Act, 1970. These criteria serve a dual purpose: they ensure that patents are granted only for genuine, new, and useful innovations, and they prevent the monopolisation of the public domain. The three primary conditions — novelty, inventive step, and industrial applicability — together with the requirement that the invention not fall within Section 3 exclusions, form the complete gatekeeping framework for patent grant in India.

1. Definition of 'Invention' (Section 2(1)(j))

'Invention' means a new product or process involving an inventive step and capable of industrial application. This definition itself encapsulates the three core criteria. All three must be simultaneously satisfied.

THREE PILLARS OF PATENTABILITY: (1) NOVELTY — new product or process; (2) INVENTIVE STEP — non-obvious; (3) INDUSTRIAL APPLICATION — capable of being manufactured/used commercially. All three are mandatory — failure on any one = no patent.

2. Novelty (New Invention) — Section 2(1)(i)

An invention is 'new' or 'novel' if it has not been anticipated by prior art — i.e., it has not been published, used, or otherwise made available to the public anywhere in the world before the date of filing.

- Prior art includes: Earlier patents, publications, public uses, oral disclosures, exhibitions anywhere in the world
- Novelty is assessed globally — prior publication anywhere destroys novelty
- Grace period: India does NOT have a general grace period for disclosures (unlike USA)
- Section 2(1)(i): 'New invention' means any invention or technology which has not been anticipated by publication in any document or used in the country or elsewhere in the world before the date of filing.

ANTICIPATION TEST: If a single prior art document discloses ALL the elements of the claimed invention, the invention is anticipated (lacks novelty) and cannot be patented.

 Example: Aspirin (acetylsalicylic acid) was patented by Bayer in 1899. If someone today claims a patent for aspirin — the 1899 patent and over a century of publications would destroy novelty. The claim would fail.

3. Inventive Step (Non-Obviousness) — Section 2(1)(ja)

'Inventive step' means a feature of an invention that involves technical advance as compared to existing knowledge, or having economic significance, or both, and that makes the invention NOT OBVIOUS to a person skilled in the art.

- Standard: A hypothetical 'Person Skilled in the Art' (PSITA) — expert in the relevant field but not an inventor
- If such a person, looking at prior art, would find the invention obvious — no inventive step
- Mere combination of known elements is NOT inventive unless the combination produces an unexpected/synergistic result

- Economic significance alone can qualify as inventive step (India-specific — Section 2(1)(ja))

OBVIOUS vs INVENTIVE: If a skilled person says 'Of course! I could have done that easily' → OBVIOUS → no patent. If they say 'I never would have thought of that' → INVENTIVE → patent possible.

Novartis AG v. Union of India (2013 SC) — SC confirmed: a new polymorphic form of imatinib lacking enhanced therapeutic efficacy fails BOTH Section 3(d) AND the inventive step test — a new form that produces no new result is obvious to a person skilled in pharmaceutical chemistry.

4. Industrial Application (Utility) — Section 2(1)(ac)

An invention is 'capable of industrial application' if it can be made or used in any kind of industry, including agriculture.

- Must have a specific, substantial, and credible utility
- Purely speculative inventions with no demonstrated utility cannot be patented
- Agriculture is expressly included — inventions for agricultural application qualify
- Diagnosis methods for disease — excluded by Section 3(i) despite industrial context

 Example: A new cancer drug compound that has been tested and shown to inhibit tumour growth = industrially applicable. A theoretical molecule with no demonstrated biological activity = not industrially applicable.

5. Section 3 — Non-Patentable Inventions (Key Exclusions)

Even if novelty, inventive step, and industrial application are satisfied, an invention may still be non-patentable if it falls within Section 3. Key exclusions relevant to exam problems:

Exclusion	Section	Key Case/Example
New form of known substance — no enhanced efficacy	3(d)	Novartis v. UOI (2013) — Gleevec rejected
Plants, animals, essentially biological processes	3(j)	Monsanto v. Nuziveedu (2018) — Bt cotton
Computer programmes per se	3(k)	Software must have technical effect to qualify
Traditional knowledge	3(p)	Turmeric patent revoked; TKDL evidence
Diagnostic/therapeutic/surgical methods	3(i)	Medical treatment methods excluded
Discoveries of natural phenomena	3(c)	Discovering gravity = not patentable

6. Additional Requirements for Patent Grant

- Complete Specification (Section 10): Must fully describe the invention, disclose best method, include clear and concise claims defining scope of protection
- Enablement: Specification must enable a PSITA to reproduce the invention without undue experimentation
- Disclosure of source of biological material: If invention uses biological material from India — source must be disclosed (Section 10(4)(ii)(D))
- First-to-File system: India uses first-to-file, not first-to-invent — whoever files first gets priority

7. The Patent Bargain

The fundamental philosophy of patent law is the 'patent bargain': the state grants a 20-year monopoly

to the inventor; in exchange, the inventor makes full public disclosure enabling the public to use the invention after expiry. This quid pro quo is reflected in Section 10's disclosure requirements and Section 83's working obligations.

■ **PATENT BARGAIN:** Monopoly for 20 years ↔ Full public disclosure. After 20 years → public domain. This is why complete, enabling disclosure is mandatory — it is the public's consideration for granting the monopoly.

Conclusion

The conditions for patentability under the Patents Act, 1970 — novelty, inventive step, industrial application, and non-exclusion under Section 3 — form a carefully calibrated filter that admits genuinely inventive contributions while keeping the public domain free from monopolisation of obvious combinations, natural phenomena, and traditional knowledge. India's Section 3(d), validated by the Supreme Court in Novartis, has become a global model for balancing pharmaceutical innovation with access to medicines. The constitutional underpinning lies in Article 300A (property rights balanced with public interest) and India's TRIPS obligations under Article 51 of the Constitution.

B2. Rights, Duties & Obligations of a Patentee — Balancing Innovation with Public Interest

Introduction

A patent represents the state's recognition of an inventor's creative effort through the grant of a temporary monopoly. The Patents Act, 1970, however, makes clear that a patent is not an absolute or unconditional right. Section 83 of the Act explicitly states that the patent system is intended to promote technological innovation and transfer of technology and that patents should not be exploited in a manner contrary to public health, public order, or national interest. The patentee's rights are therefore matched by equally significant duties — creating a framework in which private innovation serves the public good.

1. Rights of a Patentee

(a) Exclusive Rights (Section 48)

Type of Patent	Exclusive Rights
Product Patent	Make, Use, Offer for Sale, Sell, Import the patented product in India
Process Patent	Use the process; Use, Offer for Sale, Sell, Import the product directly obtained by the process

■ **SCOPE OF SECTION 48 RIGHTS:** The five exclusive rights — Make, Use, Offer for Sale, Sell, Import — apply only **WITHIN INDIA** and only **DURING** the 20-year patent term. After 20 years, the invention enters the public domain.

(b) Commercial Rights

- Right to assign the patent (Section 68): Transfer ownership to another person — must be in writing, registered with Patent Office
- Right to grant licences (Section 70): Exclusive or non-exclusive licences to third parties
- Right to sue for infringement (Section 104): File suit in District Court or High Court
- Right to claim remedies (Section 108): Injunction, damages, or account of profits

- Right of priority: Convention application (Paris) claims priority from foreign filing date

(c) Right of Surrender and Restoration

- Patentee may surrender the patent voluntarily (Section 63) — advertisements inviting opposition; if no valid opposition, patent surrendered
- If patent lapses (non-payment of renewal fees), patentee can apply for restoration within 18 months (Section 60)

2. Obligations / Duties of a Patentee

(a) Obligation to Work the Patent in India (Section 83)

This is the most critical obligation. Section 83 provides the philosophy:

- Patents are NOT granted merely to enable patentees to enjoy a monopoly for importation
- Patents should be worked in India on a commercial scale — manufactured/produced in India
- Patents should not be worked in a manner contrary to the public interest
- Failure to work in India for 3 years after grant → compulsory licence under Section 84(1)(c)

'WORKING' IN INDIA: Manufacturing the patented product in India = working. Importing the product into India (even legally) = NOT working. This obligation pushes technology transfer to India — consistent with TRIPS Art. 27's non-discrimination provision.

(b) Obligation to Pay Renewal Fees (Section 53)

- Annual renewal fees must be paid to keep the patent in force
- Non-payment → patent lapses (ceases to have effect)
- Patent term: 20 years from date of filing of application (Section 53(1))

(c) Obligation of Full Disclosure (Section 10)

- Complete specification must fully and particularly describe the invention and its best method
- Claims must be clear, concise, and fairly based on the disclosed matter
- Disclosure of source of biological material used in invention
- Failure to disclose: ground for revocation (Section 64(1)(m))

(d) Obligation to Disclose Foreign Patent Applications (Section 8)

- Applicant must inform Controller of all corresponding applications filed in other countries
- Must update Controller with prosecution results (grant, rejection, amendments) in foreign offices
- Non-disclosure under Section 8 = ground for revocation (Section 64(1)(m))

(e) Obligation Not to Abuse Patent Rights

- Must not demand prohibitive prices that make the invention inaccessible to the public
- Must not impose restrictive conditions in licences contrary to public interest (Section 140)
- Must not engage in anti-competitive practices (Competition Act, 2002 applies)

3. Limitations on Patent Rights — Public Interest Overrides

Limitation			Section	Effect
Compulsory Licence — public need/affordability/working			84	Third party can make/sell without consent; royalty paid to patentee
Emergency Licence	Compulsory		92	Govt grants licence in national emergency; no prior negotiation
Government Use			47	Govt uses patent for own purposes; compensation

		paid; patentee keeps ownership
State Acquisition	102	Govt acquires patent with compensation; ownership transferred to state
Secrecy Directions	35–42	Defence inventions kept secret; compensation paid for restriction
Revocation	64	Invalid patents cancelled; void ab initio
Bolar Exemption	107A	Research/regulatory experiments not infringement
Parallel Imports	107A(b)	Import of patented product from a country where patent holder marketed it

SECTION 83 — THE GUIDING PHILOSOPHY: Patent rights are not absolute. The Act must strike a balance — incentivising private R&D investment through temporary monopoly while ensuring that the public benefits from the invention through working, affordable pricing, and eventual public domain access.

4. Key Cases on Patentee's Rights vs Public Interest

§§ *Novartis AG v. Union of India (2013 SC)* — Patentee's right to enhanced patent (new polymorph) vs public interest in affordable medicine. SC upheld Section 3(d), balancing innovation incentive with health access.

§§ *Bayer Corp. v. Union of India / Natco Pharma (IPAB 2012, SC 2014)* — Patentee's pricing obligation: Rs. 2.8 lakhs/month held to violate Section 84(1)(b) — not at reasonably affordable price. India's first compulsory licence — balancing Bayer's rights with cancer patient access.

§§ *F. Hoffmann-La Roche v. Cipla (Delhi HC 2012/2015)* — Balance of convenience in granting interim injunction for patent infringement of cancer drug; public health interest weighed against patentee's right to interim relief.

Conclusion

The rights and obligations of a patentee under the Patents Act, 1970 reflect a sophisticated balance between private incentive and public benefit — the foundational bargain of patent law. While Section 48 grants powerful exclusive rights, Sections 83–92 ensure these rights are exercised responsibly. The compulsory licensing mechanism, working obligation, and government use provisions are not exceptions to patent rights — they are the built-in balancing mechanisms that make the patent system serve its true purpose: the advancement of science and technology for the benefit of all. This framework is rooted in India's constitutional values (Articles 39, 47 — Directive Principles on equitable distribution and public health) and its obligations under TRIPS (particularly the Doha Declaration flexibilities).

🔑 PART C — PROBLEM QUESTIONS / IRAC METHOD (10 Marks Each)

Answer any TWO. Strict IRAC format. Time: 15 min each.

C1. Problem: Sun Pharma's New Formulation of 'Candid' — Patentable?

(Based on Aug/Sep 2024 Q13: Sun Pharma came up with a new formulation of the existing medicine 'Candid'. It wants to apply for patent for that new formulation which has 30% extra bio-availability than the older form. Will Sun Pharma get a patent?)

I — ISSUE

Whether Sun Pharma's new formulation of the existing medicine 'Candid' — which exhibits 30% extra bio-availability compared to the known compound — is patentable under the Patents Act, 1970, particularly in light of Section 3(d).

R — RULE

The following provisions govern:

1. Section 2(1)(j) — Invention: Must be a new product or process involving an inventive step and capable of industrial application. ALL THREE criteria (novelty, inventive step, industrial application) must be satisfied.
2. Section 3(d) — KEY PROVISION: The mere discovery of a new form of a known substance which does not result in the enhancement of the known efficacy of that substance is NOT patentable. Forms include: salts, esters, ethers, polymorphs, metabolites, pure form, particle size, isomers, mixtures of isomers, complexes, combinations, and other derivatives of known substances.
3. Explanation to Section 3(d): Salts, esters, ethers, polymorphs, etc. of known substance shall be considered to be the SAME SUBSTANCE unless they differ significantly in PROPERTIES with regard to EFFICACY.
4. In Pharmaceutical Context: The Supreme Court in Novartis v. Union of India (2013) held that 'efficacy' for pharmaceutical compounds means THERAPEUTIC EFFICACY — the ability to treat disease/improve patient outcomes. Bio-availability = the rate and extent to which the drug is absorbed into the bloodstream.

🟡 **CRITICAL RULE — Section 3(d) TEST:** New form of known substance → NOT patentable UNLESS → enhanced EFFICACY (therapeutic efficacy in pharma context).
QUESTION: Does 30% extra bio-availability = enhanced therapeutic efficacy?

A — APPLICATION

Applying the rules to the facts:

- 'Candid' is an EXISTING medicine — its active compound is a KNOWN SUBSTANCE
- Sun Pharma's new formulation is a NEW FORM of this known substance — squarely within Section 3(d)'s scope

- 30% extra bio-availability = the drug is absorbed faster/more efficiently into the bloodstream
- KEY QUESTION: Does improved bio-availability = enhanced THERAPEUTIC EFFICACY?

Analysis of the bio-availability–efficacy link:

- Bio-availability is a pharmacokinetic property (how the drug moves through the body)
- Improved bio-availability CAN lead to better therapeutic outcomes — if the drug reaches target tissues more effectively, it may treat disease better
- BUT: Bio-availability improvement alone is NOT automatically = enhanced therapeutic efficacy
- Sun Pharma must demonstrate that the 30% extra bio-availability translates into IMPROVED CLINICAL OUTCOMES — better disease treatment, reduced side effects, lower doses needed for same effect

Novartis AG v. Union of India (2013 SC) — SC interpreted Section 3(d) strictly: enhanced efficacy means enhanced therapeutic efficacy. Improved physical/chemical properties (like solubility, stability, bio-availability) do NOT automatically satisfy Section 3(d) unless they translate to enhanced therapeutic efficacy.

Roche v. Cipla (Delhi HC) — Enhanced absorption leading to clinically demonstrated better outcomes = potentially patentable; mere property improvement without clinical data = Section 3(d) bar.

C — CONCLUSION

Sun Pharma's patent application faces a SIGNIFICANT HURDLE under Section 3(d).

The outcome depends on the clinical evidence:

- IF Sun Pharma can demonstrate with clinical data that the 30% extra bio-availability translates into SIGNIFICANTLY ENHANCED THERAPEUTIC EFFICACY (better patient outcomes, lower dosing, fewer side effects) → Patent MAY be granted (Section 3(d) bar overcome)
- IF the 30% bio-availability improvement is only a pharmacokinetic property without demonstrated enhancement in therapeutic effect → Patent will be REFUSED under Section 3(d)

Additionally, Sun Pharma must independently satisfy: (1) NOVELTY — new formulation not previously disclosed; (2) INVENTIVE STEP — not obvious to a pharmaceutical chemist skilled in the art; (3) INDUSTRIAL APPLICATION — commercially manufacturable.

FINAL ANSWER: Patent likely REFUSED under Section 3(d) UNLESS Sun Pharma proves 30% bio-availability improvement = enhanced THERAPEUTIC EFFICACY with clinical data. Bio-availability improvement alone is insufficient per Novartis (2013 SC). Section 3(d) is India's anti-evergreening shield.

C2. Problem: Government Cancels Kusum's Patent — Is it Legal?

(Based on Aug/Sep 2024 Q15: Kusum is granted a patent for a product but couldn't commercialise it due to personal reasons even after four years. The government cancels her patent and grants it to Samuel. Can the Government do so? Under which provisions? Discuss.)

I — ISSUE

(1) Whether the government can cancel Kusum's patent after 4 years of non-commercialisation; (2) Whether the patent can be granted to Samuel (a third party); and (3) Under which provisions of the Patents Act, 1970 such action is permissible.

R — RULE

The following provisions govern:

1. Section 83 — Working of Patents: Patents must be worked in India on a commercial scale. Not working a patent on commercial scale (or importing as a substitute for working) is a ground for compulsory licence.
2. Section 84(1) — Compulsory Licence (after 3 years of grant): Any person may apply to the Controller for a compulsory licence if:
 - (a) Reasonable requirements of the public have not been satisfied;
 - (b) The patented invention is not available at a reasonably affordable price; OR
 - (c) The patented invention is NOT WORKED in the territory of India.
3. Section 84(3): An applicant for compulsory licence must make effort to obtain a voluntary licence from the patentee on reasonable terms; only if refused or negotiations fail within 6 months → apply to Controller.
4. Section 85 — Revocation of Patent by Controller: If, after a compulsory licence has been granted, the reasonable requirements of the public remain unsatisfied OR the patented invention is still not worked in India within 2 years of the compulsory licence → Central Government may apply to the Appellate Board for REVOCATION of the patent.
5. Section 64 — Revocation: Provides grounds for revocation including that the invention is not worked in India.
6. Section 102 — Government Acquisition: The Central Government may, by notification, acquire a patent for a government purpose, paying adequate compensation. But the patent is acquired BY the government — not granted to a third party like Samuel.

 **KEY LEGAL SEQUENCE:** Non-working (4 years) → Compulsory Licence (Section 84, after 3 years) → If CL still doesn't fix the problem → Revocation (Section 85/64). Patent does NOT automatically transfer to a third party — the government cannot simply 'grant it to Samuel'.

A — APPLICATION

Applying the rules to the facts:

- Kusum has held the patent for 4 years (3+ years elapsed since grant) — the working obligation under Section 83 has not been fulfilled (no commercialisation due to personal reasons)
- Section 84 ground (c) is SATISFIED: Patent not worked in India → any interested person (including Samuel) can apply to the Controller for a COMPULSORY LICENCE, NOT for the patent itself
- The government CANNOT directly cancel the patent and grant it to Samuel — this is legally incorrect. The correct mechanism is:
 - Step 1: Samuel (as an interested person) applies to Controller for compulsory

licence under Section 84 after 3 years of patent grant

- Step 2: Controller considers the application; since patent is not worked in India → compulsory licence may be granted to Samuel
- Step 3: If even after compulsory licence the patent is not worked → Central Government applies to IPAB/HC for REVOCATION under Section 85/64
- Step 4: If revocation granted → patent is void ab initio — but still does NOT 'transfer' to Samuel; Samuel would need to file a FRESH patent application
- Alternatively, under Section 102 — Government can ACQUIRE Kusum's patent (not grant it to Samuel) — paying her adequate compensation

🔗 Bayer v. Natco (IPAB 2012) — Compulsory licence granted, not revocation or transfer. The patentee retains ownership; the licensee gets right to work.

WHAT THE GOVERNMENT CAN LEGALLY DO:

- Grant a compulsory licence to Samuel under Section 84 (after 3 years) — Kusum remains patent owner
- Acquire the patent under Section 102 — government becomes owner, pays Kusum; still cannot 'give' to Samuel
- Apply for revocation under Section 85/64 — patent voided, enters public domain; Samuel files fresh application

C — CONCLUSION

The government's action as described is LEGALLY INCORRECT in its framing — it cannot simply cancel Kusum's patent and 'grant it to Samuel' as if transferring ownership.

HOWEVER — the following is legally permissible:

- YES — the government CAN take action after 4 years of non-working
- The CORRECT mechanism is: Compulsory Licence (Section 84) → Samuel gets licence to work the patent while Kusum retains ownership
- If CL insufficient → Revocation (Section 85/64) → patent void → public domain → Samuel files fresh application
- Alternatively: Government Acquisition (Section 102) → government takes ownership with compensation to Kusum

🟡 FINAL ANSWER: Government CANNOT directly cancel and 'grant' patent to Samuel. Correct route: Section 84 Compulsory Licence to Samuel (Kusum keeps patent); OR Section 85/64 Revocation (patent void); OR Section 102 Government Acquisition. Non-working for 4 years = Section 84 ground clearly established.

C3. Problem: Mind-Reading Hat — Patentable under Patents Act, 1970?

(Based on July/August 2025 Q16: An individual files a patent for a hat that claims to grant the wearer the ability to read minds through magnetic fields. Evaluate the patentability of the invention under the Patents Act, 1970.)

I — ISSUE

Whether a patent application for a hat that purportedly enables the wearer to read minds

through magnetic fields satisfies the statutory criteria for patentability under the Patents Act, 1970.

R — RULE

The following statutory criteria govern patentability:

1. Section 2(1)(j) — 'Invention': A new product or process involving an INVENTIVE STEP and capable of INDUSTRIAL APPLICATION. The claimed product must actually work as claimed.
2. Section 3(a) — NON-PATENTABLE: 'An invention which is frivolous or which claims anything obviously contrary to well established natural laws.' This is an absolute bar — no patent for inventions that violate established science.
3. Novelty (Section 2(1)(l)): The invention must not be anticipated by prior art.
4. Inventive Step (Section 2(1)(ja)): Must involve technical advance not obvious to a person skilled in the art.
5. Industrial Application (Section 2(1)(ac)): Must be capable of being made or used in any industry. An invention that does not work cannot be 'used in industry'.
6. Enablement (Section 10): Complete specification must enable a person skilled in the art to reproduce the invention. If the mechanism is pseudo-scientific, it cannot be enabled.

 **SECTION 3(a) — THE FRIVOLITY/NATURAL LAWS BAR:** If an invention claims to do something that contradicts established natural laws (physics, chemistry, biology) — it is **ABSOLUTELY BARRED** from patentability. No discretion. No exceptions. Mind-reading via magnetic fields has no scientific basis — it violates established neuroscience and physics.

A — APPLICATION

Systematically evaluating the mind-reading hat against each patentability criterion:

Test 1 — Section 3(a): Frivolous / Contrary to Natural Laws

- Mind-reading — telepathy — has NO established scientific basis in physics, neuroscience, or any natural science
- 'Reading minds through magnetic fields' contradicts established laws of neuroscience and electromagnetic physics
- This is **OBVIOUSLY CONTRARY TO WELL ESTABLISHED NATURAL LAWS** → Section 3(a) **BARS** the patent
- Result: **ABSOLUTE BAR**. Application rejected at this stage itself.

Test 2 — Novelty

- Mind-reading devices appear in science fiction literature (extensive prior art in fiction)
- No actual working prior art exists — but the claim itself is not novel in conception
- Result: Likely lacks novelty (if prior publications exist) — additional ground for rejection

Test 3 — Inventive Step

- There is no technical advance because the claimed result is scientifically impossible
- A person skilled in art (neuroscientist/physicist) would immediately recognise this as pseudo-science

- Result: No inventive step — a scientifically impossible claim is not a technical advance

Test 4 — Industrial Application

- An invention that does not work CANNOT be 'used in any industry'
- The specification cannot enable a person skilled in the art to reproduce a working mind-reading device — because it is physically impossible
- Result: Fails industrial application test (utility test)

Test 5 — Enablement (Section 10)

- The complete specification cannot enable a PSITA to reproduce the invention — pseudo-scientific mechanism cannot be described in enabling terms
- Result: Specification is deficient — additional ground for rejection

 Example: Historical parallel: Patent applications for 'perpetual motion machines' (machines that run forever without energy input — violating thermodynamics) are routinely rejected under Section 3(a) worldwide for being contrary to natural laws.

🔗 Section 3(a) has been applied to reject patents for 'inventions' like perpetual motion machines, zero-point energy devices, and other pseudo-scientific claims in India and internationally.

C — CONCLUSION

The patent application for the mind-reading hat is NOT PATENTABLE — it fails EVERY criterion:

- SECTION 3(a): ABSOLUTE BAR — claim is obviously contrary to established natural laws (primary ground)
- NOVELTY: Questionable — prior publications exist
- INVENTIVE STEP: Fails — no technical advance; scientifically impossible claim
- INDUSTRIAL APPLICATION: Fails — invention does not work; cannot be used in industry
- ENABLEMENT: Fails — specification cannot enable a PSITA to reproduce the invention

The Controller of Patents must reject the application under Section 3(a) at the examination stage itself. The application does not deserve further scrutiny once Section 3(a) is triggered.

 **FINAL ANSWER: Patent REFUSED on MULTIPLE GROUNDS. Primary: Section 3(a) — frivolous and contrary to natural laws (mind-reading is scientifically impossible). Secondary: Fails novelty, inventive step, industrial application, and enablement. This is the clearest possible case of non-patentability.**

C4. Problem: Improved Motorcycle — Can the Brother Get a Patent?

(Based on Nov 2022 Q14: A mechanical engineer holds a patent on a motorcycle. His brother, while working in the same company, rectified inherent defects and further improved the model. Can the brother get a patent on the new improved motorcycle?)

I — ISSUE

Whether the brother can obtain a patent for his improvements to the mechanical engineer's

patented motorcycle, and what conditions must be satisfied for such a patent.

R — RULE

1. Section 2(1)(j) — Invention: New product or process involving inventive step + industrial application.
2. Section 54 — Patent for Improvement: A patent may be granted for an improvement in or relating to a patented invention, provided the improvement itself satisfies novelty + inventive step + industrial application.
3. Section 6 — Who can apply: The inventor, assignee of the inventor, or legal representative. The brother must be the actual inventor of the improvements.
4. Employment context (Section 17 — ownership): If the brother made the improvements in the course of his employment and his contract of employment requires him to make inventions → the employer (company) may own the invention, NOT the brother personally.
5. A patent for improvement is a **DEPENDENT PATENT** — the brother's improved motorcycle patent cannot be commercially exploited without a licence from the original patent holder (the mechanical engineer) for the base invention.

IMPROVEMENT PATENT RULE (Section 54): Improvement on existing patent = new patent possible IF the improvement is itself novel and inventive. BUT the improvement patent is **DEPENDENT** — cannot be worked without licence from the original patentee.

A — APPLICATION

Applying the rules:

- The brother rectified inherent defects and made improvements — if these improvements are **NEW** and involve an **INVENTIVE STEP** not obvious to a mechanical engineer, they qualify as patentable under Section 54
- Fixing inherent defects: If the fix was obvious to any skilled mechanic → lacks inventive step → no patent. If the fix was non-obvious and technically innovative → inventive step satisfied
- **EMPLOYMENT ISSUE:** Brother works in the same company as the engineer. If:
 - His employment contract includes IP assignment clause → improvements belong to the **COMPANY**, not the brother
 - He made the improvement using company resources/time → company may claim ownership
 - He made it independently on personal time → improvement may belong to him personally
- **DEPENDENCY ISSUE:** Even if brother gets a patent for the improvement, he **CANNOT** manufacture/sell the improved motorcycle without a licence from the mechanical engineer (who holds the base patent on the motorcycle)
- Similarly, the mechanical engineer cannot make the improved version without the brother's licence on the improvement

⚖ Monsanto Technology v. Nuziveedu (2018 SC) — Improvement patents and dependent patent relationships discussed in context of agricultural technology.

CROSS-LICENSING: The practical solution is a **CROSS-LICENSING** arrangement between the brothers — each licences the other to use their respective patents, enabling the improved

motorcycle to be manufactured and sold.

C — CONCLUSION

YES — the brother CAN get a patent for the improvement, PROVIDED:

- The improvements satisfy NOVELTY and INVENTIVE STEP (not obvious fixes)
- The brother is legally the owner (employment contract does not assign IP to the company)
- He files a patent application under Section 54 (improvement patent)

However — IMPORTANT LIMITATION:

- The improvement patent is DEPENDENT on the original motorcycle patent
- The brother CANNOT commercially exploit the improved motorcycle without a licence from the mechanical engineer (original patentee)
- Recommended solution: CROSS-LICENSING agreement between the brothers

 **FINAL ANSWER:** Brother CAN get improvement patent (Section 54) if improvements are novel + inventive + his own (not employer's). BUT improvement patent is DEPENDENT — he needs licence from engineer to manufacture. Best solution = Cross-licensing agreement between the brothers.

QUICK REVISION SHEET — UNIT V

Key Sections — Patents Act, 1970

Section	Content
Section 2(1)(j)	Definition of 'invention' — new product/process + inventive step + industrial application
Section 2(1)(ja)	Definition of 'inventive step' — technical advance + not obvious to PSITA
Section 2(1)(l)	Definition of 'new invention' — not anticipated by prior art anywhere in world
Section 3	Non-patentable subject matter (list of 19 exclusions)
Section 3(a)	Frivolous / contrary to natural laws — ABSOLUTE BAR
Section 3(d)	New form of known substance — no enhanced efficacy → NOT patentable (anti-evergreening)
Section 3(j)	Plants, animals, essentially biological processes → NOT patentable (use PPVFR Act)
Section 3(k)	Computer programmes per se → NOT patentable
Section 3(p)	Traditional knowledge → NOT patentable
Section 6	Who may apply for patent — inventor, assignee, legal representative
Section 7	Ordinary application for patent (with provisional or complete specification)
Section 8	Obligation to disclose foreign patent applications
Section 10	Complete specification — enablement, claims, best method
Section 16	Divisional application — when application contains two inventions
Section 35–42	Secrecy directions — defence inventions; Section 39 = must file in India first
Section 47	Government use of patented invention — compensation paid; ownership unchanged
Section 48	Rights of patentee — Make, Use, Offer for Sale, Sell, Import
Section 53	Patent term — 20 years from date of filing; annual renewal fees
Section 54	Patent for improvement / addition — dependent patent
Section 60	Restoration of lapsed patent — within 18 months of lapse
Section 63	Surrender of patent by patentee voluntarily
Section 64	Revocation of patent — grounds; counter-claim in infringement suit
Section 83	General principles — patents must be worked; not against public interest
Section 84	Compulsory licence — after 3 years; 3 grounds (public need, affordability, working)
Section 85	Revocation for non-working — after compulsory licence still not worked
Section 90	Conditions of compulsory licence — royalty, non-exclusive, domestic supply
Section 92	Compulsory licence in national emergency — no prior negotiation
Section 102	Government acquisition of patent — compensation to patentee

Section 104	Jurisdiction for infringement suits — District Court / High Court
Section 107A	Bolar exemption — research/regulatory use not infringement; parallel imports
Section 108	Remedies for infringement — injunction, damages, account of profits
Section 135	Convention application — Paris priority within 12 months

🔥 Top Cases — One-Liner

- Novartis v. Union of India (2013 SC): Section 3(d) upheld; Gleevec (imatinib mesylate) rejected — new polymorph, no enhanced therapeutic efficacy
- Bayer v. Natco / UOI (IPAB 2012, SC 2014): India's FIRST compulsory licence; Nexavar Rs.2.8L → Rs.8,880; Section 84 all 3 grounds met
- Roche v. Cipla (Delhi HC 2012/2015): Cancer drug patent infringement; public interest weighed in interim injunction denial
- Monsanto v. Nuziveedu (2018 SC): Bt cotton technology — plant variety ≠ patentable; PPVFR Act governs; Section 3(j) applied
- Diamond v. Chakrabarty (1980 US SC): Genetically engineered microorganism patentable — 'anything under sun made by man'. India's approach differs — Section 3(j) bars plants/animals.
- US v. India (WTO DS50, 1997): TRIPS compliance — India required to introduce product patents for pharma/agro by 2005

🧠 Memory Mnemonics

■ **THREE PILLARS OF PATENTABILITY: 'NII' = Novelty + Inventive Step + Industrial Application.**
ALL THREE mandatory.

■ **PATENTEE'S RIGHTS (Section 48): '5 MUSII's' = Make, Use, Sell, Import, sue for Infringement**

■ **PATENTEE'S OBLIGATIONS: 'WPDA' = Work the patent in India, Pay renewal fees, Disclose best method, disclose foreign Applications (Section 8)**

■ **SECTION 84 COMPULSORY LICENCE GROUNDS: '3 As' = (a) public need unmet, (b) Affordability (not reasonably priced), (c) Absent from India (not worked)**

■ **SECTION 3 KEY EXCLUSIONS: 'FTJKP' = Frivolous (3a), Therapeutic methods (3i), plants/animals/biological processes (3j), computer programmes per se (3k), traditional knowledge Patents (3p)**

■ **TYPES OF PATENTS: 'PP-CDA' = Product, Process, patent for improvement (Addition), Convention, Divisional, Application (PCT)**

■ **SECTION 3(d) TEST: New form of known substance → Enhanced Therapeutic Efficacy required → Otherwise BARRED. 'New Form ≠ New Patent without New Effect'**

GOVERNMENT ACTIONS ON PATENTS: 'CRAS' = Compulsory Licence (Section 84/92), Revocation (Section 64/85), Acquisition (Section 102), Secrecy (Section 35)

△ Exam TRAP Questions

- ▶ TRAP: 'Section 3(d) bars all new pharmaceutical patents' → NO. It bars new FORMS of KNOWN substances without enhanced therapeutic efficacy. Genuinely new compounds are patentable.
- ▶ TRAP: 'Compulsory licence can be applied for immediately after patent grant' → NO. Must wait 3 YEARS after patent grant (Section 84). Exception: national emergency under Section 92 — no waiting.
- ▶ TRAP: 'Compulsory licence = free to use the patent' → NO. Adequate ROYALTY must be paid to patentee (Section 90). Compulsory ≠ free.
- ▶ TRAP: 'Government can cancel a patent and give it to someone else' → NO. Correct mechanisms: Compulsory Licence (licensed to a third party, not transferred), Revocation (patent voided, enters public domain), Acquisition (government acquires — not a third party).
- ▶ TRAP: 'Plant variety inventors can get a patent in India' → NO. Section 3(j) bars it. Use PPVFR Act 2001 (NDUS criteria).
- ▶ TRAP: 'Process patent owner can stop anyone from making the same product' → NO. Only PRODUCT patent gives exclusive right over the PRODUCT itself. A process patent only covers THAT SPECIFIC PROCESS.
- ▶ TRAP: 'Bolar exemption means generic companies can sell patented drugs during patent term' → NO. Bolar exemption (Section 107A) allows research and regulatory submissions ONLY — not commercial sale during patent term.
- ▶ TRAP: 'PCT grants an international patent' → NO. PCT streamlines filing. Each country independently grants or refuses a patent. There is NO international/global patent.
- ▶ TRAP: 'Improvement patent owner can commercialise freely' → NO. Improvement patent (Section 54) is DEPENDENT — needs licence from original patentee to exploit commercially.

📊 Complete IPL — All 5 Units Star Rating Summary

Unit	Topic	Most Important Questions	Rating
I	Introduction to IP	Forms of IP, GI, Plant Varieties, Biotechnology	★★★★★
II	International Regime	WIPO, TRIPS, Paris, Berne, Compulsory Licence	★★★★★
III	Copyright	Infringement, Idea-Expression, Moral Rights, Fair Dealing	★★★★★
IV	Trademarks & Designs	Non-Conventional TM, Passing Off, Deceptive Similarity, Design Piracy	★★★★★
V	Patents	Patentability, Section 3(d), Compulsory Licence, Rights of Patentee	★★★★★

🎯 Pre-Exam Master Checklist

- Know ALL Section 3 exclusions — especially 3(a), 3(d), 3(j), 3(k), 3(p)
- Know the patentability TRIAD: Novelty + Inventive Step + Industrial Application

- Know Section 84 compulsory licence: 3 years wait + 3 grounds (NII: Need, unAffordable, not In India)
- Know TRIPS Art. 31 + Doha Declaration for compulsory licensing international basis
- Know Novartis v. UOI (2013) + Bayer v. Natco (2012/2014) inside out — most cited cases
- Know the difference: Product Patent (stronger) vs Process Patent (weaker)
- Know Section 54 — improvement patent is DEPENDENT
- Know Sections 35–42 (secrecy) and Section 102 (acquisition) for government limitation questions
- Know PCT: 30-month national phase entry; does NOT grant patents; 157 countries
- Practice all 4 IRAC problems in this unit — all are from past papers or near-identical patterns

—— **END OF UNIT V — COMPLETE IPL SERIES** ——

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Best of luck in your examinations! 🏆